Offices of the Inspector General

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Inspector General

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Request for Proposals (RFP)
Investigative Case Management Software

The purpose of this Request for Proposals (RFP) is to solicit proposals and award a contract to a qualified Proposer to provide a commercial-off-the-shelf (COTS) software as a service web-hosted workflow solution (solution).

Services are further detailed in Section 5 (Scope of Work). It is the Inspector General's intent to award one (1) contract from this procurement.

This RFP also outlines the terms and conditions, and all applicable information required for submission of a proposal. To prevent possible disqualification and to ensure compliance with the requirements of the RFP, Proposers should pay strict attention to the proposal submission deadline and follow the format and instructions contained in this document.

Date	Event
Monday, March 3, 2025	Issuance of Request for Proposals
Monday, March 24, 2025, by 12:00 PM ET	Proposer Inquiries Due
On or about Monday, April 7, 2025	OIG's Response to Proposer Inquiries
Monday, April 28, 2025, by 12:00 PM ET	Proposal Submission Deadline
May – June 2025	Proposal Evaluation, Selection and Finalist Interviews
September, 2025	Anticipated Contract Start Date

The Offices of the New York State Inspector General (OIG) reserves the right to change any of the dates stated in this RFP.

MWBE Goal: 30% participation (15% MBE, 15% WBE)
SDVOB Goal: 0% participation

New York State certified MWBE's and SDVOB's may request that their firm's contact information be included on a list of firms interested in serving as a subcontractor for this procurement. The listing will be publicly posted on OIG's website for reference by the bidding community. A Proposer requesting inclusion on this list should send contact information and a copy of its certification to Procurement@ig.ny.gov. Nothing prohibits an MWBE or SDVOB from submitting a proposal as a prime contractor

Anticipated Contract Term: The contract shall commence upon approval by the Office of the New York State Comptroller (OSC) and shall be in effect for five years with an optional five year extension, unless sooner terminated as herein specified.

The procurement is in a restricted period in accordance with New York State Finance Law §139-j and 139-k from the date this RFP is issued until the contract has been approved by the OSC. All contacts/inquiries shall be made by email to the following address: Procurement@ig.ny.gov.

Designated Contacts for this Procurement:

- Director of Finance: Peter Amorosa
- Deputy Director of Finance: Justin Spencer

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1. General Information

1.1. Offices of the New York State Inspector General

The Offices of the New York State Inspector General (OIG) are comprised of three entities: the Office of the New York State Inspector General, the Office of the New York State Welfare Inspector General, and the Office of the New York State Workers' Compensation Fraud Inspector General. The mission of these entities is to identify and investigate allegations of corruption, fraud, criminal activity, conflicts of interest, or abuse within their respective areas of jurisdiction and to implement best practices, provide oversight, and conduct training. For a detailed summary of the jurisdiction of OIG see Appendix D.

1.2. Statement of need

OIG is seeking a user-friendly solution to perform, manage, and integrate its daily workflow processes and data systems.

The solution must be a Software-as-a-Service (SaaS) cloud-based delivery model where applications and data are hosted. While it must be understood that some features described in this RFP will require custom workflows and development, it is the expectation of OIG that any proposed solution will substantially be a commercial-off-the-shelf (COTS) product.

OIG relies heavily on its case management system (CMS) as a cornerstone for its complaint intake and investigation processes. This system serves as the primary platform for receiving, documenting, and managing complaints through the investigation lifecycle.

OIG's current CMS is antiquated, hampering its ability to effectively manage and track both complaint intake and investigative tasks. This outdated system suffers from slow performance and limited functionality, which significantly reduces productivity. It relies heavily on manual data entry and lacks automation features, leading to inefficiencies. The user interface is cumbersome and non-intuitive, making it difficult for staff to navigate and retrieve information quickly.

Additionally, the system does not integrate well with other essential software, resulting in data silos and redundant processes. Security vulnerabilities are also a concern. To address these issues and improve operational efficiency, it is imperative to replace this obsolete system with a modern, robust solution.

2. Current State

As described above, OIG utilizes an antiquated system, LawManager, to track complaint intakes and resolutions. Limitations of LawManager require OIG to utilize a separate network drive system to report and track investigative matters. Collectively, these two systems organize and document the entire investigative lifecycle and are referred to as OIG's CMS.

There are approximately 80,000 complaint records in the existing LawManager database along with related data elements such as electronic documents, audio recordings, and associated records. Approximately 6,000 new complaints are submitted each year.

Public complaints are submitted through various methods including telephone hotline, fax, email, mail, web-passed public submission portal, and in-person interactions. High-volume complaint worksheets containing numerous referrals are also received from partner entities. OIG's Case Management Unit (CMU) is responsible for receiving and processing all complaints. The complaint intake process involves manual data entry of all paper and digital complaints into LawManager. Complaint assignments are managed by CMU and tracked separately outside of OIG's CMS.

Upon entry into LawManager, complaints are assessed in aggregate and evaluated by senior OIG staff during a

Complaint Review Process (CRP). High-volume complaint worksheets are separately triaged and reviewed during a Triage Review Process (TRP). Assessments from CRP and TRP are tracked separately outside of OIG's CMS.

Advancement of complaints may include the assignment of referrals to jurisdictional agencies or investigation by OIG's Investigative Unit. Referrals typically require staff to manually create referral letters from document templates, distribute the letters via email, and track referral responses separately outside of OIG's CMS. Complaints elevated to investigative matters are assigned to OIG's Investigations Unit utilizing LawManager.

Limitations of LawManager require OIG to use a network drive as a file repository and to track investigative matters. This limitation requires most investigative records to be created and/or maintained outside of LawManager in a separate document repository. Investigatory documentation may include status updates, case narratives, interview summaries, analysis results, and reports. Approval workflows, document productions and investigation metrics are managed and tracked separately outside of OIG's CMS.

Investigative findings may be publicly released through reports and letters. Investigative findings are drafted into a narrative form by OIG staff. Draft reports and letters undergo multiple rounds of review, both internally and through peer review, to ensure the integrity and quality of the work. Investigative reporting drafts, versions, timelines and updates are stored on a network drive and managed separately outside of the CMS.

At the completion of an investigation, OIG ensures all aspects of the investigation are thoroughly addressed and documented. OIG staff conduct a comprehensive review of both LawManager and network drive locations to confirm that all investigative activities have been completed, and all findings are substantiated with appropriate documentation. Results are documented in OIG's CMS accordingly.

Once a case file reaches closure, it undergoes preparation for record retention. This involves organizing all case records, which may include both hard copy and electronic records as well as physical evidence, into a standardized format. The case file is then transferred to a secure location where it is stored according to OIG's document retention policies. Archival and document retention tracking is a manual process and also managed separately outside of the CMS.

OIG may receive Freedom of Information Law (FOIL) (New York State Public Officers Law Article 6) requests for records related to complaints or investigative matters. This involves identifying relevant records and assessing any exemptions that may apply. Once the review is complete, OIG may provide copies of the requested records in complete or redacted form pursuant to appliable laws, either through disclosure or explanation of any redactions made in accordance with applicable laws. OIG's FOIL process is handled manually, and all FOIL tracking is managed independently from the CMS and is discussed in detail in Section 5.1.1.8.3.

Overall, OIG's manual workflow and the adopted decentralized case management approach create several inefficiencies. A lack of a unified database complicates data sharing, analysis, and reporting, which impedes decision making and resource allocation. Additionally, a lack of standardization, leading to inconsistent data formats and processes across different units, complicates data integration and reporting. This fragmentation hinders the ability to gain a comprehensive view of cases, affecting decision-making and coordination. Moreover, OIG lacks the ability to use industry standard technology such as workflow automation, collaboration, system integration, and data reporting to effectively manage and track the lifecycle of an investigation. All the limitations specified present significant challenges to the case management of OIG investigations.

3. Future State

OIG plays a critical role in ensuring the efficiency, accountability, and transparency of agencies and entities under its jurisdiction. To enhance its effectiveness, OIG requires a state-of-the-art CMS solution that is comprehensive, secure, and efficient. An ideal future CMS for OIG would prioritize user experience, workflow automation, robust reporting, security, and seamless integration with other systems.

A user-friendly interface is essential for the CMS, providing customizable dashboards that display relevant case information, tasks, and alerts tailored to each user's needs. Simplified data entry through automated data population, drop-down menus, and templates will significantly reduce manual input, thereby increasing efficiency. Advanced search and filter capabilities will enable users to quickly locate specific cases, documents, and records, streamlining the overall workflow.

Workflow automation is another crucial aspect of an ideal CMS. Automated case assignment should be based on algorithms that consider staff workload, expertise, and availability, ensuring optimal resource utilization. Task management features will auto-generate and assign tasks with deadlines, reminders, and notifications, promoting timely case progression. Workflow templates for common investigation types will ensure consistency and reduce the manual effort required to initiate and manage cases.

Comprehensive reporting and analytics capabilities are vital for informed decision-making and transparency. The CMS must provide real-time reporting on case statuses, investigator performance, and other key metrics. A custom report builder will allow users to create tailored reports to meet specific needs, while advanced analytics tools will help identify trends, patterns, and anomalies in case data, offering deeper insights into investigative activities.

Given the sensitive nature of OIG investigations, the CMS must prioritize security and compliance. Role-based access control will ensure that users have access only to information relevant to their roles, minimizing the risk of unauthorized access. Data encryption, both in transit and at rest, will protect against data breaches. Additionally, maintaining detailed audit trails of all system activities will provide transparency and support compliance with legal and regulatory requirements.

Seamless integration capabilities are essential for the CMS to work effectively with other systems and data sources. The system must be interoperable with existing OIG and third-party systems. Integration with external databases and information sources will enrich case data and support comprehensive investigations. Application Programming Interfaces (APIs) and web services will facilitate data exchange and integration with third-party applications, enhancing the overall functionality of the CMS.

Mobile accessibility is crucial for supporting fieldwork and remote access. The CMS must be fully functional on smartphones and tablets, with a responsive design that adapts to various screen sizes. Offline access capabilities will allow users to access and update case information even without an internet connection, syncing data once connectivity is restored. Mobile notifications will keep users informed of important updates, tasks, and deadlines.

4. Proposer Qualifications to Propose

4.1. Minimum Qualifications

OIG will accept proposals from Proposers with the following types and levels of experience as a prime contractor:

- A minimum of five (5) years of experience providing SaaS.
- A minimum of two (2) years' total experience creating and operating an enterprise-wide CMS containing two (2) or more workflows.
- A minimum of one (1) year experience supporting a licensure SaaS platform with at least one (1) state or federal agency.

Experience acquired concurrently is considered acceptable.

For the purposes of this RFP, a "prime contractor" is defined as one who has the contract with the owner of a project or job and has full responsibility for its completion. A prime contractor undertakes to perform a complete contract and may employ and manage one or more subcontractors to carry out specific parts of the contract.

Failure to meet these Minimum Qualifications will result in a proposal being found non-responsive and eliminated from consideration.

5. Scope of Work

This section describes the SaaS requirements that must be provided by Selected Proposer. The solution requested must plan to address current system concerns and deficiencies from the beginning of the term as well as expand functionality over the life of the contract. **Selected Proposer must be able to provide all these services throughout the contract term.**

5.1. Saas Solution

5.1.1. Functional Requirements

A CMS is a collection of capabilities contained in one or more software applications that address the functional requirements of OIG. The following table is a high-level outline of the process activities and desired application capabilities to fulfill the functional needs of OIG.

5.1.1.1. Complaint Intake

Business/Organizational	
Process Activities	The complaint intake process involves the receipt, review, and initial handling of complaints regarding matters both within and outside of OIG's jurisdiction. Complaints are submitted by the public through various channels including an online portal, email, hotline, mail, fax, or in-person visits. High-volume complaint worksheets containing numerous referrals are also received from agencies and investigative partners. Upon receipt, CMU staff review and document the complaint to ensure it is within OIG's jurisdiction and includes necessary details such as the nature of the complaint, involved parties, and any supporting evidence.
Use Cases / User Stories	To perform these functions, the user: • Receives complaint information and supporting documents from various sources. • Creates a complaint record in the CMS. • Documents complainant and complaint information in the CMS. • Performs preliminary research into complaints and documents in the CMS.
Application	
Application Capabilities	The CMS must provide the following: Complaint Intake • Allow for the automated entry of complaint information. • Online portal for public to submit complaints and upload complaint detail documentation. • Capability to receive and record complaints from a dedicated shared mailbox. • Intake high-volume complaint worksheets and parse individual complaints into separate complaint records. • Allow the automated entry of complaint information from third-party systems via information exchanges. • Allow for manual input of complaint record entries. Complaint Assignment and Documentation • Ability to assign, manage, and track complaint assignments to CMU staff. • Provide alerts and notifications of CMU staff complaint assignments. • Generate and assign an internal complaint number for each record using locally-defined format and procedures. • Automatically search itself for existing complaint records that can be used to identify and link together multiple individuals and events. • Allow the user to merge or link records if duplicates or related complaints are found. • Offer the ability to add and maintain: ○ Complaint details. ○ Complainant information, location, and contact information. ○ Entity names, locations, and contact information. ○ Staff names and contact information. • Generate and assign separate identifiers for each staff member or entity. • Enter data and create, receive, store, and index documents related to a complaint. • Allow the user to create all documents needed for filing based on the records and document management functionality. • Support electronic filing of documents. • Flag confidential and sensitive information and restrict access to specified users.
Data Exchanges	No additional data exchanges were identified for this function.

5.1.1.2. Complaint Assessment (CRP/TRP)

Business/Organizational	
Process Activities	OIG complaint assessment process involves a thorough evaluation of received complaints to determine their validity and the appropriate course of action. After initial intake, the complaint is reviewed to verify its completeness and relevance to OIG's jurisdiction. This involves analyzing the details provided, such as the description of the issue, involved parties, and any supporting materials. Complaints are assessed in aggregate and advanced by OIG during a Complaint Review Process (CRP). Some high-volume complaint worksheets are separately triaged and reviewed during a Triage Review Process (TRP). Based on the evaluations, OIG decides whether to pursue an investigation, refer the matter to another agency, close the complaint or take other action as appropriate.
Use Cases / User Stories	To perform these functions, the user: • Performs a weekly review of complaints, evidence, facts, and other supporting information received. • Determines whether to pursue an investigation, refer the matter to another agency, or close the complaint based on the evaluation. • Identifies OIG office and staff assignments and next steps for the investigation.
Application	
Application Capabilities	The CMS must provide the following: • Customizable grid view that summarizes and is linked to weekly complaint master records. • The ability to filter view by timeframe. • Views which allow for collaboration and input of notes from multiple users simultaneously. • View which enables users to quickly review and efficiently execute various actions.
Data Exchanges	No additional data exchanges were identified for this function.

5.1.1.3. Complaint Processing and Advancement

Business/Organizational	
Process Activities	After the assessment, complaints are advanced, recorded in the CMS and appropriately directed for further action. Advancement of complaints may include the assignment of referrals to jurisdictional agencies or to OIG investigative staff for investigation. Referrals to jurisdictional agencies require notification through either email or letter correspondence. Investigative matters are assigned to OIG Investigations team for in-depth analysis.
Use Cases / User Stories	To perform these functions, the user: • Reviews and document results from the CRP process. • Creates the CMS case for complaints deemed as investigations. • Assigns investigator(s) to the case. • Provides complaint documentation to the investigations team for detailed investigation. • Generates referrals to jurisdictional agencies and responses to complainants through either email or letter correspondence.
Application	
Application Capabilities	The CMS must provide the following: • Generate and assign an internal case number for each record using locally-defined format and procedures. • Automatically search itself for pre-existing case records that can be used to identify and link together multiple individuals and events. • Allow the user to merge or link records if duplicates or related cases are found. • Offer the ability to add and maintain: ○ Case details. ○ Entity names, locations, and contact information. ○ Staff names and contact information. • Generate and assign separate identifiers for each staff member or entity. • Assign cases to individuals or groups for detailed investigation. • Enter data and creates, receives, stores, and indexes documents related to a case. • Allow the user to create all documents needed for filing based on the records and document management functionality. • Support electronic filing of documents. • Flag confidential and sensitive information and restrict to specified users. • Generate referrals to outside parties through either email or letter correspondence. • Create documents using standardized templates and creates custom documents using MS Word or an equivalent word processor. • Sends and receives documents electronically via email and automatically log when documents are sent and received. • Provide alerts and notifications of referral acknowledgement deadlines.
Data Exchanges	No additional data exchanges were identified for this function

5.1.1.4. Investigations

Business/Organizational	
Process Activities	OIG investigations are thorough, independent inquiries conducted to detect, prevent, and address instances of corruption, fraud, criminal activity, conflicts of interest or abuse in any agency or entity over which OIG has jurisdiction or violations of law or regulations within New York State's workers' compensation or public assistance systems. Once an investigation is initiated, investigative teams gather information through interviews, document reviews, surveillance and other activities. There are multiple types of investigations that may have different case tracking requirements and include different components.
Use Cases / User Stories	To perform these functions, the user: • Conducts multiple investigatory techniques, including surveillance, witness/target interviews, investigative document review, digital forensics, and financial record analysis. • Produces subpoenas and warrant requests as needed. • Collects and maintains evidence, documentation, statements, and other materials related to the case. • Meets with staff and external partners to advance investigation. • Prepares cases for prosecution and agency administrative actions. • Manages caseloads and investigators' priorities including producing: ○ Case summary reports. ○ Case pending reports. ○ Case aging reports. ○ Investigative notifications and alerts. • Meets with staff to make key decisions.
Application	
Application Capabilities	The CMS must provide the following: • Customizable workflow processes for document creation, review, approval, and publishing. • Personalized dashboard highlighting agency, staff, and case milestones and tasks. • Track the start and end time of each phase of the investigation. • Automated notifications and alerts for workflow stages. • Assign additional investigative staff to the case. • Limit access to case information for security and privacy. • Perform investigator(s) and agency case deconfliction. • Monitor/track case assignments and manage staff assignments. • Create and track tasks assigned to individuals. • Case calendars that document and report on investigative meetings and appointments. • Create requests and approvals for Request for Information (RFI), investigative fieldwork, subpoena, and warrant requests. • Track the history of case events, including results of the event. • Record casework and specific details in multilevel case narratives. • Allow changes to events without affecting the historical case records. • Ability to identify trends in data across a variety of case and entity indices for investigation support. • Quality control approvals of digital forensics, and financial record analysis results. • Ability to create and utilize fieldwork, subpoena, warrant, and other case form templates from information within system. • Support electronic filing of documents. • Ability to create, edit, and collaborate with others on documents within the system in

	real time. • Ability to electronically sign or electronically approve documents. • Field, global, and attachment index search capabilities. • Facilitates secure document file transfers and logging of submissions. • Assistance with investigative administrative requests. • Customizable grid view that summarizes assignments and status to facilitate case reviews. Case closure checklist and approvals for finalization.
Data Exchanges	The CMS must provide connections to data exchanges including but not limited to: • Lexis Nexis Accurint • NYS eJustice • PMI Evidence Tracker • NYS DCJS Law Enforcement Statute Directory • Adobe Acrobat

5.1.1.5. Investigative Reporting

Business/Organizational	
Process Activities	OIG investigative letter and report writing process involves several critical steps to ensure accuracy and comprehensiveness. Initially, investigative teams conduct interviews and gather and analyze evidence, including documents, and digital data. This information is then organized into a detailed outline, highlighting key facts and issues. Next, when appropriate, staff draft a letter to an agency or a public report, ensuring clarity, objectivity, and thorough documentation of all relevant information. The draft undergoes multiple reviews for factual accuracy, legal compliance, and adherence to OIG standards. Feedback from these reviews is incorporated, and the letter or report is finalized. The final letter or report is then approved by the Inspector General before being disseminated to appropriate parties and/or issued to the public on OIG's website.
Use Cases / User Stories	To perform these functions, the user: • Collaborates to identify the scope of reporting. • Drafts the report or letter of all relevant information. • Collaborates with the investigative team to perform a review of the draft. • Finalizes the draft with approved edits from chain of command. • Provides subject agency draft report or letter for review. • Collaborates with Inspector General to sign and finalize report or letter. • Mails hard copy report or letter to the subject agency and/or issues to the public on OIG's website.
Application	
Application Capabilities	The CMS must provide the following: • Pre-defined templates for consistent letter and report formatting. • Ability to create and customize template. • Rich text editor (MS Word) with formatting options. • Real-time document collaborative editing. • Version control for tracking changes and reverting to previous version. • Customizable workflow processes for document creation, review, approval, and publishing. • Escalation and de-escalation mechanisms for letter or report handling. • Automated notifications and alerts for workflow stages. • Identify and redact any information that is exempt from disclosure. Store copies of the drafts and final reports or letters for future reference
Data Exchanges	No additional data exchanges were identified for this function.

5.1.1.6. Case Record Retention

Business/Organizational	
Process Activities	OIG record retention process involves the systematic storage and management of electronic and hard copy records throughout their lifecycle. The retention phase ensures that all investigative documents and materials, both hard copy and electronic, are securely stored in an organized and accessible manner. During the retention phase, records are maintained for a specified period according to legal, regulatory, and organizational requirements to ensure compliance and support operational needs.
Use Cases / User Stories	To perform these functions, the user: • Identifies which documents need to be retained based on policy. • Collects all documents that are to be retained. • Ensures all necessary documents are complete and accurate. • Categorizes documents into relevant groups for easier management and retrieval. • Creates an index system for the documents to facilitate easy retrieval. • Labels both physical and digital documents with appropriate identifiers. • Stores physical documents in a secure, climate-controlled environment. • Stores digital documents in a secure, backed-up digital repository. • Defines who can access the retained documents and under what conditions. • Implements a retrieval system (e.g., search functionality) that allows authorized personnel to easily find and access the documents they need.
Application	
Application Capabilities	The CMS must provide the following: • Ability to automatically retain cases based on predefined criteria such as case status, age, or completion. • Robust metadata handling to capture details like case number, relevant dates, involved parties, and case type. • Support for digital preservation formats to ensure long-term accessibility of case documents. • Tracking and managing different versions of case documents. • Tools to index and categorize cases for easy retrieval. • Ability to define and enforce retention policies based on regulatory requirements and organizational needs. • Automated scheduling to manage the retention period for each case, including notifications of upcoming retention deadlines. • Comprehensive audit trails to log access and modifications of case records for compliance and monitoring.
Data Exchanges	OIG Record Retention Inventory PMI Evidence Tracker

5.1.1.7. Case Record Disposition

Business/Organizational	
Process Activities	OIG record disposition process involves the final handling and resolution of records at the end of their retention period. This process includes evaluating records to determine whether they should be securely destroyed or permanently preserved based on policy and other requirements. Secure destruction involves methods such as shredding, incineration, or deletion to ensure that sensitive information is irretrievably eliminated. Some records will be identified and selected for transfer and permanent long-term preservation as per policy.
Use Cases / User Stories	To perform these functions, the user: • Identifies which documents need to be destroyed based on the disposition policy. • Retrieves physical documents from the secure, climate-controlled environment.

	• Retrieves digital documents from the secure, backed-up digital repository. • Ensures all necessary documents are complete and accurate. • Follows the established retention schedule to determine when documents should be disposed of. • Ensure documents are disposed of securely to protect sensitive information.
Application	
Application Capabilities	The CMS must provide the following: • Define rules and workflows for the secure disposal of case records at the end of their retention period. • Workflow for obtaining approvals from relevant authorities before case records are disposed of. • Ensure that case records are securely deleted or destroyed, following industry standards and regulations. • Comprehensive audit trails to log secure deletions of case records for compliance and monitoring. • Generate reports detailing records scheduled for disposition, those disposed of, and those retained for legal holds or other reasons.
Data Exchanges	OIG Record Retention Inventory PMI Evidence Tracker

5.1.1.8. Case Support and Services

5.1.1.8.1. Evidence

Business/Organizational	
Process Activities	During the course of investigations, there are instances where OIG obtains and secures hard copy and electronic evidence. OIG may maintain control of evidence throughout the entirety of an investigation and must do so in accordance with best practices related to security and chain of custody. All evidence must be uniquely identified and inventoried within the CMS. Currently, OIG manages physical evidence using a third-party system. Electronic evidence is stored on a secure server. At the end of an investigation, evidence is retained and/or disposed of based on OIG policy and practice.
Use Cases / User Stories	To perform these functions, the user: • Catalogs and categorizes evidence. Upon the receipt of evidence, the user enters unique identifiers, descriptions, and categories, and who provided the evidence when. • Ensures that all evidence is marked and all records have not been altered. • Maintains a chain of custody and ensures the security of the evidence. • Edits the status of evidence when it is released to the rightful owner. • Tracks the release of evidence for investigation and court purposes. • Creates media and document copies of evidence at the request of the investigator, defense attorney, court, etc. • Approves the destruction of evidence/property at the conclusion of a case.
Application	
Application Capabilities	The CMS must provide the following: • Integration with OIG's current physical evidence tracking system. • Development of an OIG electronic evidence tracking system. • Add and relate evidence to a case. • Audit any actions to ensure a chain of custody and authenticity. • Track date/time received, received by whom, evidence type/description, and provided to another entity (who/when). • Enable sharing of appropriate evidence with relevant parties during discovery and

	maintain a complete chain of custody. • Track evidence status, including ready for destruction, and provide an approval for law enforcement to destroy the evidence.
Data Exchanges	PMI Evidence Tracker

5.1.1.8.2. Discovery

Business/Organizational	
Process Activities	New York State Criminal Procedure Law Article 245 outlines the legal obligations of the prosecutor and defendant in a criminal matter to exchange relevant information about the case. As a law enforcement agency with investigative matters that frequently result in prosecution, OIG has an obligation to identify and provide to the prosecutor material covered by Article 245. Materials provided in discovery must include exculpatory evidence and information relevant to the credibility of witnesses.
Use Cases / User Stories	To perform these functions, the user: • Categorizes case information, evidence, and other materials as discoverable or non-discoverable upon their receipt or when sought under discovery. • Digitizes case materials where practical. • Identifies, labels, and sequentially numbers case materials. • Reviews case materials to meet privacy requirements. • Inventories case materials in the CMS and metadata is added about the material. • Reviews case materials to determine whether exculpatory evidence is contained in the materials. • Reviews OIG personnel records to determine if material relevant to the credibility of witnesses, i.e., "Giglio material" (*Giglio v. United States*, 405 U.S. 150 (1972)) is available about any witness intended to be called by the prosecution and ensures that information is included in discovery. • Notifies defense counsel of available discovery and ensures discoverable items are transferred accordingly. • Records discovered items, including recipient information and acknowledgement.
Application	
Application Capabilities	The CMS must provide the following: • Enable the user to inventory all items related to a case, record relevant descriptive data about the items, and designate items as either discoverable or non-discoverable. • Integrate discovery processing with the document management and evidence management capabilities. • Enable the production of discovery materials where appropriate, such as digitized evidence or digitized documents, and ensure that these materials cannot be altered. • Track the distribution of discovery items; the system must track all discovery and disclosure items exchanged by description, date/time of transfer, entities providing items, and entities receiving items. • Integrate with other case data, such as party information, to eliminate duplicate data entry. • Allow each piece of discovery to be uniquely identified and numbered, if appropriate (Bates numbering or sequential page numbering spanning multiple documents). • Capability to protect specific data elements from discovery. • Capability to obscure or redact portions of images, videos and digitized materials to protect identities. • Ability to track and manage all discovery activities beginning with the request or trigger for discovery through delivery of discovery. Triggers for discovery must be configurable

	and user defined. • Make metadata and other data elements associated with the discovery and disclosure process configurable by the appropriate end user. • Allow the discloser of the *Giglio* list related to the case. • Facilitate secure document file transfers and logging of submissions. • Make access to the discovery capabilities controllable by the appropriate end user.
Data Exchanges	The CMS must provide connections to the following data exchanges: • Adobe Acrobat

5.1.1.8.3. FOIL

Case Support and Services – FOIL	
Business/Organizational	
Process Activities	OIG Freedom of Information Law (FOIL, see New York State Public Officers Law Article 6) process involves the systematic handling of public records requests. First, a requestor submits a FOIL request specifying the desired records. Upon receipt, OIG reviews the request to determine the availability of the records and whether any exemptions apply. OIG then acknowledges the request and may seek clarification if necessary. The records are gathered, reviewed for sensitive information, and redacted as required by law. Finally, OIG provides the requestor with the records, either in full or with necessary redactions, and informs them of any withheld documents and the reasons for withholding.
Use Cases / User Stories	To perform these functions, the user: • Receives the FOIL request from the requester via email, postal mail, online forms, or in-person. • Acknowledges the receipt of the request within the time frame specified by law. • Examines the request to understand the scope and specificity. • Seeks clarification from the requester if necessary. • Determines which departments or individuals hold the requested records. • Searches for and compiles the requested records. • Documents search efforts. • Examines the gathered records to determine if they are responsive to the request. • Identifies and redacts any information that is exempt from disclosure. • Annotates the redactions, providing justifications for why certain information was withheld. • Provides the requester with responsive records. Includes an explanation of any redactions or withholdings. • Keeps detailed records of the entire FOIL process, including the request, search efforts, correspondence, and the final response. • Stores digital copies of the requested records and the response provided for future reference. • If an appeal is filed, reviews the basis of the appeal and re-examine the original request and response. • Decides whether to uphold the original response or to provide additional records or information. • Notifies the requester of the decision regarding the appeal, providing a detailed explanation.
Application	

Application Capabilities	The CMS must provide the following: • A separate CMS module dedicated to FOIL. • Interfaces with Complaint and Investigative CMS. • Online portal for the public to submit FOIL requests. • Capture and log incoming FOIL requests, including requestor details, date of submission, and nature of the information requested. • Assign requests to appropriate staff members and track the status of each case throughout its lifecycle. • Store and organize documents related to each request, including submitted forms, internal communications, and responsive records. • Facilitate communication between requestors and the agency, including automated acknowledgments, updates, and responses. • Alerts and notifications of upcoming request deadlines. • Ensure adherence to legal deadlines and requirements, generating reports on request processing times, compliance rates, and other key metrics. • Advanced search capabilities to locate and retrieve relevant documents and information quickly. • Allow for the redaction of sensitive or exempt information from documents before release. • Maintain a detailed log of all actions taken on each request, ensuring transparency and accountability. • Control access to the system and its data, ensuring that only authorized personnel can view or edit sensitive information. Generate insights and statistics on FOIL requests, helping to identify trends, bottlenecks, and areas for improvement.
Data Exchanges	The CMS must provide connections to the following data exchanges: • Complaint and Investigative CMS modules • Adobe Acrobat

5.1.2. Non-Functional Requirements

Non-functional requirements are critical aspects of a CMS that define its operational characteristics. The following is a high-level outline of the CMS process activities and desired capabilities to fulfill the needs of OIG.

5.1.2.1. Entity Management

The solution must establish a centralized platform that efficiently organizes and maintains the seamless tracking, updating, and maintenance of entity data throughout its lifecycle. The system should allow users to create, view, edit, and store detailed contact profiles, including communication history, and key personal data, ensuring quick and accurate access to entity information. Additionally, the system should integrate with external databases and support real-time reporting. Advanced search and filtering capabilities are essential to quickly locate specific contacts or interaction records.

5.1.2.2. Task Management

The solution must allow for the efficient creation, assignment, tracking, and completion of tasks related to cases. This system should support detailed task descriptions, priority levels, due dates, and responsible parties to ensure clarity and accountability. Features must include automated reminders and notifications to keep users informed of upcoming deadlines and task statuses, as well as the ability to set recurring tasks for ongoing activities. Additionally, the system should provide robust reporting and analytics capabilities to monitor task progress, identify bottlenecks, and optimize workflow processes. Integration with calendar and project management tools is essential for a seamless user experience.

5.1.2.3. Workflow Automation

The solution must streamline and automate the processes associated with handling cases. This system should support the creation and customization of workflows to reflect OIG's unique procedures and case types. Key features include the ability to define sequential and parallel tasks, set conditional triggers, and establish approval processes to ensure that each case progresses smoothly and efficiently. The system must facilitate real-time tracking of workflow stages, provide visibility into bottlenecks, and offer analytics to assess performance and optimize processes. Integration with other tools and systems is crucial for cohesive operations, enabling seamless data sharing and collaboration. Additionally, the system should support role-based access controls to ensure that only authorized personnel can perform specific actions within a workflow.

5.1.2.4. Communication and Calendaring

The solution must feature robust calendaring and communication integration capabilities to streamline operations and enhance coordination. The system should seamlessly integrate with commonly used calendar applications (such as Microsoft Outlook) to enable users to schedule, track, and manage appointments and deadlines directly within the case management interface. Additionally, it should provide built-in communication tools or integrations with popular email and messaging platforms, allowing users to send, receive, and archive messages related to case activities without leaving the system. This integration will ensure that all relevant scheduling and communication data are centralized, easily accessible, and synchronized, thereby improving efficiency and collaboration across case management processes.

5.1.2.5. User Dashboards and Analytics

The solution must feature customizable dashboards that provide real-time insights into key metrics and performance indicators. It should offer comprehensive Business Intelligence (BI) analytic tools to process and visualize data, enabling users to generate detailed reports and identify trends. It should deliver alerts and notifications for key updates. The system must support drill-down functionality, allowing users to explore data at granular levels and provide access to complete case files. Additionally, it should include predictive analytics to forecast future trends and outcomes. The ability to create and share interactive dashboards and reports across OIG is essential, fostering data-driven decision-making and enhancing overall operational efficiency.

5.1.2.6. Data Extraction Reporting

The solution must enable the generation of detailed reports and provide insightful analytics to inform decision-making and improve overall performance. It should offer customizable report templates related to case handling, such as case load, resolution times, and resource utilization. It must support exporting reports in CSV, Excel, XML, and PDF formats, ensuring flexibility in data handling. Advanced filtering and sorting capabilities are essential for drilling down into specific data subsets. The system should allow users to create and save repeatable search queries for efficient and consistent data retrieval. Automated report generation, along with email and notification delivery, streamline communication and information dissemination ensure timely and accurate information. The system should support predictive analytics to identify patterns and forecast future trends, enabling proactive management. Integration with other data sources and business intelligence tools is crucial for a holistic view of operations. Additionally, it should incorporate tiered reporting access through permission security groups to maintain data security and control.

5.1.2.7. Artificial Intelligence

The solution must leverage advanced artificial intelligence (AI) technologies to enhance the system's analytical and reporting capabilities. These requirements include the use of machine learning algorithms and natural language processing to automate data analysis, generate insights, and identify trends from case data. The system should offer predictive analytics to forecast case outcomes, identify potential issues, and suggest proactive measures. AI-driven reporting tools must provide real-time data visualization, customizable dashboards, and interactive reports that enable users to explore data dynamically. Additionally, the system

should support automated report generation and distribution, reducing manual effort and ensuring timely access to critical information.

5.1.2.8. Document Management

The solution must provide a cloud-based, centralized, secure, and efficient platform for storing, organizing, and retrieving all case-related documents. The system should support a wide range of file types and offer robust search capabilities, including metadata tagging and full-text search, to quickly locate specific documents. Key features must include version control to track changes and maintain document history, ensuring that the most current and accurate information is always accessible. The system should be capable of handling and storing unlimited data sizes without any restrictions. It should support the viewing and playback of various data formats. Integration with other tools and applications, such as email and cloud storage services, is essential for seamless document handling and sharing.

Additionally, the system should offer stringent security measures, such as encryption, role-based access controls, and audit trails to protect sensitive information and ensure compliance with regulatory standards. Automated workflows for document approval and retention policies help streamline processes and reduce administrative overhead.

5.1.2.9. Mobile Accessibility

The solution must allow users to access and manage case-related information from any mobile device. This system should provide a seamless user experience across smartphones, tablets, and other mobile devices, offering full functionality equivalent to the desktop version. Key features must include a mobile-friendly interface, touch-optimized navigation, and offline access capabilities to ensure productivity even without an internet connection.

The system should support secure login methods, such as biometrics or multi-factor authentication, to protect sensitive data. Real-time synchronization ensures that all updates and changes are reflected across devices instantly. Integration with mobile-specific features, such as push notifications for task reminders and case updates, enhances responsiveness and efficiency.

5.1.2.10. Data Integration

The solution must efficiently connect with and incorporate data from various external systems and databases. This system should support standard data exchange protocols and APIs to facilitate real-time, bidirectional data flow between the CMS and other enterprise applications. Key features must include robust data mapping and transformation capabilities to ensure consistency and accuracy of integrated data. The system should also support automated data synchronization to minimize manual data entry and reduce the risk of errors. Security measures, including encryption and access controls, are crucial to protect data integrity and confidentiality during integration processes. Additionally, the system should provide comprehensive monitoring and logging functionalities to track integration activities and troubleshoot issues promptly.

5.1.2.11. Customizable Forms

The solution must provide users with standardized formats and structures for creating, generating, and managing documents essential to case handling. These templates should offer predefined layouts, headers, footers, and placeholders for key information, ensuring consistency and adherence to OIG guidelines. Key features include customizable fields, such as case names, case numbers, and dates, to dynamically populate information across multiple documents. Users should have the ability to tailor document templates to specific case types or stages, incorporating necessary legal language, disclaimers, or industry-specific requirements. Integration with document management to ensure efficient tracking and management of document revisions. Secure storage and access controls are essential to protect sensitive information contained within document templates, safeguarding confidentiality and compliance.

5.1.2.12. Data Views

The solution must provide users with customizable and dynamic interfaces to visualize and interact with case-related information effectively. These views should offer flexible options to display data in various formats, such as tables, charts, graphs, and timelines, tailored to meet specific user needs and preferences. Key features include the ability to filter, sort, and group data dynamically to analyze trends, track progress, and identify patterns within cases. Users should have the capability to create personalized dashboards and reports that consolidate relevant information from multiple sources, facilitating informed decision-making and operational transparency. Integration with real-time data updates ensures that information displayed in data views remains current and accurate. Secure access controls and encryption protocols are essential to protect sensitive data accessible through data views, ensuring compliance with privacy regulations.

5.1.2.13. Compliance Management

The solution must establish robust features and protocols to ensure adherence to legal and regulatory standards throughout the handling of cases. This includes comprehensive tracking and documentation of compliance-related activities, such as deadlines, approvals, and requirements specific to each case type. Key features include automated alerts and notifications to remind users of compliance deadlines, integration with regulatory databases for real-time updates on legal requirements, and audit trail functionalities to track changes and actions taken within the system. The system should support customizable workflows that enforce compliance protocols and approval processes, ensuring that all actions taken are in accordance with established policies and regulations. Secure storage and access controls are crucial to protect sensitive compliance-related information, maintaining confidentiality and integrity.

5.1.2.14. Case Notes and Activity Logs

The solution must provide a structured and detailed mechanism for recording and tracking all interactions, decisions, and updates related to cases. This system should offer users the ability to create comprehensive case notes that document key details, such as communications, meetings, progress updates, and actions taken. Key features include timestamped entries to maintain a chronological history of case activities, standard labels to categorize activity types, customizable templates to standardize note formats, and the ability to attach files or links relevant to each entry. Integration with calendar and task management functionalities ensures that scheduled activities and deadlines are captured and reflected in the activity log. Secure access controls and encryption protocols are essential to protect the confidentiality of case notes and activity logs.

5.1.2.15. Public Client Services

The solution must allow members of the public to submit, access, and interact with their complaint and case information. This portal should provide members of the public with a personalized location where they can submit information, upload documents, and view case status updates. Key features include secure login authentication, ensuring only authorized access to sensitive information, and integration with case management functionalities to provide real-time updates on case progress and milestones. The portal should support self-service capabilities, such as online forms for submitting information or requests, and offer multilingual support to accommodate diverse needs.

5.1.2.16. Collaboration Tools

The solution must provide robust features and functionalities that facilitate seamless communication, information sharing, and teamwork among case managers, support staff, and stakeholders. This tool should offer real-time document sharing and co-editing functionalities to facilitate collaborative work on case-related documents, ensuring version control and tracking changes. Integration with task management and workflow automation tools enables assignment of tasks, setting deadlines, and tracking progress collaboratively. The collaboration tool should support secure access controls, encryption, and audit trails to protect sensitive case information and maintain confidentiality. Additionally, it should provide customizable notifications and alerts to keep team members informed of updates and milestones.

5.1.2.17. Data Processing and Parsing Tools

The solution must incorporate advanced data processing, parsing, and ingestion tools. The system must be capable of efficiently extracting, analyzing, and transforming worksheet data into individual CMS records ensuring seamless integration and utilization of diverse data sets. It should support multiple data formats including CSV and Excel and provide robust tools for data segmentation, manipulation, and interpretation. Additionally, the system must ensure data accuracy and integrity during processing and ingestion.

5.1.2.18. Architecture Scalability and Flexibility

The solution must accommodate varying needs, growth, and evolving case management requirements. The system should support scalable architecture that can handle increasing volumes of cases, users, and data without compromising performance. Key features should include modular design to easily add or modify functionalities. Flexibility in configuring workflows, forms, and reports tailored to specific case types or departments is imperative. It should provide end users with a comprehensive and user-friendly interface to easily update workflows, fields, and templates as needed by end-users. The system should integrate seamlessly with existing IT infrastructure and third-party applications to facilitate interoperability and extend functionality. Cloud-based deployment options and elastic scalability enable the system to expand resources dynamically in response to fluctuating demands. Additionally, the system should provide robust security measures, such as data encryption, role-based access controls, and compliance with industry standards and regulations, to protect sensitive information as the system scales.

5.1.2.19. Data Query Capability

The solution must support advanced search options, including keyword search, Boolean operators, and filters based on various criteria such as case numbers, entity names, dates, and document types. Key features include real-time indexing of data to ensure that search results are up-to-date and comprehensive, even across large datasets. Integration with metadata tagging and OCR technologies enhances search accuracy by enabling precise filtering and retrieval of specific document content within attachments. The system should offer customizable search parameters and saved search functionalities to streamline repetitive queries and improve user productivity. Secure access controls and encryption protocols are essential to protect sensitive information during search operations, ensuring compliance with data privacy regulations.

5.2. Tasks / Deliverables

The implementation of the CMS requires the delivery of several key components to ensure its effectiveness and alignment with operational needs. The following deliverables are crucial for achieving a successful and efficient case management solution.

5.2.1. Implementation Plan

Selected Proposer must create an implementation plan addressing timeline, milestones, phases, modules, assumptions, requirements, dependencies, expectations, and any other details necessary.

It is OIG's expectation that the solution be fully implemented within 270 days after contract approval by the OSC with deliverables going live as they are ready.

A finalized plan must be received by OIG within 60 calendar days after contract approval.

At a minimum, the implementation plan must address:

A. Data Repository
B. Workflow Process Management
C. Joint Development and Quality Assurance
D. Legacy System Migration

E. Training
F. Solutions Performance Metrics and Incident Reporting
G. Project Management
H. Staffing
I. Hosting and Licensing
J. Solution Platform
K. Accounts/Permission Groups
L. History Logs
M. Business Continuity
N. Solution Enhancements/Change Requests
O. Security
P. Implementation Acceptance
Q. End of Service Transition

5.2.2. SaaS Solution Development

The SaaS Solution deliverable shall address all of the Functional and Non-Functional Requirements stated here in, as well as the management needs.

5.2.2.1. Data Repository

The solution must provide a perpetual repository to store and manage data from the past, present, and future.

The solution must support the creation, modification, and management of various database fields. These fields should include a mix of static values that remain unchanged, as well as dynamic values that may evolve. For dynamic data, the system should implement version control, allowing users to track and retrieve historical changes to ensure a complete audit trail. The repository must also provide advanced query capabilities, including filtering and sorting, to enable users to access and analyze both current and historical data quickly. The ability to configure custom fields and integrate external data sources is essential to allow for the flexibility and adaptability of the system as new data requirements arise.

OIG Investigative Matter Data Dictionary (Appendix E) offers detailed descriptions of all data fields utilized within the investigation's module of the desired CMS solution.

OIG FOIL Matter Data Dictionary (Appendix F) offers detailed descriptions of all data fields utilized within the FOIL module of the desired CMS solution.

The solution must also include a document management library to store, organize, and retrieve a wide array of documents associated with case data. This library should allow users to upload documents, such as contracts, legal forms, reports, and supporting materials, with metadata tags for easy search and categorization. Each document should be linked to the appropriate case or entity, and the repository must support both document versioning and audit tracking, enabling users to view past versions and see who made changes.

5.2.2.2. Workflow Process Management

The solution must automate the daily business tasks and processes of OIG, including tasks that require a series of multidirectional steps for completion, and steps that require human deliberation, such as an approval or additional future enhancements. The solution must provide the ability for electronic workflow processes, both internally within OIG and externally between OIG and its clients including complainants and FOIL requesters, as described in Section 5.1.1.1 and 5.1.1.8.3.

OIG Investigative Matter Workflow (Appendix G) provides a visual representation of OIG's current complaint intake and investigations workflow.

OIG FOIL Matter Workflow (Appendix H) provides a visual representation of OIG's current FOIL workflow.

A. Processes must be user-defined and customizable by OIG and include the ability to change or introduce new tasks (processes) into any operation at any time.
B. For processes requiring approvals, the solution workflows must manage such approvals, including authenticating electronic signatures across all types and levels of users.
C. Once a workflow is initiated, it must securely and electronically pass in a multidirectional and tiered workflow process between parties needing to view/take action on the workflow.
    i. Workflow processes and assignment of parties must be user-defined and customizable by OIG, and changeable at any time.
D. At all times, all parties involved in a workflow must be able to view the progress of the workflow, including any form or attachment submitted or uploaded;
    i. Provided that, no party (except those with OIG assigned "Super User" accounts) may take action on a workflow until the workflow has reached the processing step in which the party would normally be allowed to take action.
    ii. All documents shall be user-defined and customizable by OIG.
E. Once final action is taken on a workflow (meaning, the workflow process is closed or complete), the corresponding repository record must be automatically created/modified and the details of the workflow, with all forms/attachments and transactions, made a permanent part of that record.

5.2.2.3. Joint Development and Quality Assurance

Selected Proposer must include a period of collaboration with each OIG organizational unit at onset and throughout the solution's development.

Selected Proposer will work closely with our team during the development phase, iterating on system requirements, gathering feedback, and refining functionalities for each organizational unit. This includes building prototypes, conducting detailed testing, and supporting user validation until the system aligns with both our technical and operational standards.

During the development phase, the Selected Proposer will be required to collaborate closely with OIG to thoroughly test and validate the development workflows against established standards and requirements. This will involve a series of iterative testing sessions, where the Selected Proposer works directly with relevant stakeholders to ensure that all workflows function as intended and adhere to the agency's operational procedures. All test results and workflow adjustments must be reviewed and approved in writing by OIG before any further development or deployment can proceed.

Experience in facilitating cross-departmental collaboration and adapting workflows to the needs of diverse user groups will be critical for success.

5.2.3. Legacy System Migration

As part of the implementation of a new CMS, OIG intends to migrate data from the existing LawManager platform and network drive locations to the new CMS solution. The existing legacy data for migration includes:

A. LawManager Records: Approximately 7 GB of data records stored in OIG's current LawManager system.
B. LawManager Documents: Approximately 700 GB of case-related documents associated with LawManager, saved on an existing network storage drive.
C. Network drive data: Approximately 6 TB of various case-related documents stored on the existing network storage drive.

Selected Proposer, in collaboration with the LawManager migration vendor and OIG, will oversee the legacy migration, ensuring minimal disruption to ongoing operations. Selected Proposer is tasked with developing a

comprehensive migration plan that encompasses data cleansing, mapping, and transformation to align with the new system's structure. Throughout the process, Selected Proposer must ensure data security and compliance, conducting thorough testing and validation to guarantee data integrity and accuracy.

Additionally, Selected Proposer must provide clear documentation of the migration process, regular progress updates, and post-migration support and training for end-users. Effective communication and collaboration with internal stakeholders and the LawManager migration vendor are essential to address any issues promptly and ensure a seamless transition to the new CMS.

5.3. Training

Selected Proposer must provide ongoing training and training documentation to OIG throughout the life of the contract.

A. OIG anticipates requiring approximately 300 hours of training for staff which, as determined by OIG, must be spread over the life of the contract to meet staffing and solution implementation needs. The actual number of hours per year may fluctuate based upon actual need.
    i. In the event where OIG requires additional training hours than those initially estimated, OIG reserves the right to request in writing that Selected Proposer provide additional hours of training, which will be billed based upon the hourly rate bid in Selected Proposer's Form 1, Cost Proposal.
B. Selected Proposer may not charge for training provided by previously recorded video, tutorial, or other self-study method. All training provided live online can be recorded and stored by OIG for future use as reference material for staff.
C. Such training must be specific to OIG's CMS solution and must not be construed to mean or involve the use of any other support or "ticketing" system currently used by Selected Proposer.
D. Selected Proposer must provide an electronic tracking system, accessible and monitored by both Selected Proposer and OIG, that will manage and track all training hours provided during this contract to include (at a minimum) date/times, hours worked, assigned staff, and details of what training/support was provided.

5.4. Solution Performance Metrics and Incident Reporting

During the life of the contract, Selected Proposer must analyze and report the following production changes and unscheduled incidents to OIG, which must be used by Selected Proposer as part of ongoing solution monitoring:

A. Production Change Management
    i. Minor Change: Report at least 48 hours in advance.
    ii. Moderate Change: Report at least five (5) calendar days in advance.
    iii. Major Change: Report at least ten (10) calendar days in advance.
    iv. Unplanned Critical Change: Report as soon as possible, but no later than 24 hours after learning a change is required.
    v. Unplanned Emergency Change: Report immediately after a change is implemented.

B. Incident Management
    i. Severe (Level 4): Root-Cause analysis completed within 48 hours; report within 72 hours; problem remediation within 96 hours (of the incident occurring).
    ii. High (Level 3): Root-Cause analysis completed within 96 hours; report within 144 hours; problem remediation within 192 hours (of the incident occurring).
    iii. Medium (Level 2): Root-Cause analysis completed within 14 calendar days; report within 21 calendar days; problem remediation within 28 calendar days (of the incident occurring).
    iv. Low (Level 1): Root-Cause analysis completed with four (4) months; report within five (5) months; problem remediation within six (6) months (of the incident occurring).

    Levels are referenced from New York State Office of Information Technology Services (NYSOITS) Policy No. NYS-S13-005

Throughout the life of the contract, OIG reserves the right to discuss and implement with Selected Proposer other industry standard metrics for monitoring performance of both Selected Proposer and solution.

Throughout the life of the contract, if Selected Proposer implements any update, enhancement, or system change, the Solution Project Manager (Solution PM) must be responsible for immediately testing and verifying that all solution workflows, systems, and components remain intact and functioning as originally designed and intended; and immediately correcting, repairing, or rebuilding any workflow, system, or component failing due to update, enhancement, or system change.

5.5. Project Management

A. Selected Proposer must assign a Solution PM and OIG must assign an Agency Project Manager (Agency PM) who must be the primary contacts for this project and cooperatively work, for the life of the contract, to implement all solution aspects.
B. The Solution PM work:
    i. Must be in addition to Selected Proposer's normal customer support staff and services.
    ii. Must not be counted against or used for the training hours outlined in Section 5.4 of this RFP.
C. Working in consultation with the Agency PM, the Solution PM duties and responsibilities must include, but not be limited to:
    i. Development of a project workplan including timelines for project deliverables that is acceptable to OIG.
    ii. Assuring cooperative collaboration of Selected Proposer with all OIG staff and other contractors.
    iii. Assuming overall responsibility for assuring fulfillment of all project deliverables and for complete statewide implementation of entire solution, including post-implementation support and warranty.
    iv. Development and implementation of project processes (change management, risk management, communications management, etc.).
    v. Performing conversion, cleanup, migration, transfer, integration, validation, and implementation of legacy data into solution from current systems (both OIG and other contactor managed).
    vi. Reviewing and assessing the project's test and pilot results, submission of project status reports, and participation in all project management and status meetings.
D. Working in consultation with the Agency PM, the Solution PM must, for the life of the contract, be responsible for building, testing, and maintaining all workflows, systems, and components within the solution.
    i. The Agency PM must work with the specific OIG unit to outline the workflow, system, and component to be built.
    ii. The Agency PM and Solution PM must develop and agree in writing to an Implementation Plan as identified in Section 5.2.1.
    iii. The Solution PM must build, test, and validate the workflow, system, and component with OIG unit.
    iv. The Agency PM and Solution PM must agree in writing that the workflow, system, and components are correct and acceptable as specified.
    v. If Selected Proposer implements any update, enhancement, or system change, the Solution PM must be responsible for immediately testing and verifying that all solution workflows, systems, and components remain intact and functioning as originally designed and intended; and immediately correcting, repairing, and rebuilding any workflow, system, and component failing due to update, enhancement, or system change.
E. The Solution PM:
    i. Selected Proposer must be responsible for providing all supervision, salary, benefits, training, travel, insurance, and other customary personnel costs and activities.
    ii. Should be knowledgeable in all aspects of the solution—demonstrating ongoing

commitment to the success of this project.

iii. Should excel in communication, demonstrate strong leadership and accountability, possess exceptional organizational and process management skills, effectively manage risks, ensure quality assurance, and foster proactive stakeholder engagement. Selected Proposer must submit comprehensive bios and resumes for the Solution PM, as well as for any potential alternative replacements, if applicable.

F. OIG reserves the right to require the assignment and approval of replacement Solution PMs should the subsequent Solution PMs not demonstrate project knowledge or commitment, or the project fails to meet the negotiated implementation plan (Section 5.2.1 of this RFP), or the solution change and incident reporting are not met (Section 5.4 of this RFP).

NOTE: The Solution PM must have approval from OIG before implementing or modifying any item or deliverable delineated in this RFP or subsequent contract.

5.6. Staffing

In addition to the Solution PM, Selected Proposer must secure a dedicated team to support OIG in the initial development of a custom CMS. This team will work closely with OIG to understand its specific operational and regulatory needs. The team must demonstrate expertise in CMSs, system design, and development, with a proven ability to collaborate effectively with government or regulatory bodies.

In addition to the initial system development, Selected Proposer is required to commit ongoing resources throughout the life of the contract for ongoing support and future system enhancements. This includes proactively identifying and implementing improvements, scaling the system as OIG requirements evolve, and ensuring continued compliance with relevant laws and regulations. The dedicated team will work with OIG on new features, upgrades, and system optimizations, demonstrating flexibility and innovation in addressing future needs.

Selected Proposer's team will also provide comprehensive end-user technical support throughout the life of the contract to ensure the smooth adoption and use of the system. This includes offering user training, troubleshooting, and ongoing technical assistance to address any issues that may arise post-implementation. The team's responsiveness and ability to deliver high-quality, timely support will be critical to the long-term success and sustainability of the case management system.

NOTE: Selected Proposer's team and staff must have approval from OIG before implementing or modifying any item or deliverable delineated in this RFP or subsequent contract.

5.7. Information Technology

The application and all systems and components supporting it, including, but not limited to, any forms and databases that include Personal Identification or other New York State information, must comply with all New York State security policies and standards.

5.7.1. Hosting and Licensing

Selected Proposer must provide comprehensive SaaS cloud data hosting and licensing services for the entire duration of the contract, which includes the following:

A. Secure and scalable cloud infrastructure capable of supporting the organization's current and future data storage needs.
B. High availability and uptime.
C. Strong data security measures, including encryption, access controls, and regular security updates.
D. Compliance with relevant data protection and privacy regulations.
E. Robust disaster recovery and backup solutions with defined recovery time objectives.
F. Ongoing technical support, monitoring, and maintenance services.

The solution must provide licensing to support up to approximately 250 active users, with flexibility to accommodate future growth. The licensing model should include options for both named and concurrent user licenses to optimize cost-effectiveness based on user roles and access needs. Solution licensing should cover support and maintenance, including provisions for updates, upgrades, and ongoing end-user technical support.

5.7.2. Solution Platform

The solutions platform and interface must be designed to provide users with an intuitive and efficient platform for managing cases. The solution should be designed with two distinct yet interconnected modules: one for tracking investigations and the other for managing FOIL requests. These modules will operate independently but maintain seamless integration to ensure relevant information can be shared between them when necessary. The solution must include secure interface modules that provide the following:

A. Ability for OIG to view, edit, manage, report on data, process information and forms, communicate, perform workflow process management, and otherwise conduct business electronically internally between OIG units and externally with agencies, law enforcement, and members of the public.
B. Limited ability for public clients to submit information/forms, view complaint status, and communicate with OIG.
C. Self-created and self-recovered user accounts providing tiered access through OIG defined permission-groups, with what a user may view, access, and utilize being restricted based on their permission level (see Section 5.7.3).
D. Data-driven dashboards that manage, track, and analyze complaints and investigative matters using charts, graphs, and tables. Dashboards should be generated by OIG defined groups.
    i. Global Dashboard of all information across the CMS.
    ii. Management Dashboard of information assigned to Management staff.
    iii. Individual Dashboard of status, tasks, and information related to an assigned case.
E. Notifications, announcements (user-defined and customizable by OIG) and messaging to OIG defined groups.
    i. Announcements.
    ii. Automated e-mailing.
    iii. Notification of tasks to be completed, such as: links into the solution of required actions to be completed, and documents for actions/tasks/workflows completed.
    iv. Ability for users to sign-up for specific external to the solution e-mail notifications.

5.7.3. Accounts / Permission Groups

The solution must provide for various user accounts and permission groups defined by OIG, with varying levels of access, content rights, and functionality. The following list is provided for example only and should not be considered all-inclusive or definitive.

CMS Super User	• Manage and alter any permission group or access level.
	• Manage and alter any process.
	• Manage and alter any functionality.
	• Manage and alter any data.
	• Full access to report on any data.
	• Perform any administrative function necessary to manage the system.
CMS Management	• Manage executive level processes without altering any processes, functionality, or data.
	• Full access to report on any data.
CMS	• Manage processes assigned to the supervisor's area.

Supervisor	• Access to report on specific data.
CMS Staff	• Perform processes assigned to the staff's area.
	• Access to report on specific data.
CMS External Partners	• Perform processes assigned to Law Enforcement/Agency.
	• Access to report on specific data.
CMS General Public	• Submit complaints.
	• View general and public information.

5.7.4. History Log

The solution must include a chronological historical record of all accesses, actions, workflows, data changes, and any other action performed within the solution, and any document produced by the solution, and must:

A. Record the details of such including (at a minimum) action, user, date, time, IP address, and old data versus new data (if applicable).
B. Not be corrupted by changes in workflow processes or involved parties occurring mid-workflow processing.
C. Be accessible by OIG authorized users, at any time.
D. Include the ability to produce ad hoc event and usage reports.
E. Not be changeable or corruptible by any user of any permission level.

5.7.5. Business Continuity

The solution must include the following business continuity components which are deemed necessary to effectively manage and support the solution.

A. Backup/Recovery
    i. The solution must:
        a. Provide a backup/recovery component comprised of a high-capacity backup and recovery infrastructure for all required component data following the Uptime Institute guidelines for a tier three data center;
        b. Provide secure backups (within Selected Proposer's environment) that will include, but be not limited to:
            1. Database data (all databases in the solution).
            2. Files (all formats).
            3. Operating system software.
            4. Relational database management software.
            5. Documentation (user manuals, operations/systems documentation, policies/procedures, etc.).
            6. Program code (source and executable).
            7. User libraries of reports, queries, etc.;
        c. Backup all solution components in such a way that any component can be restored from the backup medium within three (3) hours of the discovery and notification that a restoration is needed;
        d. Include an automated scheduling system for running backup processes for all environments; and
        e. Include processes to verify that backup and restoration processes were run appropriately, and must verify that:
            1. All scheduled backup procedures are run successfully as scheduled;
            2. Backup copies are created in a useable (readable) form and can be used for successful restoration of objects; and
            3. Backup copies are stored in the correct location.

ii. In the case of source system-dependent or application-dependent errors that result in invalid data, Selected Proposer must be able to restore data to the state prior to the error within 24 hours of the discovery and notification of the error.

B. High Availability
   i. The solution must:
      a. Be designed in such a way as to eliminate to the maximum extent possible any business outages due to hardware or network malfunctions;
      b. Provide a component with immediate availability;
      c. Include design capability to switch operations from the production environment to the backup environment in the event technical problems incapacitate the production server;
      d. Include a hierarchy of critical services and infrastructure to determine the order that services must be restored; and
      e. Include design capability to switch operations from the production environment to a backup environment in the event server hardware/software upgrades need to be performed.

C. Disaster Recovery
   i. Selected Proposer must:
      a. Develop and maintain a Disaster Recovery Plan (DRP) that is acceptable to OIG and addresses recovery of solution functions, human resources, and technology infrastructure;
      b. Make the DRP available and present to OIG;
      c. Upon OIG declaration that a business continuity event exists, execute the DRP;
      d. Assure that the DRP details procedures to address (but be not limited to) the following potential events:
         1. Natural disasters (e.g., earthquake, fire, flood, storms);
         2. Terrorist acts;
         3. Power disruptions or power failures;
         4. Computer software or hardware failures;
         5. Computer shutdowns due to hackers, viruses, etc., as well as significant compromise/degradation of data warehouse performance;
         6. Processing shutdowns; and
         7. Labor strife (walkouts, shutdowns);
      e. Develop, maintain and submit to OIG, in advance, all proposed off-site procedures, locations and protocols for OIG review and approval prior to implementation;
         1. These items must be incorporated by the Successful Proposer as components of the DRP;
      f. Ensure that each aspect of the DRP is detailed as to both Selected Proposer and OIG responsibilities;
      g. Modify the DRP, software installation procedures and operational procedures as needed to reflect the changes implemented with new data sources, if the system changes, or any enhancements will impact the disaster recovery capability;
         1. Modifications to the DRP must be submitted to OIG for review and approval;
      h. Execute a DRP test to demonstrate the capability of the DRP to restore processing capability for all critical system components; and
      i. Take all steps necessary to fully recover data and systems from the effects of a disaster and to reasonably minimize the recovery period.
   ii. The DRP must provide for the recovery of critical data services within twenty-four (24) hours of:
      a. The discovery of the service disruption;
      b. Declaration of a disaster; or
      c. Production site becoming unsafe or inoperable.

iii. Critical solution functionality must be restored within ten (10) calendar days of the disaster (unless otherwise approved by OIG) and include:
    a. Daily data feed refresh cycle;
    b. Basic data access functions (query and reporting);
    c. Solution platform; and
    d. Data backup capabilities.

D. A data backup shall be provided to OIG that must be:
    i. Performed on a schedule determined by OIG;
    ii. Automated through a secure means approved by OIG;
    iii. In a medium of modern technology acceptable to OIG; and
    iv. A complete copy of all OIG data held within the solution, or as otherwise determined by OIG.
E. Selected Proposer must always maintain a complete copy of all OIG data on a redundant storage device.
F. To facilitate OIG use of the data for professional research purposes:
    i. Selected Proposer must provide OIG a comprehensive data dictionary and set of business rules used by Selected Proposer to create and operate the solution datasets/repositories.
        a. Selected Proposer must provide OIG with updates to such documents on a routine and ongoing basis, and upon any revision by Selected Proposer.

5.7.6. Solution Enhancements / Change Requests

As needed the Selected Proposer and OIG may discuss, plan for, develop, and implement solution changes and enhancements due to regulatory or statutory changes or modifications that are beyond the scope described within this RFP.

OIG estimates that approximately 1,000 hours for solution enhancements and/or change requests spread over the life of the contract to complete solution enhancements/change requests may be necessary.

In the event OIG requires additional hours than those estimated, OIG reserves the right to request in writing that Selected Proposer provide additional hours, which will be billed based upon the hourly rate bid in Selected Proposer's Form 1 Cost Proposal.

A. In the event OIG determines that a solution enhancement or change request is necessary, OIG will request in writing that Selected Proposer propose a scope of work to accomplish the requested solution enhancement/change request. Selected Proposer's scope of work must establish any process for such solution enhancement/change request, the staff and number of hours per staff member to complete the solution enhancement/change request, and the timeframe to complete such solution enhancement/change request. Selected Proposer's proposed scope of work will be reviewed and must be approved by OIG prior to commencement of work on the solution enhancement/change request.
    i. The process must include discussion of the enhancement's/change's technical details, as well as Selected Proposer estimated timeframes for completion.
    ii. Once request is approved, Selected Proposer will only be paid for actual hours incurred and will invoice actual hours of work performed against the estimated hours provided in the contract, not to exceed those estimated in the approved request.
B. No actual implementation work for any solution enhancement/change request developed out of this process will begin without written agreement between OIG and Selected Proposer.
C. If Selected Proposer implements any update, solution enhancement, or change request, the Solution PM must be responsible for ensuring testing and verifying that all solution workflows, systems, and components remain intact and functioning as originally designed and intended; and immediately correcting, repairing, or rebuilding any workflow, system, and component failing due to update, enhancement, or system change.
D. Selected Proposer must provide an electronic tracking system that is accessible/monitored by both

Selected Proposer and OIG and that will prioritize, manage, and track all solution enhancement/change request work hours provided during this contract; to include (at a minimum) date/times, time charged, persons involved, and detailed contents of what solution enhancement/change request was provided.

5.8. Security

Selected Proposer must comply with all privacy and security policies and procedures of OIG, the NYSOITS and applicable State and Federal law and administrative guidance with respect to the performance of the Contract.

The proposed SaaS solution should be either FedRamp or StateRamp certified to ensure compliance with stringent security and privacy standards mandated for government and state-level data protection.

A. Selected Proposer must comply fully with all current and future updates of the security procedures of OIG as well as with all applicable State and Federal requirements in performance of this contract.
    i. Selected Proposer is obligated to ensure any subcontractor hired by Selected Proposer who stores, processes, analyzes or transmits sensitive information on behalf of Selected Proposer has the appropriate security requirements in place.
B. Selected Proposer must execute security and privacy agreements with OIG including a Data Use Agreement (DUA) upon contract award.
    i. Selected Proposer must include in all contracts with its subcontractors language surrounding the security and privacy requirements as well as the language contained in the Confidentiality Language for Third Parties section of the DUA.
C. The solution must be of modern technology and industry standards, incorporating the most up-to-date internet security protocols for protected health information (PHI) and personally identifiable information (PII); adhering to all Health Insurance Portability and Accountability Act (HIPAA) and other Federal and State rules for PHI and PII.
D. The solution should meet Uptime Institute guidelines for a Tier 3 data center and meet requirements for:
    i. Identify Assurance Level:
        a. Super User 4
        b. General Public 1
        c. All Others 3
    ii. Confidentiality Classification High
    iii. Integrity Classification High
    iv. Availability Classification:
        a. All Others High
E. Selected Proposer must be responsible for ensuring that the appropriate security measures are put in place to protect the solution from intrusions and other attacks, as well as safeguarding the confidentiality, integrity, and availability of data.
    i. This includes data while it is created, entered, processed, communicated, transported, disseminated, stored, or disposed of.
    ii. Selected Proposer must provide secure and confidential backup, storage and transmission for hard copy and electronically stored information.
    iii. Under no circumstances will Selected Proposer release or reveal any information, record, or data to any person, agency, or organization without specific written permission of OIG.
    iv. If any breach or suspected breach of the data or confidentiality occurs, whether the breach occurred with Selected Proposer or any subcontractor, Selected Proposer must immediately notify OIG.
    v. Selected Proposer must maintain and provide to OIG upon request its data confidentiality plans and procedures for meeting security requirements as they relate to the deliverables and services within this RFP, including all plans as they relate to subcontractor work, where applicable.
    vi. Selected Proposer must develop and maintain adequate, fully trained staff to respond to

all stakeholder inquiries while protecting confidentiality and maintaining the security and integrity of all systems.

a. Staff must be trained to comply with requirements related to confidentiality and operating guidelines for functions included in this RFP.

F. OIG reserves the right to conduct periodic risk assessments.
G. OIG requires the following regarding solution architecture:
    i. Selected Proposer must complete a technical architecture document and system security plan within 60 calendar days of contract approval by the OSC and provide both to OIG for review and approval. Prior to implementation, OIG will perform a technical review and approval must be received prior to implementation.
    ii. OIG reserves the right to ask for clarifications of the technical architecture document and system security plan documents.
    iii. OIG reserves the right to require further clarifications of all documents as part of ongoing solution changes or updates to New York State policies.
H. The solution must be operating system and device agnostic—providing a user-friendly interface experience across multiple operating systems including but not limited to Microsoft Windows®, Apple iOS™, and Google Android™ on any standard desktop, laptop, or tablet hardware.
I. The solution must provide, at no cost to the users, essential off-line (no internet/server connection) functionality as determined by OIG, providing that:
    i. Once the solution returns to online status (connected to server) all off-line functions performed will automatically sync with server; and
    ii. All off-line functions must adhere to the same security requirements as any online function.
J. Selected Proposer must implement hardware and software patches, updates, and other utilities in compliance with the New York State standards referenced in Section 5.7 and Section 5.8 of this RFP, to maintain system operations and security.
    i. All critical patches must be applied within 30 calendar days of general release, or sooner if needed or requested by OIG.
    ii. All patches and updates must be fully tested prior to implementation in any production environment.
K. All data contained in the solution must be maintained in geographical North America.
L. The solution must include any necessary environments for development, testing, training, or other purposes that are separate from, and nonintrusive to, the production environment.
M. The ability for user accounts to be secured with Okta with Multi-Factor Authentication (MFA).

5.9. Solution Implementation and Acceptance

A successful implementation requires meeting the Scope of Work and deliverables described in RFP Section 5, 5.1, 5.2 and 5.7.

Final Solution Acceptance will occur when the objectives in the above referenced sections are met and approved in writing by OIG. OIG will apply the following criteria when determining Final Solution Acceptance: system functionality, user training, and system performance under real-world conditions. Selected Proposer must ensure that any identified issues or deficiencies are resolved to the satisfaction of OIG. The completion of the project will only be recognized when the system has passed all necessary approvals and is fully operational, meeting all organizational and user requirements.

Upon Final Solution Acceptance, the solution will be moved to an operational phase of the project. At this point Selected Proposer must maintain and manage the solution, including continuation of support and training and solution enhancements/change requests for the remaining life of the contract. The transition will take place only after the CMS has been successfully implemented and approved by OIG.

5.10. End of Service Transition

The End of Service Transition represents a period when the current contract activities performed by Selected

Proposer must be turned over to OIG or successor contractor during or at the end of the Contract Term.

Selected Proposer will keep the solution compliant with the most up-to-date OIG schemas and data dictionaries as well as any solution software versioning.

Selected Proposer must ensure that any transition to OIG or successor contractor be done in a way that provides OIG with uninterrupted services. This includes the complete and total transfer of all data, files, reports, and records generated from the inception of the contract through the end of the contract to OIG should that be required during or upon expiration of its contract.

Selected Proposer must provide technical and business process support as necessary and required by OIG to transition and assume contract requirements to OIG should that be required during or at the end of the contract.

Selected Proposer must manage and maintain the appropriate number of staff to meet all requirements listed in the RFP during the transition. All reporting and record requirements, security standards, and performance standards are still in effect during the transition period.

Selected Proposer is required to develop a work plan and timeline to securely and smoothly transfer any data and records generated from the inception of the contract through the end of the contract to OIG, should that be required. The plan and documentation must be submitted to OIG in accordance with the timelines below.

A. At least eighteen (18) months prior to the contract end, Selected Proposer and OIG must begin discussion on the use of the solution.
    i. Should it be determined that the contract will not be extended, Selected Proposer is required to develop a work plan and timeline to securely and smoothly transfer any data and records generated from the inception of the contract through the end of the contract to OIG should that be required during or upon expiration of its contract.
        a. A draft plan and documentation must be submitted to OIG no later than twelve (12) months before the last day of its contract with OIG or upon request of OIG.
        b. The final plan and documentation must be approved by OIG no later than four (4) months before the last day of its contract with OIG or upon request of OIG.
B. Upon determination that OIG will no longer contract with Selected Proposer (scheduled termination or otherwise), OIG and Selected Proposer must determine mutually agreeable dates on which:
    i. The solution will no longer encumber new data; and
    ii. Selected Proposer will provide OIG with a final data copy.
    iii. The final data copy must be a complete copy of all OIG data held within the solution or otherwise by Selected Proposer, and must (as acceptable to OIG) be provided:
        a. In a medium of modern technology;
        b. In a usable format, with all data, record, and attachment relations and linkages intact;
        c. To OIG (including contract successor); and
        d. Via a means to be discussed at the time.
C. Once OIG determines that the final data copy is satisfactory:
    i. OIG must provide written authorization for Selected Proposer to delete/destroy all OIG data held within the solution or otherwise by Selected Proposer;
    ii. Absolutely no data is to be deleted/destroyed without the written authorization of OIG; and
    iii. Selected Proposer must effectively delete/destroy, in accordance with industry standards current at the time and acceptable to OIG, all OIG data held within the solution or otherwise by Selected Proposer; and
    iv. Within 24 hours of destruction, Selected Proposer must provide OIG with a notarized signature official attestation by an executive that is part of Selected Proposer's organization that all OIG data held within the solution or otherwise by Selected Proposer was deleted/destroyed.

6. Contract Insurance Requirements

Prior to the start of work under the Contract, Selected Proposer must procure, at its sole cost and expense, and must maintain in force at all times during the term of the Contract, insurance of the types and in the amounts set forth below.

A. Professional Liability

Selected Proposer must procure and maintain for the duration of the contract insurance against claims for damages to OIG property which may arise from or in connection with the performance of the work carried out by Selected Proposer or its subcontractors.

Selected Proposer must maintain said insurance at the limit of $1,000,000 per occurrence or claim, $2,000,000 aggregate.

B. Data Breach and Privacy/Cyber Liability including Technology Errors and Omissions, etc.

Selected Proposer and any subcontractor retained by Selected Proposer must carry and maintain applicable coverage during and for a period of two (2) years after termination of this contract, Data Breach and Privacy/Cyber Liability Insurance, including coverage for failure to protect confidential information and failure of the security of Selected Proposer's computer systems or OIG's Authorized Users' systems due to the actions of Selected Proposer which results in the unauthorized access to OIG's data.

Selected Proposer must maintain said insurance at the limit of $5,000,000 to provide coverage for damages arising from, but not limited to the following:

- Breach of duty to protect the security and confidentiality of nonpublic proprietary information;
- Personally identifiable nonpublic information (e.g., financial, or personal in nature in electronic or non-electronic form);
- Privacy notification costs;
- Regulatory defense and penalties;
- Website media liability; and
- Cyber theft of OIG's property, including but not limited to money and securities.

If the policy is written on a claim made basis, Selected Proposer must submit to OIG an Endorsement providing proof that the policy provides for the purchase of an Extended Reporting Period ("tail coverage") to provide coverage for no less than two (2) years after termination of the contract.

7. Proposal Requirements

Interested entities should submit a proposal, which clearly and concisely provides all the information requested. A complete proposal for this RFP comprises three (3) separate proposals: Technical, Cost, and Administrative.

A. **Technical Proposal** – The purpose of the Technical Proposal is for the Proposer to demonstrate its qualifications, competence, and capacity to undertake the engagement described herein.
B. **Cost Proposal** – The Cost Proposal captures proposed cost information for the services and deliverables described in this RFP.
C. **Administrative Proposal** – The Administrative Proposal contains standard requirements by which the Proposer must agree to and any associated documentation.

7.1. Technical Proposal

The Technical Proposal should specifically detail the Proposer's experience and qualifications in providing the services sought by OIG.

Please note, in the Technical Proposal, Proposers should not include any information related to their cost or the

amount proposed for this RFP.

Proposers should keep the Technical Proposal to a maximum of 75 pages (not including table of contents and resumes).

Below is a listing of the technical information to be provided by the Proposer:

A. Title Page

Submit a Title Page providing the RFP subject and number; the Proposer's name and address; the name, address, telephone number, and email address of the Proposer's contact person; and the date of the Proposal.

B. Table of Contents

The table of contents should clearly identify the location of all material within the Technical Proposal by section and page number.

C. Executive Summary

An Executive Summary highlighting significant aspects of the Technical Proposal**.**

D. Documentation of Proposer's Eligibility Requirements

Proposers must be able to meet all the requirements stated in Section 4.1 of the RFP. The Proposer must submit documentation that provides sufficient indication of meeting the criterion/criteria set forth in Section 4.1. This documentation may be in any format needed to demonstrate how the Proposer meets the minimum qualifications to propose.

E. Proposer Experience and Qualifications

In this section of the Technical Proposal, the Proposer should demonstrate that it has the knowledge and ability to perform the services described in the RFP. Proposers are required to submit detailed resumes and experience summaries for the Solution PM (Section 5.5) and all key project staff (Section 5.6). The submission should highlight relevant experience, including specific examples of successfully developing and implementing case management systems for both public and private organizations. These examples should demonstrate the scope of work, project complexity, and measurable outcomes. The experience must showcase the team's ability to manage cross-sector projects, meet deadlines, and deliver effective case management solutions in diverse operational environments.

F. Proposer Self Score of System Specifications

In this section of the Technical Proposal, the Proposer should demonstrate that the solution is able to meet the operational, security, and performance needs of the Agency. In Appendix I, Proposers are provided with a detailed list of system specifications, covering areas such as case tracking, data management, user interface, security, and integration capabilities. For each specification, proposers must indicate whether their solution supports the requirement 'Out of the box,' requires customization to support the requirement or is unable to meet the requirement.

The Approach Codes are defined below:

OBX *Out of the Box*: Out of the Box is the Approach Code that should be indicated when the solution will address the requirement without being conditional on any Customization.

CST *Customization:* Customization is the Approach Code to apply when the solution does not include features built specifically to address the requirement in question, and a custom development effort, special configuration, system or process workaround, or integration with third party applications is needed to achieve the desired result.

UNB *Unable to Perform*: Unable to Perform is the Approach Code to apply when the solution does not include features built specifically "out of the box" to address the requirement in question and the Proposer is unable to perform a custom development to meet the technical demands of the requirement.

Note: If a Proposer does not enter any rating for one or more requirements; if the comments provided include caveats, are confusing or not sufficiently descriptive; or if any information contradicting the Proposer's Self-Score comes to light during the technical evaluation process, including the Demonstration and Presentation; OIG reserves the right to seek clarifications from the Proposer. If necessary, OIG will have the ability to adjust a Proposer's Self-Score based on the comments or clarifying information submitted by the Proposer.

G. Technical Proposal

In this section of the proposal, the Proposer should include a narrative describing the project approach and provide information regarding how the Proposer will conduct the work. The Technical Proposal should provide satisfactory evidence of the Proposer's ability to meet, and expressly respond to, each element listed below.

Elements of the Technical Proposal are as follows:

1. Functional and Non-Functional Requirements
   a. Functional Requirements
      Describe the Proposer's capability to achieve OIG goals and objectives by maintaining current processes and workflows, as outlined in Section 5.1.1, while integrating them into the new solution:
      I. Complaint Intake
      II. Complaint Assessment (CRP/TRP)
      III. Complaint Processing and Advancement
      IV. Investigations
      V. Investigative Reporting
      VI. Case Record Retention
      VII. Case Record Disposition
      VIII. Case Support Services
      IX. Discovery
      X. FOIL
   b. Non-Functional Requirements
      Describe in detail how the proposed solution meets each of the non-functional requirements including, but not limited to, the items outlined in Section 5.1.2. Proposers must include any limitations of the non-functional requirements in their response.

      To provide a clearer understanding of their solution, Proposers must submit screenshots or other visual representations demonstrating each item in this section alongside their proposal.

2. Tasks and Deliverables
   a. Implementation Plan
      As outlined in Section 5.2.1, propose an implementation plan addressing timelines, milestones, phases, modules, assumptions, requirements, dependencies, expectations, and any other details Proposer feels necessary to demonstrate that their solution is fully implemented within 270 days after contract approval by the OSC.

b. Data Repository

Describe the Proposer's ability to provide a solution data repository that will securely store records and documents related to the case management system as outlined in Section 5.2.2.1. Proposers should describe in detail their plan to provide the following:

I. A perpetual repository for records and data storage;
II. Digitized and indexed record retention;
III. Ability to link with multiple internal and external third-party software;
IV. Provide routine automated multi-directional querying, sharing, importing, exporting, processing, validating, and general management of data in various standard file formats; and
V. Fully integrate with all other aspects of the solution.

To provide a clearer understanding of their solution, Proposers must submit screenshots or other visual representations for this section alongside their proposal.

c. Workflow Process Management

Describe the Proposer's capability to provide a comprehensive solution for workflows within the CMS as identified in Section 5.2.2.2. The proposed workflows must facilitate efficient case processing, ensuring seamless coordination between various departments and stakeholders. Proposers should detail how their workflows support case initiation, tracking, updates, approvals, and closure while maintaining compliance with regulatory requirements. Additional requirements may include (but are not limited to) the following:

I. Automate daily business tasks with multi-directional steps including those with human intervention.
II. Manage approvals including legal electronic signatures.
III. Introduce new components into any operation at any time.
IV. Initiate and manage workflow process.

To provide a clearer understanding of their solution, Proposers must submit screenshots or other visual representations for this section alongside their proposal.

d. Joint Development and Quality Assurance

As outlined in Section 5.2.2.3, Selected Proposer must include a period of collaboration with each OIG organizational unit at onset and throughout the solution's development. Describe the Proposer's plan, including timelines, to work closely with OIG organizational units during the development phase, iterating on system requirements, gathering feedback, and refining functionalities.

e. Legacy System Migration

Proposers are required to demonstrate their ability to manage and oversee the data migration process for the CMS, ensuring the accurate and efficient transfer of data from legacy systems as identified in Section 5.2.3. This includes detailing strategies for mitigating risks, ensuring data integrity, and minimizing system downtime during migration. Proposers must also describe their experience in collaborating with third-party vendors, highlighting examples where they have successfully coordinated with external teams to ensure seamless data integration. The submission should showcase how the Proposer will work collaboratively to meet project timelines, resolve issues, and ensure a smooth transition while maintaining open communication with all stakeholders.

f. Training

Describe the Proposer's ability to provide foundational and sustained training for the CMS throughout the contract's duration and identified in Section 5.3. This includes delivering comprehensive live training sessions for staff during initial system implementation and as needed for system updates or new features. Proposers should also detail their availability of preexisting training materials, such as user manuals, video tutorials, and online resources, to support continuous staff education.

g. Solutions Performance Metrics and Incident Reporting

Proposers must demonstrate their ability to provide comprehensive production change management and incident

management throughout the life of the contract. This includes detailing their approach to managing and implementing changes in the CMS with minimal disruption to operations, as well as maintaining system stability. Proposers should outline their process for handling system updates, patches, and enhancements, including testing and deployment strategies as identified in Section 5.4. Additionally, Proposers must describe their incident management capabilities, including procedures for identifying, tracking, and resolving incidents in a timely manner. Experience in maintaining service continuity and supporting users during system changes and incidents must be included, along with examples of successfully managing similar systems in both public and private sectors.

3. Project Management

Describe the Proposer's capacity to assign a dedicated Solution PM for this project and cooperatively work, for the life of the contract, to implement all solution aspects. The Solution PM must have the necessary skill set to fulfill the duties and responsibilities outlined in Section 5.5. The Solution PM should excel in communication, demonstrate strong leadership and accountability, possess exceptional organizational and process management skills, effectively manage risks, ensure quality assurance, and foster proactive stakeholder engagement. Selected Proposer must submit comprehensive bios and resumes for the Solution PM, as well as for any potential alternative replacements, if applicable.

4. Staffing

Describe the Proposer's capacity to recruit, retain, and assign a dedicated team to support the engagement, covering (but not limited to) the Development, Support, and Training teams. Describe the teams' roles and responsibilities and how the Proposer will vet these individuals to ensure they have the necessary skill sets to fulfill the duties and responsibilities outlined in Section 5.6. Selected Proposer must submit comprehensive biographies and resumes for the teams, as well as for any potential alternative replacements, if applicable.

5. Information Technology

a. Hosting and Licensing

Describe the Proposer's ability to provide a comprehensive SaaS cloud data hosting and licensing services for the entire duration of the contract as outlined in Section 5.7.1, which includes the following:

I. Secure and scalable cloud infrastructure capable of supporting OIG's current and future data storage needs;
II. High availability and uptime;
III. Strong data security measures, including encryption, access controls, and regular security updates;
IV. Compliance with relevant data protection and privacy regulations;
V. Robust disaster recovery and backup solutions with defined recovery time objectives;
VI. Named and concurrent user licenses for approximately 250 active users; and
VII. Ongoing technical support, monitoring, and maintenance services.

b. Solution Platform

As outlined in Section 5.7.2, Proposer should provide a description of their ability to provide a web-based system interface which allows for:

I. Distinct but interrelated interfaces for Investigations as identified as Appendix G and FOIL as identified in Appendix H.
II. Internal viewing, editing, management, reporting data, processing of information and forms, communication and workflow management.
III. External customer viewing of limited repository data, submitting of information/forms, communication with OIG and workflow management

To provide a clearer understanding of their solution, Proposers must submit screenshots or other visual representations for this section alongside their proposal.

c. Accounts and Permission Groups

Outline and describe the Proposer's ability to provide various tiered user accounts and permission groups with

varying levels of access controls, content rights, and functionality as outlined in Section 5.7.3 of this RFP.

d. History Log

As outlined in Section 5.7.4, explain how the Proposer plans to include a chronological historical record of all accesses, actions, workflows, data changes, and any other action performed within the solution.

e. Business Continuity

As identified in Section 5.7.5, describe the Proposer's ability to ensure business continuity for the CMS throughout the life of the contract. This includes providing a robust plan for maintaining system availability and operational functionality during both planned maintenance and unexpected disruptions, such as technical failures, cyber threats, or natural disasters. Proposers should outline their disaster recovery strategies, data backup protocols, and failover systems that guarantee minimal downtime and rapid restoration of services. Additionally, Proposers must describe their experience in delivering uninterrupted service and system resilience for similar CMSs in both public and private organizations, along with examples of their approach to ensuring continuity during emergencies.

f. Solution Enhancements/Change Requests

Proposer should provide their plan to discuss, develop and implement solution enhancements and/or change requests throughout the life of the contract as outlined in Section 5.7.6.

6. Security

Explain the Proposer's ability to provide the following as outlined in Section 5.8:

I. Comply with New York State privacy and security policies and procedures.
II. Host in a secure Tier 3 data center.
III. Comply with FedRamp or StateRamp security standards.
IV. Comply with executed DUAs.
V. Incorporate the most up-to-date internet security protocols for protected health information (PHI), personally identifiable information (PII) and other sensitive data.
VI. Protect the solution from intrusions and other attacks.

7. Solution Implementation and Acceptance

As defined in Section 5.9, the final solution will be transferred to OIG. The transition will take place only after the CMS has been successfully implemented and approved by OIG. Describe the Proposer's plan to collaboratively work with OIG to ensure all phases have been successfully approved and all deliverables meet the predefined success criteria.

8. End of Service Transition

As outlined in Section 5.10, describe the Proposer's approach for transitioning operational and technical support activities that have been maintained and operated by Selected Proposer to OIG or successor contractor. The Proposer should describe the procedures that it plans to use for an orderly, complete, including destruction, and controlled transition process.

7.2. Cost Proposal

The Cost Proposal is an integral component of a Proposer's three-part submission. The Cost Proposal shall address all costs associated with the services described herein. Proposers must complete the Cost Proposal Form (Form 1) according to the instructions included in the Form. Proposals with a format different from the format indicated in Form 1 may be deemed non-responsive and the entire proposal could not be considered for evaluation or award.

A. Proposer must provide one bid price for each deliverable listed in the Solution Deliverable Pricing table in Form 1. The bid price must be all-inclusive related to furnishing all of the said services, including but not limited to any costs to configure or customize as well as travel, materials, equipment, overhead, meetings, reporting, analysis, and any other costs required to complete the

services detailed in Section 5.0, Scope of Work to the satisfaction of OIG.

B. Proposer must provide an annual price for data hosting and licensing as described in section 5.7.1.
C. Proposer must provide an all-inclusive hourly rate for Training. Such rate must include all costs related to furnishing all of the said services, including but not limited to any costs to configure or customize as well as travel, materials, equipment, overhead, meetings, reporting, and analysis. See Section 5.3.
D. Proposer must provide an all-inclusive hourly rate for any and all staff working on Solution Enhancements and/or Change Requests. Such rate must include all costs related to furnishing all of the said services, including but not limited to travel, materials, equipment, overhead, meetings, reporting, analysis. See Section 5.7.6.

Selected Proposer will not be reimbursed for any costs outside of the prices provided in their cost proposal.

7.2.1. Compensation and Manner of Payment

Compensation for the scope of work described in this RFP shall be based upon the bid prices and rates provided by the Selected Proposer in the Form 1 Cost Proposal submission.

The structure and payment schedule can be found in Appendix B (Sample Contract).

OIG is not liable for any costs incurred by a proposer in the preparation and/or production of any proposal, or for any work performed prior to the execution of a formal contract.

OIG will compensate the Selected Proposer following submission of an approvable invoice according to the contract.

7.3. Administrative Proposal

Proposers should complete and submit the administrative forms listed below:

Note: Modified forms will not be accepted.

A. **Form 2:** The Proposer Information and Attestation, which will be considered an integral part of the Proposal, should be signed and submitted with the Administrative Proposal. The Proposer Information and Attestation should be signed by an individual authorized to contractually bind the Proposer. A proposal with an unsigned Proposer Information and Attestation form may be rejected.

B. **Form 3:** Non-Collusive Bidding Certification. This form should be signed and submitted with the Administrative Proposal.

C. **Form 4:** Proposer Assurances of No Conflict of Interest or Detrimental Effect. This form must be signed by an authorized executive or legal representative and should be submitted with the Administrative Proposal.

D. **Form 5:** Article 15-A Requirements. Complete and submit the following with the Administrative Proposal:
    i. Form 5.1 – Workforce Composition Form.
    ii. Form 5.2 – Proposer's intended Utilization Plan for MWBE subcontractor participation. Selected Proposer will be required to formally submit the Utilization Plan within three (3) calendar days of notification of selection.
    iii. Form 5.3 – Notice of Intent to Participate.
    iv. Form 5.4 – Equal Employment Opportunity (EEO) Policy Statement – If Proposer, or

any of its subcontractors, does not have an existing EEO policy statement, OIG may require the Proposer or subcontractor to adopt the attached model statement.

v. Form 5.5 – Request for Waiver Form.

E. **Form 6:** MWBE Diversity Practices. Complete and submit the following with the Administrative Proposal:

i. Form 6.1–Responses to Diversity Practices Questionnaire, including documentation.

F. **Form 7:** A Vendor Responsibility Questionnaire should be certified and filed by the proposal submission deadline. The Vendor Responsibility determination is required for review and approval of the contract by the OSC. Proposers should file online with the New York State VendRep System or submit a paper Questionnaire.

For any subcontract in excess of $100,000, a Vendor Responsibility Questionnaire should be completed by the subcontractor and certified and filed by the proposal submission deadline. Subcontractor Proposers should file online with the New York State VendRep System or submit a paper Questionnaire with the Proposer's proposal.

G. **Form 8:** Procurement Lobbying Form should be completed and submitted with the Administrative Proposal confirming and certifying compliance with the Procurement Lobbying Law, including disclosure of any findings of non-responsibility.

H. **Form 9:** Disclosure of Pending or Prior Lawsuits, Conflicts of Interest, or Investigations or Disciplinary Actions Form should be completed and submitted with the Administrative Proposal.

I. **Form 10:** Freedom of Information Law Redaction Request form should be submitted with the Administrative Proposal. If there is specific information in a Proposer's proposal that a Proposer claims to be proprietary and/or trade secret information that meets the definition set forth in New York State Public Officers Law section 87(2)(d), the Proposer should provide a letter in its Administrative Proposal outlining any specific concerns regarding disclosure under the New York State Freedom of Information Law (Article 6 of the Public Officers Law).

J. **Form 11:** Executive Order No. 177 should be completed and submitted with the Administrative Proposal.

K. **Form 12:** Sexual Harassment Prevention Certification. This form should be signed and submitted with the Administrative Proposal.

L. **Form 13:** Executive Order No. 16 Certification. This form should be completed, signed and submitted with the Administrative Proposal

8. Proposer Inquiries/Revisions to this RFP

Questions or requests for clarification regarding this RFP should be submitted citing the RFP page and section, by 12:00 P.M. ET on March 24, 2025, to Procurement@ig.ny.gov. Questions will not be accepted orally, and any question received after the deadline may not be answered. The comprehensive list of questions/requests for clarifications and the official responses will be posted to OIG's website at the following address: www.ig.ny.gov/doing-business-oig and emailed to firms that submitted inquiries.

In the event that it becomes necessary to clarify or revise this RFP, such clarification or revision will be made by addendum. Any addendum to this RFP will become part of this RFP and part of any contract awarded as a result of this RFP

Further, if a Proposer discovers any ambiguity, conflict, discrepancy, omission or other error in this RFP,

immediately notify the contacts listed on the cover page of such error and request clarification or modification to the document. OIG shall make RFP modifications by addendum, provided that any such modifications would not materially benefit or disadvantage any particular Proposer.

If a Proposer fails to notify OIG of a known error, or an error that reasonably should have been known, prior to the proposal submission deadline, the Proposer shall assume the risk. If awarded the contract, the Proposer shall not be entitled to additional compensation or time by reason of the error or its late correction

There are no designated dates for the release of addenda. Therefore, interested Proposers should check OIG's website on a daily basis from the time of RFP issuance through bid opening. It is the sole responsibility of the Proposer to be knowledgeable of all addenda related to this procurement.

All RFP addenda will be issued on OIG website at the following address: www.ig.ny.gov/doing-business-oig

9. Submission of a Complete Three-Part Proposal

Proposers must submit via email a searchable, PDF version of their proposal.

A Proposal Checklist is located in Appendix C to assist Proposers in compilation of proposal materials.

The email subject line should identify the RFP and be sent to Procurement@ig.ny.gov by the deadline outlined below.

Each Proposal component (Technical, Cost, and Administrative) must be separate files. If due to file size the components must be submitted in separate emails, that is acceptable only if all components are received by the Submission Deadline.

Proposals should be addressed to:
Offices of the Inspector General
Empire State Plaza
Agency Building #2, 16th Floor
Albany NY 12223

Submission of proposals, or proposals received in a manner other than as described in these instructions will not be accepted.

Late proposals will not be considered for award.

A complete package (Technical, Cost, and Administrative Proposals) must be received by **12:00 P.M. ET on April 28, 2025.**

10. Proposal Ownership

All proposals and accompanying documentation become the property of the State of New York and will not be returned. OIG reserves the right to use any portions of the Proposer's proposal not specifically noted as proprietary.

11. Evaluation and Award Criteria

11.1. General Information

OIG will evaluate each proposal on the basis of "Best Value." This means that the proposal that "optimizes quality, cost, and efficiency among responsive and responsible" Proposers shall be selected for award (State Finance Law, Article 11, § 163).

During the evaluation process, OIG may require clarifying information from a Proposer. If specific sections of the proposal require clarification, OIG will identify the section(s) and information requested in writing. The Proposer should respond by the deadline stated in the correspondence. In addition, OIG may use the proposal, information obtained through any interviews, and OIG's own investigation of a Proposer's qualifications, experience, ability or financial standing, and any other material or information in the course of evaluation and selection under this RFP. The State reserves the right to contact other sources not necessarily identified in the proposal to obtain information.

11.2. Submission Review

OIG will examine all proposals that are received in a proper and timely manner. Proposals that are materially deficient in meeting the submission requirements or have omitted material documents, in the sole opinion of OIG, may be rejected.

11.3. Evaluation and Scoring

Technical Evaluation (50 Points)

An Evaluation Panel will independently score each Technical Proposal that meets the submission requirements of this RFP. The Evaluation Panel will score Technical Proposals individually to identify Proposers with the highest probability of satisfactorily providing the services required. Evaluations will be based on the Proposer's demonstration of its ability to provide the services required through its Technical Proposal. Individual Panel member scores will be averaged to calculate a technical score for each responsive Proposer. The maximum score (50 points) will be allocated to the proposal with the highest average technical score. All other proposals will receive a proportionate score to the proposal with the highest technical score according to this formula:

Technical points awarded =
(50 potential points) X (High technical score / Proposer's Technical Score)

MWBE Diversity Practices (5 Points)

MWBE Diversity Practices will be evaluated based upon the Proposer's responses to the Questionnaire developed by the New York State Division of Minority and Women's Business Development and found in Form 6.1. This Questionnaire consists of eight (8) questions for Proposers to answer. Some questions request documentation be provided to support certain answers. Additional scoring information for diversity practices can be found in Form 6.2.

Cost Evaluation (30 Points)

Cost Proposals will be evaluated on a pre-determined formula using the information provided in Form 1. The maximum score (30 points) will be allocated to the proposal with the lowest cost according to this formula. All other proposals will receive a proportionate score to the proposal with the lowest cost, according to the following formula:

Cost points awarded =
(30 potential points) X (Low total price Rate / Proposer's total price)

Finalists and Interviews (15 points)
An initial composite score for each responsive Proposer will be calculated by adding the Technical Proposal points, MWBE Diversity Practices points and the Cost Proposal points. The Finalist Proposers will be the Proposers with the three highest initial composite scores and any Proposer within ten (10) percent of the average initial composite score of the top-three ranked Proposers.

Finalist Proposers will be notified of the date, location, and time of their interview. The interview will be designed to allow Finalist Proposers to demonstrate their ability to provide the required services. The key personnel who would be responsible for providing the required services should be present and participate in the demonstration.

Further information with regard to the format of this stage of the evaluation may be provided to the Finalist Proposers prior to the demonstration. The demonstration should substantiate the characteristics and attributes claimed by the Finalist Proposers in the written response to the RFP. However, the interviews will not be an opportunity to cure material omissions in Finalist Proposers' proposals and are not a substitute for a well-written proposal.

The maximum Interview score (15 points) will be allocated to the proposal with the highest average Interview score. Other finalist proposals will receive a proportionate score to the proposal with the highest technical score according to this formula:

Demonstration points awarded =
(15 potential points) X (High demonstration score / Finalist Proposer's Demonstration Score)

Final Composite Score
The final composite score for the Finalist Proposers will be calculated by adding the Interview points to the Initial Composite Score. The Proposer with the highest final composite score will be identified and selected as the Successful Proposer.

12. Award of Contract and Debriefing Process

12.1. Contract Award

OIG expects to award one contract as a result of this RFP. However, OIG reserves the right to not award a contract, at its sole discretion.

Notification of selection/non-selection will be sent to Proposers by email.

Contract award is subject to approval of the Office of the New York State Attorney General and the OSC.

Upon contract award, public announcements or news releases pertaining to the contract shall not be made without the prior written consent of OIG.

Upon notification of selection, the following administrative forms will be required:

A. State Finance Law Section 163(4) (g) imposes certain reporting requirements on contractors doing business with New York State. Concerning these reporting requirements, Selected Proposer agrees to complete and submit an initial planned employment data report. Selected Proposer also agrees to submit an annual employment report by May 15 of each year of the contract.
B. A Sales Tax Certification is required for review and approval of the contract by the OSC.
C. Proof of Workers' Compensation and Disability Insurance as required by Sections 57 and 220 of the New York State Workers' Compensation Law.

These forms can be reviewed in Appendix B (Sample Contract/Post Award Forms) of the RFP.

Upon contract award the Selected Proposer will also be required to execute a OIG specific Data Use Agreement (DUA). The DUA will align with the confidentiality terms described in the Sample Contract of Appendix B and provide further guidance on the provision of sensitive data to the Selected Proposer.

12.2. Debriefings

Unsuccessful Proposers shall be notified upon OIG's selection of a proposer. Consistent with New York State Finance Law §163, Proposers may, within fifteen (15) calendar days of notification of selection/non-selection, request a debriefing to discuss the evaluation of their proposal.

13. Contractual Requirements

13.1. Entire Agreement/Order of Precedence

The written contract with the Selected Proposer shall be a State contract that includes the "Standard Clauses for New York State Contracts," attached to this RFP as Appendix A.

The entire Agreement shall consist of the documents, appendices and forms listed below. Conflicts between these documents shall be resolved in the following order of precedence:

- Appendix A: Standard Clauses for New York State Contracts;
- The Contract, including all exhibits, appendices, forms and attachments;
- The RFP and any and all modifications and clarifications thereto; and
- The Selected Proposer's Proposal and any clarifications thereto.

The written contract will be modeled from the attached sample contract presented in Appendix B. Proposers offer their proposals accepting the terms and conditions of the sample contract.

13.2. Reservation of Rights

OIG reserves the right to:

A. Reject any or all proposals received in response to the RFP;
B. Withdraw the RFP at any time, at OIG's sole discretion;
C. Accept a proposal and any subsequent proposal for the contract from someone other than the lowest cost Proposer consistent with the criteria for the evaluation of proposals;
D. Make an award under the RFP in whole or in part;
E. Disqualify any Proposer whose conduct and/or proposal fails to conform to the requirements of the RFP;
F. Seek clarifications and revisions of proposals;
G. Use proposal information obtained through site visits, management interviews and the State's investigation of a Proposer's qualifications, experience, ability or financial standing, and any material or information submitted by the Proposer in response to OIG's request for clarifying information in the course of evaluation and/or selection under the RFP;
H. Prior to the bid opening, amend the RFP specifications to correct errors or oversights, or to supply additional information, as it becomes available;
I. Prior to the bid opening, direct Proposers to submit proposal modifications addressing subsequent RFP amendments;
J. Change any of the scheduled dates;
K. Eliminate any mandatory, non-material specifications that cannot be complied with by all of the prospective Proposers;
L. Waive any requirements that are not material;
M. Negotiate with Selected Proposer within the scope of the RFP in the best interests of the State;
N. Conduct contract negotiations with the next responsible Proposer, should OIG be unsuccessful in negotiating with Selected Proposer;
O. Utilize any and all ideas submitted in the proposals received;
P. Request best and final offers;
Q. Require clarification at any time during the procurement process and/or require correction of arithmetic or other apparent errors for the purpose of assuring a full and complete understanding of a Proposer's proposal and/or to determine a Proposer's compliance with the requirements of the solicitation; and

Negotiate with the next highest-rated, qualified Proposer for purposes of executing a contract, if it is subsequently

determined by OIG that the successful Proposer is not responsible.

13.3. Freedom of Information Law

New York State's Freedom of Information Law (FOIL) (Public Officers Law, Article 6, Sections 84-90), promotes the public's right to know the process of governmental decision-making and grants maximum public access to governmental records. All proposals submitted in response to this RFP may be subject to disclosure under FOIL.

However, pursuant to Section 87(2)(d) of FOIL, a State agency may deny access to those portions of proposals or portions of a successful Proposer's contract which are "trade secrets" or submitted to an agency by a commercial enterprise or derived from information obtained from a commercial enterprise and which, if disclosed, would cause substantial injury to the competitive position of the subject enterprise.

Please note that all information that a Proposer may claim as proprietary, copyrighted or rights-reserved is not necessarily protected from disclosure under FOIL.

If there is information in a Proposer's proposal that a Proposer claim meets the definition set forth in Section 87(2)(d), the Proposer should indicate so on Form 10 and provide a letter in its Administrative Proposal outlining any specific concerns.

Failure to identify the information which a Proposer believes should be protected by Section 87(2)(d) may result in such information being disclosed if a request is received.

It is a Proposer's responsibility to consult an attorney with any questions the Proposer may have about New York State's Freedom of Information Law. All work products described herein may also be subject to FOIL disclosure.

The State will not honor any attempt by a Proposer either to designate its entire bid proposal as proprietary and/or to claim copyright protection for its entire proposal.

Selected Proposer must provide to OIG all information, records, and other written material it produces, possesses, or relies upon if such material is the object of a legitimate request to OIG pursuant to FOIL.

13.4. Ethics/Ethics Requirements

The Proposer and its subcontractors shall not engage any person who is, or has been at any time, in the employ of the State to perform services in violation of the provisions of the New York Public Officers Law, other laws applicable to the service of State employees, and the rules, regulations, opinions, guidelines or policies promulgated or issued by the New York State Commission on Ethics and Lobbying in Government (COELIG), or its predecessors and successors (collectively, the "Ethics Requirements").

The Proposer certifies that all of its employees and those of its subcontractors who are former employees of the State and who are assigned to perform services under any resulting contract shall be assigned in accordance with all Ethics Requirements. During the Term of the contract, no person who is employed by the Proposer or its subcontractors and who is disqualified from providing services under any resulting contract pursuant to any Ethics Requirements may share in any net revenues of the Proposer or its subcontractors derived from any resulting contract.

The Proposer shall identify and provide the State with notice of those employees of the Proposer and its subcontractors who are former employees of the State that are proposed to perform services under any resulting contract and ensure that such employees comply with all applicable laws and prohibitions. The State may request that the Proposer provide it with whatever information the State deems appropriate about each such person's engagement, work cooperatively with the State to solicit advice from COELIG, or its predecessors and successors, and, if deemed appropriate by the State, instruct any such person to seek the opinion of COELIG or its predecessors and successors. The State shall have the right to withdraw or withhold approval of any

subcontractor if utilizing such Subcontractor for any work performed hereunder would be in conflict with any of the Ethics Requirements.

The State shall have the right to terminate any resulting contract at any time if any work performed hereunder is in conflict with any of the Ethics Requirements.

13.5. Vendor Responsibility Determination

OIG will conduct a review of Selected Proposer's Vendor Responsibility Questionnaire (Form 7) to provide reasonable assurances that the Proposer is responsible.

OIG will make a finding of responsibility or non-responsibility before making a contract award, considering any information that comes to its attention concerning the Proposer's responsibility.

If OIG identifies potentially negative information in its review, OIG will notify the Proposer. If OIG makes a preliminary finding that the Proposer is non-responsible, OIG will detail in writing to the Proposer the reasons(s) for the preliminary determination and will provide an opportunity for the Proposer to respond before the determination is finalized.

A Proposer awarded a contract is required to update its responsibility determination if a material event occurs requiring an amendment. The awarded Proposer is also required to update vendor responsibility questionnaires as new information becomes available.

The Proposer awarded a contract shall at all times during the contract term remain responsible. During the term of this contract, any changes in the provided Questionnaire shall be disclosed to OIG, in writing, in a timely manner. Failure to make such a disclosure may result in a determination of non-responsibility and termination of the contract. Furthermore, the awarded Proposer agrees, if requested by OIG, to present evidence of its continuing legal authority to do business in New York State, its integrity, experience, ability, prior performance, and organizational and financial capacity.

OIG, in its sole discretion, reserves the right to suspend any or all activities under the contract, at any time, when it discovers information that calls into question the responsibility of the awarded Proposer. In the event of such suspension, the awarded Proposer will be given written notice outlining the particulars of such suspension. Upon issuance of such notice, the awarded Proposer must comply with the terms of the suspension order. Contract activity may resume at such a time as OIG issues a written notice authorizing a resumption of performance under the contract.

Upon written notice to the awarded Proposer and a reasonable opportunity to be heard by the appropriate OIG staff, the contract may be terminated by OIG at the Proposer's expense where the Proposer is determined by OIG to be non-responsible. In such an event, OIG may complete contractual requirements in any manner it deems advisable and pursue available legal or equitable remedies for breach.

OIG reserves the right to terminate a contract for non-responsibility, including failure to disclose information.

This provision shall also apply to any proposed subcontractor performing services under the resulting contract in excess of $100,000.

13.6. New York State Public Officers Law

Contractors, consultants, vendors, and subcontractors may hire former State agency or authority employees. However, as a general rule and in accordance with New York Public Officers Law, former employees of the State agency or authority may neither appear nor practice before the State agency or authority, nor receive compensation for services rendered on a matter before the State agency or authority, for a period of two (2) years following their separation from State agency or authority service. In addition, former State agency or authority employees are subject to a "lifetime bar" from appearing before the State agency or authority or receiving compensation for services regarding any transaction in which they personally participated, or which was under their active consideration during their tenure with the State agency or authority.

13.7. Minority- and Women-Owned Business Enterprise (MWBE) and Service-Disabled Veteran-Owned Business Enterprise (SDVOB) Interest

New York State certified MWBE's and SDVOB's may request that their firm's contact information be included on a list of firms interested in serving as a subcontractor for this procurement. The listing will be publicly posted on OIG's website for reference by the bidding community. A Proposer requesting inclusion on this list should send contact information and a copy of its certification to Procurement@ig.ny.gov . Nothing prohibits an MWBE or SDVOB from submitting a proposal as a prime contractor.

13.7.1. NYS Executive Law Article 15-A

Pursuant to New York State Executive Law Article 15-A and Parts 140-145 of Title 5 of the New York Codes, Rules and Regulations, OIG is required to promote opportunities for the maximum feasible participation of New York State-certified MWBE and the employment of minority group members and women in the performance of OIG contracts.

13.7.2. Business Participation Opportunities for MWBEs

For purposes of this solicitation, OIG hereby establishes an overall goal of 30% for MWBE participation, 15% for New York State-certified Minority-owned Business Enterprises (MBE) participation and 15% for New York State-certified Women-owned Business Enterprises (WBE) participation (based on the current availability of qualified MBEs and WBEs). A Contractor on any contract resulting from this procurement (Contract) must document its good faith efforts to provide meaningful participation by MWBEs as subcontractors and suppliers in the performance of the Contract. To that end, by submitting a response to this RFP, the Proposer agrees that OIG may withhold payment pursuant to any Contract awarded as a result of this RFP pending receipt of the required MWBE documentation. The directory of MWBEs can be viewed at: https://ny.newnycontracts.com. For guidance on how OIG will evaluate a Contractor's "good faith efforts," refer to 5 NYCRR 142.8.

The Proposer understands that only sums paid to MWBEs for the performance of a commercially useful function, as that term is defined in 5 NYCRR § 140.1, may be applied towards the achievement of the applicable MWBE participation goal. The portion of a contract with an MWBE serving as a broker that shall be deemed to represent the commercially useful function performed by the MWBE shall be 30 percent of the total value of the contract.

In accordance with 5 NYCRR 142.13, the Proposer further acknowledges that if it is found to have willfully and intentionally failed to comply with the MWBE participation goals set forth in the Contract resulting from this RFP, such finding constitutes a breach of Contract, and OIG may withhold payment as liquidated damages.

Such liquidated damages shall be calculated as an amount equaling the difference between: (1) all sums identified for payment to MWBEs had the Contractor achieved the contractual MWBE goals; and (2) all sums actually paid to MWBEs for work performed or materials supplied under the Contract.

By submitting a bid or proposal, a Proposer agrees to demonstrate its good faith efforts to achieve the applicable

MWBE participation goals by submitting evidence thereof through the New York State Contract System (NYSCS), which can be viewed at https://ny.newnycontracts.com, provided, however, that a Proposer may arrange to provide such evidence via a non-electronic method by contacting OIG's Contracts Office at Procurement@ig.ny.gov.

Additionally, a Proposer will be required to submit the following documents and information as evidence of compliance with the foregoing:

An MWBE Utilization Plan with their bid or proposal. Any modifications or changes to an accepted MWBE Utilization Plan after the Contract award and during the term of the Contract must be reported on a revised MWBE Utilization Plan and submitted to OIG for review and approval.

OIG will review the submitted MWBE Utilization Plan and advise the Proposer of OIG's acceptance or issue a notice of deficiency within 30 calendar days of receipt.

If a notice of deficiency is issued, the Proposer will be required to respond to the notice of deficiency within seven (7) business days of receipt by submitting to the Offices of the New York State Inspector General, Empire State Plaza Agency Building #2, 16th Floor, Albany NY 12223, a written remedy. If the written remedy that is submitted is not timely or is found by OIG to be inadequate, OIG shall notify the Proposer and direct the Proposer to submit, within five (5) business days, a request for a partial or total waiver of MWBE participation goals. Failure to file the waiver form in a timely manner may be grounds for disqualification of the bid or proposal.

OIG may disqualify a Proposer as being non-responsive under the following circumstances:

- If a Proposer fails to submit an MWBE Utilization Plan;
- If a Proposer fails to submit a written remedy to a notice of deficiency;
- If a Proposer fails to submit a request for waiver; or
- If OIG determines that the Proposer has failed to document good faith efforts.

The successful Proposer will be required to attempt to utilize, in good faith, any MBE or WBE identified within its MWBE Utilization Plan, during the performance of the Contract. Requests for a partial or total waiver of established goal requirements made subsequent to Contract Award may be made at any time during the term of the Contract to OIG but must be made no later than prior to the submission of a request for final payment on the Contract.

The successful Proposer will be required to submit a quarterly MWBE Contractor Compliance & Payment Report to OIG by the 10th day following each end of quarter over the term of the Contract documenting the progress made toward achievement of the MWBE goals of the Contract.

13.7.3. Equal Employment Opportunity Requirements

By submission of a bid or proposal in response to this solicitation, the Proposer agrees with all of the terms and conditions of Appendix A Standard Clauses for All New York State Contracts including Clause 12 - Equal Employment Opportunities for Minorities and Women or Authority equivalent to Appendix A. The Proposer is required to ensure that it and any subcontractors awarded a subcontract for the construction, demolition, replacement, major repair, renovation, planning or design of real property and improvements thereon (the "Work"), except where the Work is for the beneficial use of the Proposer, shall undertake or continue programs to ensure that minority group members and women are afforded equal employment opportunities without discrimination because of race, creed, color, national origin, sex, gender identity or expression, age, disability or marital status. For these purposes, equal opportunity shall apply in the areas of recruitment, employment, job assignment, promotion, upgrading, demotion, transfer, layoff, termination, and rates of pay or other forms of compensation. This requirement does not apply to: (i) work, goods, or services unrelated to the Contract; or (ii) employment outside New York State.

The Proposer will be required to submit a Minority and Women-owned Business Enterprise and Equal

Employment Opportunity Policy Statement, Form 5.4, to OIG with its bid or proposal.

If awarded a Contract, the Proposer shall submit a Workforce Utilization Report and shall require each of its subcontractors to submit a Workforce Utilization Report in such format as shall be required by OIG on a quarterly basis during the term of the Contract.

Pursuant to Executive Order #162, contractors and subcontractors will also be required to report the gross wages paid to each of their employees for the work performed by such employees on the contract utilizing the Workforce Utilization Report on a quarterly basis.

Further, pursuant to Article 15 of the Executive Law (Human Rights Law), and all other state and federal statutory and constitutional non-discrimination provisions, the Contractor and sub-contractors will not discriminate against any employee or applicant for employment because of race, creed (religion), color, sex, national origin, sexual orientation, gender identity or expression, military status, age, disability, predisposing genetic characteristic, marital status or domestic violence victim status, and shall also follow the requirements of the Human Rights Law with regard to non-discrimination on the basis of prior criminal conviction and prior arrest.

Please Note: Failure to comply with the foregoing requirements may result in a finding of non-responsiveness, non-responsibility and/or a breach of the Contract, leading to the withholding of funds, suspension or termination of the Contract or such other actions or enforcement proceedings as allowed by the Contract.

13.8. Service-Disabled Veteran-Owned Business Enterprises (SDVOB); NYS Veterans' Services Law Article 3

Article 3 of the New York State Veterans' Services Law provides for more meaningful participation in public procurement by certified Service-Disabled Veteran-Owned Enterprises (SDVOBs), thereby further integrating such businesses into New York State's economy. OIG recognizes the need to promote the employment of service-disabled veterans and to ensure that certified service-disabled veteran-owned businesses have opportunities for maximum feasible participation in the performance of OIG contracts.

In recognition of the service and sacrifices made by service-disabled veterans and their economic activity in doing business in New York State, CONTRACTORS are strongly encouraged and expected to consider SDVOBs in the fulfillment of the requirements of the AGREEMENT. Such participation may be as subcontractors or suppliers, as protégés, or in other partnering or supporting roles. For purposes of this procurement, OIG conducted a comprehensive search and determined that the AGREEMENT does not offer sufficient opportunities to set specific goals for participation by SDVOBs as subcontractors, service providers, and suppliers to the CONTRACTOR. Nevertheless, CONTRACTOR is encouraged to make good faith efforts to promote and assist in the participation of SDVOBs in the AGREEMENT for the provision of services and materials. The directory of New York State Certified SDVOBs can be viewed at: https://online.ogs.ny.gov/SDVOB/search. CONTRACTOR is encouraged to contact the Office of General Services' Division of Service-Disabled Veteran's Business Development at 518-474-2015 or VeteransDevelopment@ogs.ny.gov to discuss methods of maximizing participation by SDVOBs on the Contract.

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APPENDIX A STANDARD CLAUSES FOR NEW YORK STATE CONTRACTS

PLEASE RETAIN THIS DOCUMENT FOR FUTURE REFERENCE

The parties to the attached contract, license, lease, amendment or other agreement of any kind (hereinafter, "the contract" or "this contract") agree to be bound by the following clauses which are hereby made a part of the contract (the word "Contractor" herein refers to any party other than the State, whether a contractor, licenser, licensee, lessor, lessee or any other party):

1. EXECUTORY CLAUSE. In accordance with Section 41 of the State Finance Law, the State shall have no liability under this contract to the Contractor or to anyone else beyond funds appropriated and available for this contract.

2. NON-ASSIGNMENT CLAUSE. In accordance with Section 138 of the State Finance Law, this contract may not be assigned by the Contractor or its right, title or interest therein assigned, transferred, conveyed, sublet or otherwise disposed of without the State's previous written consent, and attempts to do so are null and void. Notwithstanding the foregoing, such prior written consent of an assignment of a contract let pursuant to Article XI of the State Finance Law may be waived at the discretion of the contracting agency and with the concurrence of the State Comptroller where the original contract was subject to the State Comptroller's approval, where the assignment is due to a reorganization, merger or consolidation of the Contractor's business entity or enterprise. The State retains its right to approve an assignment and to require that any Contractor demonstrate its responsibility to do business with the State. The Contractor may, however, assign its right to receive payments without the State's prior written consent unless this contract concerns Certificates of Participation pursuant to Article 5-A of the State Finance Law.

3. COMPTROLLER'S APPROVAL. In accordance with Section 112 of the State Finance Law, if this contract exceeds $50,000 (or $75,000 for State University of New York or City University of New York contracts for goods, services, construction and printing, and $150,000 for State University Health Care Facilities) or if this is an amendment for any amount to a contract which, as so amended, exceeds said statutory amount, or if, by this contract, the State agrees to give something other than money when the value or reasonably estimated value of such consideration exceeds $25,000, it shall not be valid, effective or binding upon the State until it has been approved by the State Comptroller and filed in his office. Comptroller's approval of contracts let by the Office of General Services, either for itself or its customer agencies by the Office of General Services Business Services Center, is required when such contracts exceed $85,000. Comptroller's approval of contracts established as centralized contracts through the Office of General Services is required when such contracts exceed $125,000, and when a purchase order or other procurement transaction issued under such centralized contract exceeds $200,000.

4. WORKERS' COMPENSATION BENEFITS. In accordance with Section 142 of the State Finance Law, this contract shall be void and of no force and effect unless the Contractor shall provide and maintain coverage during the life of this contract for the benefit of such employees as are required to be covered by the provisions of the Workers' Compensation Law.

5. NON-DISCRIMINATION REQUIREMENTS. To the extent required by Article 15 of the Executive Law (also known as the Human Rights Law) and all other State and Federal statutory and constitutional non-discrimination provisions, the Contractor will not discriminate against any employee or applicant for employment, nor subject any individual to harassment, because of age, race, creed, color, national origin, citizenship or immigration status, sexual orientation, gender identity or expression, military status, sex, disability, predisposing genetic characteristics, familial

status, marital status, or domestic violence victim status or because the individual has opposed any practices forbidden under the Human Rights Law or has filed a complaint, testified, or assisted in any proceeding under the Human Rights Law. Furthermore, in accordance with Section 220-e of the Labor Law, if this is a contract for the construction, alteration or repair of any public building or public work or for the manufacture, sale or distribution of materials, equipment or supplies, and to the extent that this contract shall be performed within the State of New York, Contractor agrees that neither it nor its subcontractors shall, by reason of race, creed, color, disability, sex, or national origin: (a) discriminate in hiring against any New York State citizen who is qualified and available to perform the work; or (b) discriminate against or intimidate any employee hired for the performance of work under this contract. If this is a building service contract as defined in Section 230 of the Labor Law, then, in accordance with Section 239 thereof, Contractor agrees that neither it nor its subcontractors shall by reason of race, creed, color, national origin, age, sex or disability: (a) discriminate in hiring against any New York State citizen who is qualified and available to perform the work; or (b) discriminate against or intimidate any employee hired for the performance of work under this contract. Contractor is subject to fines of $50.00 per person per day for any violation of Section 220-e or Section 239 as well as possible termination of this contract and forfeiture of all moneys due hereunder for a second or subsequent violation.

6. WAGE AND HOURS PROVISIONS. If this is a public work contract covered by Article 8 of the Labor Law or a building service contract covered by Article 9 thereof, neither Contractor's employees nor the employees of its subcontractors may be required or permitted to work more than the number of hours or days stated in said statutes, except as otherwise provided in the Labor Law and as set forth in prevailing wage and supplement schedules issued by the State Labor Department. Furthermore, Contractor and its subcontractors must pay at least the prevailing wage rate and pay or provide the prevailing supplements, including the premium rates for overtime pay, as determined by the State Labor Department in accordance with the Labor Law. Additionally, effective April 28, 2008, if this is a public work contract covered by Article 8 of the Labor Law, the Contractor understands and agrees that the filing of payrolls in a manner consistent with Subdivision 3-a of Section 220 of the Labor Law shall be a condition precedent to payment by the State of any State approved sums due and owing for work done upon the project.

7. NON-COLLUSIVE BIDDING CERTIFICATION. In accordance with Section 139-d of the State Finance Law, if this contract was awarded based upon the submission of bids, Contractor affirms, under penalty of perjury, that its bid was arrived at independently and without collusion aimed at restricting competition. Contractor further affirms that, at the time Contractor submitted its bid, an authorized and responsible person executed and delivered to the State a non-collusive bidding certification on Contractor's behalf.

8. INTERNATIONAL BOYCOTT PROHIBITION. In accordance with Section 220-f of the Labor Law and Section 139-h of the State Finance Law, if this contract exceeds $5,000, the Contractor agrees, as a material condition of the contract, that neither the Contractor nor any substantially owned or affiliated person, firm, partnership or corporation has participated, is participating, or shall participate in an international boycott in violation of the federal Export Administration Act of 1979 (50 USC App. Sections 2401 et seq.) or regulations thereunder. If such Contractor, or any of the aforesaid affiliates of Contractor, is convicted or is otherwise found to have violated said laws or regulations upon the final determination of the United States Commerce Department or any other appropriate agency of the United States subsequent to the contract's execution, such contract, amendment or modification thereto shall be rendered forfeit and void. The Contractor shall so notify the State Comptroller within five (5) business days of such conviction, determination or disposition of appeal (2 NYCRR § 105.4).

9. SET-OFF RIGHTS. The State shall have all of its common law, equitable and statutory rights of set-off. These rights shall include, but not be limited to, the State's option to withhold for the purposes of set-off any moneys due to the Contractor under this contract up to any amounts due and owing to the State with regard to this contract, any other contract with any State department or agency, including any contract for a term commencing prior to the term of this contract, plus any amounts due and owing to the State for any other reason including, without limitation, tax delinquencies, fee delinquencies or monetary penalties relative thereto. The State shall exercise its set-off rights in accordance with normal State practices including, in cases of set-off pursuant to an audit, the finalization of such audit by the State agency, its representatives, or the State Comptroller.

10. RECORDS. The Contractor shall establish and maintain complete and accurate books, records, documents, accounts and other evidence directly pertinent to performance under this contract (hereinafter, collectively, the "Records"). The Records must be kept for the balance of the calendar year in which they were made and for six (6) additional years thereafter. The State Comptroller, the Attorney General and any other person or entity authorized to conduct an examination, as well as the agency or agencies involved in this contract, shall have access to the Records during normal business hours at an office of the Contractor within the State of New York or, if no such office is available, at a mutually agreeable and reasonable venue within the State, for the term specified above for the purposes of inspection, auditing and copying. The State shall take reasonable steps to protect from public disclosure any of the Records which are exempt from disclosure under Section 87 of the Public Officers Law (the "Statute") provided that: (i) the Contractor shall timely inform an appropriate State official, in writing, that said records should not be disclosed; and (ii) said records shall be sufficiently identified; and (iii) designation of said records as exempt under the Statute is reasonable. Nothing contained herein shall diminish, or in any way adversely affect, the State's right to discovery in any pending or future litigation.

11. IDENTIFYING INFORMATION AND PRIVACY NOTIFICATION. (a) Identification Number(s). Every invoice or New York State Claim for Payment submitted to a New York State agency by a payee, for payment for the sale of goods or services or for transactions (e.g., leases, easements, licenses, etc.) related to real or personal property must include the payee's identification number. The number is any or all of the following: (i) the payee's Federal employer identification number, (ii) the payee's Federal social security number, and/or (iii) the payee's Vendor Identification Number assigned by the Statewide Financial System. Failure to include such number or numbers may delay payment. Where the payee does not have such number or numbers, the payee, on its invoice or Claim for Payment, must give the reason or reasons why the payee does not have such number or numbers.

(b) Privacy Notification. (1) The authority to request the above personal information from a seller of goods or services or a lessor of real or personal property, and the authority to maintain such information, is found in Section 5 of the State Tax Law. Disclosure of this information by the seller or lessor to the State is mandatory. The principal purpose for which the information is collected is to enable the State to identify individuals, businesses and others who have been delinquent in filing tax returns or may have understated their tax liabilities and to generally identify persons affected by the taxes administered by the Commissioner of Taxation and Finance. The information will be used for tax administration purposes and for any other purpose authorized by law. (2) The personal information is requested by the purchasing unit of the agency contracting to purchase the goods or services or lease the real or personal property covered by this contract or lease. The information is maintained in the Statewide Financial System by the Vendor Management Unit within the Bureau of State Expenditures, Office of the State Comptroller, 110

State Street, Albany, New York 12236.

12. EQUAL EMPLOYMENT OPPORTUNITIES FOR MINORITIES AND WOMEN. In accordance with Section 312 of the Executive Law and 5 NYCRR Part 143, if this contract is: (i) a written agreement or purchase order instrument, providing for a total expenditure in excess of $25,000.00, whereby a contracting agency is committed to expend or does expend funds in return for labor, services, supplies, equipment, materials or any combination of the foregoing, to be performed for, or rendered or furnished to the contracting agency; or (ii) a written agreement in excess of $100,000.00 whereby a contracting agency is committed to expend or does expend funds for the acquisition, construction, demolition, replacement, major repair or renovation of real property and improvements thereon; or (iii) a written agreement in excess of $100,000.00 whereby the owner of a State assisted housing project is committed to expend or does expend funds for the acquisition, construction, demolition, replacement, major repair or renovation of real property and improvements thereon for such project, then the following shall apply and by signing this agreement the Contractor certifies and affirms that it is Contractor's equal employment opportunity policy that:

(a) The Contractor will not discriminate against employees or applicants for employment because of race, creed, color, national origin, sex, age, disability or marital status, shall make and document its conscientious and active efforts to employ and utilize minority group members and women in its work force on State contracts and will undertake or continue existing programs of affirmative action to ensure that minority group members and women are afforded equal employment opportunities without discrimination. Affirmative action shall mean recruitment, employment, job assignment, promotion, upgradings, demotion, transfer, layoff, or termination and rates of pay or other forms of compensation;

(b) at the request of the contracting agency, the Contractor shall request each employment agency, labor union, or authorized representative of workers with which it has a collective bargaining or other agreement or understanding, to furnish a written statement that such employment agency, labor union or representative will not discriminate on the basis of race, creed, color, national origin, sex, age, disability or marital status and that such union or representative will affirmatively cooperate in the implementation of the Contractor's obligations herein; and

(c) the Contractor shall state, in all solicitations or advertisements for employees, that, in the performance of the State contract, all qualified applicants will be afforded equal employment opportunities without discrimination because of race, creed, color, national origin, sex, age, disability or marital status.

Contractor will include the provisions of "(a), (b) and (c)" above, in every subcontract over $25,000.00 for the construction, demolition, replacement, major repair, renovation, planning or design of real property and improvements thereon (the "Work") except where the Work is for the beneficial use of the Contractor. Section 312 does not apply to: (i) work, goods or services unrelated to this contract; or (ii) employment outside New York State. The State shall consider compliance by a contractor or subcontractor with the requirements of any federal law concerning equal employment opportunity which effectuates the purpose of this clause. The contracting agency shall determine whether the imposition of the requirements of the provisions hereof duplicate or conflict with any such federal law and if such duplication or conflict exists, the contracting agency shall waive the applicability of Section 312 to the extent of such duplication or conflict. Contractor will comply with all duly promulgated and lawful rules and regulations of the Department of Economic Development's Division of Minority and Women's Business

Development pertaining hereto.

13. CONFLICTING TERMS. In the event of a conflict between the terms of the contract (including any and all attachments thereto and amendments thereof) and the terms of this Appendix A, the terms of this Appendix A shall control.

14. GOVERNING LAW. This contract shall be governed by the laws of the State of New York except where the Federal supremacy clause requires otherwise.

15. LATE PAYMENT. Timeliness of payment and any interest to be paid to Contractor for late payment shall be governed by Article 11-A of the State Finance Law to the extent required by law.

16. NO ARBITRATION. Disputes involving this contract, including the breach or alleged breach thereof, may not be submitted to binding arbitration (except where statutorily authorized), but must, instead, be heard in a court of competent jurisdiction of the State of New York.

17. SERVICE OF PROCESS. In addition to the methods of service allowed by the State Civil Practice Law & Rules ("CPLR"), Contractor hereby consents to service of process upon it by registered or certified mail, return receipt requested. Service hereunder shall be complete upon Contractor's actual receipt of process or upon the State's receipt of the return thereof by the United States Postal Service as refused or undeliverable. Contractor must promptly notify the State, in writing, of each and every change of address to which service of process can be made. Service by the State to the last known address shall be sufficient. Contractor will have thirty (30) calendar days after service hereunder is complete in which to respond.

18. PROHIBITION ON PURCHASE OF TROPICAL HARDWOODS. The Contractor certifies and warrants that all wood products to be used under this contract award will be in accordance with, but not limited to, the specifications and provisions of Section 165 of the State Finance Law, (Use of Tropical Hardwoods) which prohibits purchase and use of tropical hardwoods, unless specifically exempted, by the State or any governmental agency or political subdivision or public benefit corporation. Qualification for an exemption under this law will be the responsibility of the contractor to establish to meet with the approval of the State.

In addition, when any portion of this contract involving the use of woods, whether supply or installation, is to be performed by any subcontractor, the prime Contractor will indicate and certify in the submitted bid proposal that the subcontractor has been informed and is in compliance with specifications and provisions regarding use of tropical hardwoods as detailed in § 165 State Finance Law. Any such use must meet with the approval of the State; otherwise, the bid may not be considered responsive. Under bidder certifications, proof of qualification for exemption will be the responsibility of the Contractor to meet with the approval of the State.

19. MACBRIDE FAIR EMPLOYMENT PRINCIPLES. In accordance with the MacBride Fair Employment Principles (Chapter 807 of the Laws of 1992), the Contractor hereby stipulates that the Contractor either (a) has no business operations in Northern Ireland, or (b) shall take lawful steps in good faith to conduct any business operations in Northern Ireland in accordance with the MacBride Fair Employment Principles (as described in Section 165 of the New York State Finance Law), and shall permit independent monitoring of compliance with such principles.

20. OMNIBUS PROCUREMENT ACT OF 1992. It is the policy of New York State to maximize opportunities for the participation of New York State business enterprises, including minority- and women-owned business enterprises as bidders, subcontractors and suppliers on its procurement

contracts.

Information on the availability of New York State subcontractors and suppliers is available from:

NYS Department of Economic Development
Division for Small Business and Technology Development
625 Broadway
Albany, New York 12245
Telephone: 518-292-5100

A directory of certified minority- and women-owned business enterprises is available from:

NYS Department of Economic Development
Division of Minority and Women's Business Development
633 Third Avenue 33rd Floor
New York, NY 10017
646-846-7364
email: mwbebusinessdev@esd.ny.gov
https://ny.newnycontracts.com/FrontEnd/searchcertifieddirectory.asp

The Omnibus Procurement Act of 1992 (Chapter 844 of the Laws of 1992, codified in State Finance Law § 139-i and Public Authorities Law § 2879(3)(n)–(p)) requires that by signing this bid proposal or contract, as applicable, Contractors certify that whenever the total bid amount is greater than $1 million:

(a) The Contractor has made reasonable efforts to encourage the participation of New York State Business Enterprises as suppliers and subcontractors, including certified minority- and women-owned business enterprises, on this project, and has retained the documentation of these efforts to be provided upon request to the State;

(b) The Contractor has complied with the Federal Equal Opportunity Act of 1972 (P.L. 92-261), as amended;

(c) The Contractor agrees to make reasonable efforts to provide notification to New York State residents of employment opportunities on this project through listing any such positions with the Job Service Division of the New York State Department of Labor, or providing such notification in such manner as is consistent with existing collective bargaining contracts or agreements. The Contractor agrees to document these efforts and to provide said documentation to the State upon request; and

(d) The Contractor acknowledges notice that the State may seek to obtain offset credits from foreign countries as a result of this contract and agrees to cooperate with the State in these efforts.

21. RECIPROCITY AND SANCTIONS PROVISIONS. Bidders are hereby notified that if their principal place of business is located in a country, nation, province, state or political subdivision that penalizes New York State vendors, and if the goods or services they offer will be substantially produced or performed outside New York State, the Omnibus Procurement Act 1994 and 2000 amendments (Chapter 684 and Chapter 383, respectively, codified in State Finance Law § 165(6) and Public Authorities Law § 2879(5)) require that they be denied contracts which they would otherwise obtain. NOTE: As of May 2023, the list of discriminatory jurisdictions subject to this provision includes the states of South Carolina, Alaska, West Virginia, Wyoming, Louisiana and

Hawaii.

22. COMPLIANCE WITH BREACH NOTIFICATION AND DATA SECURITY LAWS. Contractor shall comply with the provisions of the New York State Information Security Breach and Notification Act (General Business Law §§ 899-aa and 899-bb and State Technology Law § 208).

23. COMPLIANCE WITH CONSULTANT DISCLOSURE LAW. If this is a contract for consulting services, defined for purposes of this requirement to include analysis, evaluation, research, training, data processing, computer programming, engineering, environmental, health, and mental health services, accounting, auditing, paralegal, legal or similar services, then, in accordance with Section 163 (4)(g) of the State Finance Law (as amended by Chapter 10 of the Laws of 2006), the Contractor shall timely, accurately and properly comply with the requirement to submit an annual employment report for the contract to the agency that awarded the contract, the Department of Civil Service and the State Comptroller.

24. PROCUREMENT LOBBYING. To the extent this agreement is a "procurement contract" as defined by State Finance Law §§ 139-j and 139-k, by signing this agreement the contractor certifies and affirms that all disclosures made in accordance with State Finance Law §§ 139-j and 139-k are complete, true and accurate. In the event such certification is found to be intentionally false or intentionally incomplete, the State may terminate the agreement by providing written notification to the Contractor in accordance with the terms of the agreement.

25. CERTIFICATION OF REGISTRATION TO COLLECT SALES AND COMPENSATING USE TAX BY CERTAIN STATE CONTRACTORS, AFFILIATES AND SUBCONTRACTORS. To the extent this agreement is a contract as defined by Tax Law § 5-a, if the contractor fails to make the certification required by Tax Law § 5-a or if during the term of the contract, the Department of Taxation and Finance or the covered agency, as defined by Tax Law § 5-a, discovers that the certification, made under penalty of perjury, is false, then such failure to file or false certification shall be a material breach of this contract and this contract may be terminated, by providing written notification to the Contractor in accordance with the terms of the agreement, if the covered agency determines that such action is in the best interest of the State.

26. IRAN DIVESTMENT ACT. By entering into this Agreement, Contractor certifies in accordance with State Finance Law § 165-a that it is not on the "Entities Determined to be Non-Responsive Bidders/Offerers pursuant to the New York State Iran Divestment Act of 2012" ("Prohibited Entities List") posted at: https://ogs.ny.gov/iran-divestment-act-2012

Contractor further certifies that it will not utilize on this Contract any subcontractor that is identified on the Prohibited Entities List. Contractor agrees that should it seek to renew or extend this Contract, it must provide the same certification at the time the Contract is renewed or extended. Contractor also agrees that any proposed Assignee of this Contract will be required to certify that it is not on the Prohibited Entities List before the contract assignment will be approved by the State.

During the term of the Contract, should the state agency receive information that a person (as defined in State Finance Law § 165-a) is in violation of the above-referenced certifications, the state agency will review such information and offer the person an opportunity to respond. If the person fails to demonstrate that it has ceased its engagement in the investment activity which is in violation of the Act within 90 days after the determination of such violation, then the state agency shall take such action as may be appropriate and provided for by law, rule, or contract, including, but not limited to, imposing sanctions, seeking compliance, recovering damages, or declaring the

Contractor in default.

The state agency reserves the right to reject any bid, request for assignment, renewal or extension for an entity that appears on the Prohibited Entities List prior to the award, assignment, renewal or extension of a contract, and to pursue a responsibility review with respect to any entity that is awarded a contract and appears on the Prohibited Entities list after contract award.

27. ADMISSIBILITY OF REPRODUCTION OF CONTRACT. Notwithstanding the best evidence rule or any other legal principle or rule of evidence to the contrary, the Contractor acknowledges and agrees that it waives any and all objections to the admissibility into evidence at any court proceeding or to the use at any examination before trial of an electronic reproduction of this contract, in the form approved by the State Comptroller, if such approval was required, regardless of whether the original of said contract is in existence.

APPENDIX B: SAMPLE CONTRACT / POST AWARD FORMS

CONTRACT NO.

THE OFFICES OF THE NEW YORK STATE INSPECTOR GENERAL
AND

_____

FOR SOFTWARE DEVELOPMENT AND IMPLEMENTATION SERVICES

FOR THE PERIOD
SEPTEMBER 1, 2025 THROUGH SEPTEMBER, 1, 2030

THIS IS AN AGREEMENT (the "AGREEMENT") by and between the OFFICES OF THE NEW YORK STATE INSPECTOR GENERAL (hereinafter referred to as the "OIG" or "INSPECTOR GENERAL"), and _____(hereinafter referred to as "_____" or "CONTRACTOR"), with offices located at _____.

WITNESSETH

WHEREAS, The INSPECTOR GENERAL works to identify and investigate allegations of corruption, fraud, criminal activity, conflicts of interest, or abuse within its' respective areas of jurisdiction and to implement best practices, provide oversight, and conduct training.

WHEREAS, OIG is seeking a user-friendly solution to perform, manage, and integrate its daily workflow processes and data systems. OIG relies heavily on its case management system (CMS) as a cornerstone for its complaint intake and investigation processes. This system serves as the primary platform for receiving, documenting, and managing complaints through the investigation lifecycle.

WHEREAS, OIG's current CMS is antiquated and outdated. The current CMS suffers from slow performance and limited functionality and lacks automation features.

WHEREAS, to obtain software development and implementation services, a Request for Proposals (RFP) was issued on March 3, 2025, a copy of which is incorporated hereto as, Appendix B; and

WHEREAS, after an evaluation of the proposals submitted for the performance of such work, the Inspector General has determined that_____ is a responsible and qualified entity to perform the services based upon its Proposal dated _____ _____, a copy of which is incorporated hereto as Appendix C; and

WHEREAS, the CONTRACTOR is willing to serve as the appointed CONTRACTOR, as outlined in the RFP and herein;

NOW, THEREFORE, in consideration of the terms and conditions of this AGREEMENT, it is hereby mutually agreed upon by and between OIG and the CONTRACTOR (each individually a "PARTY" and collectively "PARTIES"), as follows:

SERVICES
OIG does hereby engage _____ to provide Software Development and Implementation Services as described in Section 5 of the RFP.

CONTRACTOR shall be responsible for the services and deliverables as outlined in the RFP and as described in CONTRACTOR response to the RFP, attached hereto as Appendix C.

CONTRACTOR agrees to perform and furnish the services required in connection herewith in accordance with all conditions, covenants and representations contained in this AGREEMENT.

TERM
The Term of the contract shall commence upon State Comptroller approval and will be in effect for **five years**, plus an **optional five-year extension**. Upon the expiration or termination of the Contract, the CONTRACTOR shall ensure a seamless transfer of Contract responsibilities to the INSPECTOR GENERAL or any subsequent Contractor as necessary to transition the Services provided under the Contract and as described Section 5.10 of the RFP.

COMPENSATION
CONTRACTOR's compensation for services rendered under this AGREEMENT shall be paid based on the following schedule and structure:

Deliverable Costs
- Implementation Plan: _____
- SaaS Solution Development: _____
- Legacy System Migration: _____

Payment for Deliverables
- Full (100%) payment to the CONTRACTOR for the Implementation Plan and Legacy System Migration will be made upon acceptance by OIG of applicable deliverables and submission of an approvable invoice.
- Compensation for the SaaS Solution Development will be periodic and in accordance with the following: At the conclusion of the first month following the commencement of SaaS Solution Development work, and receipt of an approvable invoice, OIG will remit payment for 10% of the total deliverable cost for each month in which deliverable work is conducted, for up to eight (8) months. The remaining deliverable cost will be paid to the CONTRACTOR upon written OIG acceptance of as described in RFP Section 5.9 and submission of an approvable invoice.

Payment for Data Hosting and Licensing
Payment for Data Hosting and Licensing will be made once the entire solution has been implemented and accepted in writing, as described in RFP Section 5.9. Payment will be made, annually beginning on the date of Final Solution Acceptance. The date will be established in writing by OIG.

Contract Year	Hosting and Licensing Fee
Data Hosting and Licensing Year 1	
Data Hosting and Licensing Year 2	
Data Hosting and Licensing Year 3	
Data Hosting and Licensing Year 4	
Data Hosting and Licensing Year 5	

Data Hosting and Licensing Year 6	
Data Hosting and Licensing Year 7	
Data Hosting and Licensing Year 8	
Data Hosting and Licensing Year 9	
Data Hosting and Licensing Year 10	

Hourly Services

For the Training hours, CONTRACTOR will bill monthly for actual hours utilized and supported by the electronic reporting system as required in Section 5.3 of the RFP. Selected Proposer must bill these hours separately on an individual quarter-hour basis, as used, and not as any block or flat recurring fee. CONTRACTOR agrees to a rate of _____per hour for Training. OIG will increase this rate 2% per contract year, starting 365 days after contract approval by OSC.

For Solution Enhancements/Change Requests hours will only be utilized by OIG once Final Solution Acceptance, as described in RFP Section 5.9, has occurred. CONTRACTOR will bill monthly for actual hours utilized and supported by the electronic reporting system as required in Section 5.7.6 of the RFP.

For payment of Solution Enhancement/Change Request hours, CONTRACTOR must submit the approved solution enhancement/change request scope of work, an invoice listing the solution enhancement/change request number, and a listing by job title of the actual number of hours worked for each staff. CONTRACTOR agrees to a rate of _____per hour for Solution Enhancement/Change Request. OIG will increase this rate 2% per contract year, starting 365 days after contract approval by OSC.

The above rates shall apply to all hourly compensation paid under this AGREEMENT. The hourly rates are inclusive of personnel expenses, travel, postage, reproduction and all other expenses.

Proper Invoice

The CONTRACTOR acknowledges that it will not receive payment on any invoices submitted under this AGREEMENT unless or until it complies with the State Comptroller's electronic payment procedures.

Fees shall become payable by the STATE upon receipt of an invoice in accordance with this section. Properly invoiced fees not paid within 30 days of receipt of the invoice and services will be paid with interest in accordance with Article 11-A of New York State Finance Law. Any and all such invoices shall contain a detailed itemization of requested compensation which shall, at the minimum include:

- The number assigned to this AGREEMENT (_____),
- the CONTRACTOR's New York State Vendor Identification Number,
- an invoice number,
- an invoice date;
- Name(s) and title(s) (as identified in this section) of the CONTRACTOR staff providing services;
- Name(s) of OIG employees, or their designee(s), requesting the services and directly involved;
- Specific identification of the services provided;
- Amounts for rates, hours and total compensation;
- and Dates upon which the services were requested and performed.

All invoices should be submitted electronically to OIG at Accounts.Payable@IG.NY.GOV

The CONTRACTOR shall not be reimbursed for the preparation of invoices or billing statements or for the time spent correcting any error in previously submitted invoices or billing statements.

RELATIONSHIP OF PARTIES

The relationship of the CONTRACTOR to OIG shall be that of an independent contractor. In accordance with such status as an independent contractor, the CONTRACTOR covenants and agrees to act consistent with such status: to neither hold itself out as, nor claim to be, an officer or employee of OIG or the State by reason hereof; and not to, by reason hereof, make any claim, demand, or application to or for any right or privilege applicable to an officer or employee of OIG or the State, including but not limited to Workers' Compensation coverage, unemployment insurance benefits, Social Security coverage, or retirement membership credit.

STAFF

The CONTRACTOR shall assign _____ as the personnel participating in this AGREEMENT, but is not limited in its utilization of other personnel for its duties hereunder, subject to the approval of OIG.

CONTRACTOR staff assigned to work on this project shall be subject to approval by OIG. It is highly desirable that staff assigned to work on a project continue to work on the project until completion. OIG reserves the right to require security clearance and criminal history checks of the CONTRACTOR and/or staff.

The CONTRACTOR specifically represents and agrees that its members, officers, employees, agents, consultants, shareholders, and subcontractors have and shall possess the experience, knowledge, and character necessary to qualify them individually for the particular duties performed hereunder. All employees of the CONTRACTOR, or of its subcontractors, who shall perform the services under this AGREEMENT, shall possess the necessary qualifications, training, licenses, and permits as may be required within the jurisdiction where the services specified are to be provided or performed, and shall be legally entitled to work in such jurisdiction. All persons, corporations, or other legal entities that perform services under this AGREEMENT on behalf of CONTRACTOR shall, in performing the services, comply with all applicable Federal and State laws concerning employment in the United States.

This AGREEMENT is intended to secure the professional services of the CONTRACTOR because of its ability and shall not be assigned, conveyed, transferred, or disposed of by the CONTRACTOR.

The CONTRACTOR shall be fully responsible for performance of work by and conduct of its staff and subcontractor's staff. OIG reserves the right to request removal of any CONTRACTOR staff or subcontractor staff if, in OIG's sole discretion, such staff is not performing in accordance with the AGREEMENT.

The CONTRACTOR shall notify OIG immediately of any proposed changes in staff. OIG has an absolute right and discretion to approve or disapprove any proposed changes in staff. OIG, in each instance, will be provided with a summary of experience of the proposed substitute and an opportunity to interview that person, prior to giving its approval or disapproval; approval shall not be unreasonably withheld. The replacement staff must have the skills, experience and expertise that is comparable to or better than that of the person they will replace, and will be provided at

the same or lower hourly rate.

The CONTRACTOR and its staff must comply with the requirements of Sections 73 and 74 of the Public Officers Law, other State codes, rules, regulations and executive orders establishing ethical standards for the conduct of business with the State. Failure to comply with these requirements may result in termination of the AGREEMENT and/or other civil or criminal proceedings as required by law.

SUBCONTRACTING

The CONTRACTOR agrees not to subcontract any of its services, unless as indicated in its proposal, without the prior written approval of OIG. Approval shall not be unreasonably withheld upon receipt of written request to subcontract.

The CONTRACTOR may arrange for a portion/s of its responsibilities under this AGREEMENT to be subcontracted to qualified, responsible subcontractors, subject to approval of OIG. If the CONTRACTOR determines to subcontract a portion of the services, the subcontractors must be clearly identified and the nature and extent of its involvement in and/or proposed performance under this AGREEMENT must be fully explained by the CONTRACTOR to OIG. The CONTRACTOR retains ultimate responsibility for all services performed under the AGREEMENT.

All subcontracts shall be in writing and shall contain provisions, which are functionally identical to, and consistent with, the provisions of this AGREEMENT including, but not limited to, the body of this AGREEMENT, Appendix A – Standard Clauses for New York State Contracts dated June 2023, and Appendix B – Request for Proposals dated March 3, 2025. Unless waived in writing by OIG, all subcontracts between the CONTRACTOR and subcontractors shall expressly name the State, through OIG, as the sole intended third party beneficiary of such subcontract. OIG reserves the right to review and approve or reject any subcontract, as well as any amendment to said subcontract(s), and this right shall not make OIG or the State a party to any subcontract or create any right, claim, or interest in the subcontractor or proposed subcontractor against OIG.

OIG reserves the right, at any time during the term of the AGREEMENT, to verify that the written subcontract between the CONTRACTOR and subcontractors is in compliance with all provisions of this Section and any subcontract provisions contained in this AGREEMENT.

The CONTRACTOR shall give OIG immediate notice in writing of the initiation of any legal action or suit which relates in any way to a subcontract with a subcontractor or which may affect the performance of the CONTRACTOR's duties under the AGREEMENT. Any subcontract shall not relieve the CONTRACTOR in any way of any responsibility, duty and/or obligation of the AGREEMENT.

RESERVATIONS

OIG reserves the right to employ other consultants and contractors in connection with its responsibilities and functions. In that event, the CONTRACTOR will, as directed by OIG, cooperate and work in harmony with such consultants and contractors.

OIG REPRESENTATIVES

OIG, with the commencement of this AGREEMENT, designates as its representatives, ____ and _____, or their designee(s).

Such representatives shall request, oversee, supervise and accept performance of services performed by the CONTRACTOR and shall receive any required submissions. Whenever an

agreement action is to be taken or approval for services is to be given by OIG such action or approval may be given only by such representative(s) designated pursuant to this Section.

All Notices under this AGREEMENT shall be directed to the representatives identified in this Section, or their designee(s).

OIG may, on written notice, designate other individuals as its representatives.

CONFLICTS OF INTEREST

The CONTRACTOR has provided a form (Firm Assurance of No Conflict of Interest or Detrimental Effect), signed by an authorized executive or legal representative attesting that the CONTRACTOR's performance of the services does not and will not create a conflict of interest with, nor position the CONTRACTOR to breach any other contract currently in force with the State, that the CONTRACTOR will not act in any manner that is detrimental to any State project on which the CONTRACTOR is rendering services.

The CONTRACTOR hereby reaffirms the attestations made in its proposal and covenants and represents that there is and shall be no actual or potential conflict of interest that could prevent the CONTRACTOR's satisfactory or ethical performance of duties required to be performed pursuant to the terms of this AGREEMENT. The CONTRACTOR shall have a duty to notify OIG immediately of any such actual or potential conflicts of interest.

In conjunction with any subcontract under this AGREEMENT, the CONTRACTOR shall obtain and deliver to OIG, prior to entering into a subcontract, a Firm Assurance of No Conflict of Interest or Detrimental Effect form, signed by an authorized executive or legal representative of the subcontractor. The CONTRACTOR shall also require in any subcontracting agreement that the subcontractor, in conjunction with any further subcontracting agreement, obtain and deliver to OIG a signed and completed Firm Assurance of No Conflict of Interest or Detrimental Effect form for each of its subcontractors prior to entering into a subcontract.

OIG and the CONTRACTOR recognize that conflicts may occur in the future because the CONTRACTOR may have existing, or establish new, relationships. OIG will review the nature of any relationships and reserves the right to terminate this AGREEMENT for any reason, or for cause, if, in the judgment of OIG, a real or potential conflict of interest cannot be cured.

PUBLIC OFFICERS LAW

Contractors, consultants, vendors, and subcontractors may hire former State Agency or Authority employees. However, as a general rule and in accordance with New York Public Officers Law, former employees of the State Agency or Authority may neither appear nor practice before the State Agency or Authority, nor receive compensation for services rendered on a matter before the State Agency or Authority, for a period of two years following their separation from State Agency or Authority service. In addition, former State Agency or Authority employees are subject to a "lifetime bar" from appearing before the State Agency or Authority or receiving compensation for services regarding any transaction in which they personally participated or which was under their active consideration during their tenure with the State Agency or Authority.

ETHICS REQUIREMENTS

The CONTRACTOR and its subcontractors shall not engage any person who is, or has been at any time, in the employ of the State to perform services in violation of the provisions of the New York Public Officers Law, other laws applicable to the service of State employees, and the rules, regulations, opinions, guidelines or policies promulgated or issued by the New York State

Commission on Ethics and Lobbying in Government (COELIG), or its predecessors and successors (collectively, the "Ethics Requirements). The CONTRACTOR certifies that all of its employees and those of its subcontractors who are former employees of the State and who are assigned to perform services under this AGREEMENT shall be assigned in accordance with all Ethics Requirements. During the term, no person who is employed by the CONTRACTOR or its subcontractors and who is disqualified from providing services under this AGREEMENT pursuant to any Ethics Requirements may share in any net revenues of the CONTRACTOR or its subcontractors derived from this AGREEMENT. The CONTRACTOR shall identify and provide the State with notice of those employees of the CONTRACTOR and its subcontractors who are former employees of the State that will be assigned to perform services under this AGREEMENT, and ensure that such employees comply with all applicable laws and prohibitions. The State may request that the CONTRACTOR provide it with whatever information the State deems appropriate about each such person's engagement, work cooperatively with the State to solicit advice from COELIG, or its predecessors and successors, and, if deemed appropriate by the State, instruct any such person to seek the opinion of the COELIG, or its predecessors and successors. The State shall have the right to withdraw or withhold approval of any subcontractor if utilizing such subcontractor for any work performed hereunder would be in conflict with any of the Ethics Requirements. The State shall have the right to terminate this AGREEMENT at any time if any work performed hereunder is in conflict with any of the Ethics Requirements.

WARRANTIES

The CONTRACTOR warrants that it will perform services in good faith and in a professional manner and that the services will conform in all material respects to the description of such services set forth herein. The warranties expressly set forth in this AGREEMENT are in lieu of all other warranties, expressed or implied including, but not limited to, the implied warranties of merchantability and fitness for a particular purpose.

The CONTRACTOR warrants that its services shall be performed in accordance with applicable professional standards and that the CONTRACTOR shall correct, at no charge to OIG or the State, services which fail to meet applicable professional standards and which result in obvious or patent errors in the progression of its work.

PERFORMANCE MONITORING

The CONTRACTOR's performance will be assessed by OIG according to the achievement of CONTRACTOR's contractual obligations in a timely and professional manner, as set forth herein. OIG will utilize progress reports and periodic meetings to ensure that the project is carried out on a timely basis and results in effective recommendations and work products.

INDEMNIFICATION AND LIABILITY

The CONTRACTOR shall be fully liable without monetary limitation for any act or omission of the CONTRACTOR, its employees, subcontractors and agents, and shall fully indemnify and hold harmless the State from suits, actions, damages and costs of every name and description relating to personal injury and damage to real or tangible personal property or intellectual property caused by fault or negligence of CONTRACTOR, its employees, subcontractors or agents arising from the CONTRACTOR's performance of the AGREEMENT, provided, however, that the CONTRACTOR shall not be obligated to indemnify the State for that portion of any claim, loss or damage arising hereunder due to the negligent act or failure to act by the State or the acts of third parties, other than those provided by the CONTRACTOR to perform under the AGREEMENT. In connection with the foregoing, the State shall give the CONTRACTOR: (i) prompt written notice of any action, claim or threat of suit, (ii) the opportunity to take over, settle or defend such action, claim or suit at the CONTRACTOR's sole expense, and (iii) assistance in the defense of any such

action at the expense of the CONTRACTOR.

Notwithstanding the above, the CONTRACTOR and OIG/State shall not be liable for any consequential, indirect or special damages of any kind which may result from such performance, including, without limitation, damages resulting from loss of use or loss of profit by OIG/State, the CONTRACTOR, or by others. CONTRACTOR shall not be liable for any missed or lost revenue associated with, or related to, the services provided pursuant to this contract.

REPORTS AND FINDINGS
Any and all reports and findings rendered to OIG by the CONTRACTOR shall be the exclusive property of OIG and subject to its exclusive use and control. The CONTRACTOR hereby waives any and all rights to such reports and findings and the control thereof.

OWNERSHIP
CONTRACTOR will retain all rights, title and interest in and to all materials developed by it prior to the effective date of this AGREEMENT and/or developed outside of CONTRACTOR's obligations hereunder.

CONFIDENTIALITY
CONTRACTOR agrees that it will not use confidential or proprietary information disclosed to CONTRACTOR in connection with the services (Confidential Information) for any purpose other than in connection with the services. The CONTRACTOR is fully responsible for its staff, its subcontractor(s) and any subcontractor's staff with regard to Confidential Information.

Information which falls into any of the following categories shall not be considered Confidential Information:

- information that is previously rightfully known to the CONTRACTOR without restriction on disclosure;
- information that becomes, from no breach of this AGREEMENT on the part of the CONTRACTOR, generally known in the relevant industry, or is otherwise publicly available; and
- information that is independently developed by CONTRACTOR without use of the Confidential Information.

Except as specifically permitted in this AGREEMENT, CONTRACTOR shall not, at any time, in any fashion, form or manner, divulge, disclose, communicate or use, any Confidential Information other than in connection with the services or as otherwise provided herein.

CONTRACTOR may disclose Confidential Information if such information is required to be disclosed by CONTRACTOR by any law, rule, regulation, judicial or administrative process or applicable professional standards, provided that, to the extent permitted by applicable law or regulation, the CONTRACTOR notifies OIG prior to any such required disclosure.

CONTRACTOR agrees not to issue any press releases, give or make any presentations, or give to any print, electronic or other news media information regarding the services without the express advance written approval of OIG.

CONTRACTOR agrees that, as between the PARTIES, all Confidential Information in its possession is at all times the sole property of the State.

Notwithstanding anything herein to the contrary, CONTRACTOR shall have the right to retain one copy of the Confidential Information and any summaries, analyses, notes or extracts prepared by CONTRACTOR which are based on or contain portions of the Confidential Information evidencing its services for the State as required by law, regulation, professional standards or reasonable business practice.

CONTRACTOR shall retain all Confidential Information in confidence, exercising the same standard of care used by CONTRACTOR to protect its own confidential and proprietary information, to prevent the disclosure of Confidential Information to any third party. CONTRACTOR shall not use Confidential Information for any purpose other than in furtherance of its professional services for OIG.

CONTRACTOR understands that if it breaches, or threatens to breach this AGREEMENT, OIG shall have the right to seek all equitable and legal rights (including the right to seek injunctive relief) to prevent such breach and/or to be fully compensated (including reasonable legal fees) for losses or damages resulting from such breach. CONTRACTOR acknowledges that compensation for damages may not be sufficient and that injunctive relief to prevent or limit any breach of confidentiality may be the only viable remedy to fully protect the confidential or proprietary information identified in this AGREEMENT.

RECORDS ACCESS
OIG staff, others authorized by OIG such as representatives of the federal government, or other State agencies authorized by State law, shall have access to and the right to examine the books, documents, work papers, documentation of charges, or other records of the CONTRACTOR, including any and all subcontractors, involved in transactions relating to this AGREEMENT during the contract period and for a period of six (6) years after final payment for said services.

WORK PAPER RETENTION AND AVAILABILITY
The work papers to be prepared by the CONTRACTOR during the AGREEMENT will be retained by the CONTRACTOR although copies thereof and access to them will be made available, upon request, to OIG, representatives of the Federal government and State agencies when authorized by OIG, and other State agencies authorized by existing law, for a period of six (6) years following the date of the final payment under the contract. All such requests, and their disposition, shall be authorized by OIG.

The CONTRACTOR agrees to make personnel available to explain fully all data, materials, and work papers developed during the engagement for a period of six (6) years following the date of the final payment under the AGREEMENT.

DISPUTES AND DISSATISFACTION/CONFLICT RESOLUTION
In the event OIG is dissatisfied with the CONTRACTOR's performance of the services provided under the AGREEMENT, including but not limited to a breach of the AGREEMENT on the part of the CONTRACTOR, OIG shall notify the CONTRACTOR of the dispute in writing. In the event the CONTRACTOR has any disputes with OIG, the CONTRACTOR shall notify OIG in writing. Such notification in both cases shall hereinafter be referred to as "Notice of Conflict", or in the case of contract breach, "Notice of Default."

If either OIG or the CONTRACTOR notifies the other of such dispute or dissatisfaction, the PARTY receiving the notification shall then make good faith efforts to amicably resolve the problem or settle the dispute, including meeting with the notifying PARTY's representatives to diligently attempt to reach a mutually satisfactory result. In the event of a dispute, both PARTIES will

continue to fulfill their performance obligations under the AGREEMENT.

Nothing shall limit either PARTY's ability to pursue all legal remedies. If the PARTIES are unable to amicably resolve the dispute after the steps described above, then either PARTY may seek legal or equitable relief in a court of competent jurisdiction in the State of New York.

TERMINATION

OIG reserves the right to terminate the services of the CONTRACTOR, in whole or in part, upon thirty (30) days written notice for any reason, or immediately for cause. Upon notice of termination, the CONTRACTOR shall stop work immediately and complete only those specific assignments, if any, subsequently approved by OIG. In the event of termination other than for cause, the CONTRACTOR shall be entitled to compensation for services performed through the date of termination that are accepted by OIG, and for any subsequent services that are accepted by OIG, rendered in connection with any successor consultants and contractors, including transfer of records, briefing and any other services deemed necessary or desirable by OIG. The CONTRACTOR agrees to cooperate to the fullest respect with any successor consultants and contractors.

After receipt of the notice of termination, the CONTRACTOR shall exercise all reasonable diligence to accomplish the cancellation or diversion of its outstanding commitments covering personnel services and extending beyond the date of such termination to the extent that they relate to the performance of any work terminated by the notice.

The CONTRACTOR shall submit its termination claim to OIG promptly after receipt of a notice of termination, but in no event later than 30 days from the effective date thereof, unless one or more extensions in writing are granted by OIG upon written request of the CONTRACTOR within such 30-day period or authorized extension thereof. Upon failure of the CONTRACTOR to submit a termination claim within the time allowed, OIG may determine, on the basis of available information, the amount, if any, due to the CONTRACTOR by reason of termination, and shall thereupon pay to the CONTRACTOR the amount so determined.

If the termination for cause results from unsatisfactory performance by the CONTRACTOR, the value of the work performed by the CONTRACTOR prior to termination shall be established by OIG.

The CONTRACTOR agrees to transfer title to OIG, and to deliver in the manner, at the time, and to the extent, if any, directed by OIG, such information and work products for which the CONTRACTOR produced and received compensation by OIG.

In addition, non-compliance with the procurement laws as noted in Section XXIV of this AGREEMENT will lead to contract termination.

FORCE MAJEURE

Neither PARTY will be liable for losses, defaults, or damages under this AGREEMENT which result from delays in performing, or an inability to perform, all or any of the obligations or responsibilities imposed upon it pursuant to the terms and conditions of this AGREEMENT, due to or because of acts of God, the public enemy, acts of government, earthquakes, floods, civil strife, fire or any other cause beyond the reasonable control of the PARTY that was so delayed or so unable to perform, provided that such PARTY was not negligent and shall have used reasonable efforts to avoid and overcome such cause. Such PARTY will resume full performance of such obligations and responsibilities promptly upon removal of any such cause.

COMPLIANCE WITH PROCUREMENT LAWS
By execution of this AGREEMENT, the CONTRACTOR certifies that information provided to the State with respect to the Vendor Responsibility Questionnaire, Procurement Lobbying Certifications, Contractor Disclosure Form A and Section 5-a of the Tax Law (Forms ST-220-TD and ST-220-CA) is complete, true and accurate.

The CONTRACTOR hereby acknowledges that the Vendor Responsibility Questionnaire and certification are made part of its proposal and thereby this AGREEMENT and that any misrepresentation of fact in the Questionnaire and attachments, or in any CONTRACTOR responsibility information that may be requested by OIG, may result in termination of this AGREEMENT.

The CONTRACTOR shall at all times during the contract term remain responsible. During the term of this AGREEMENT, any changes in the provided Questionnaire shall be disclosed to OIG, in writing, in a timely manner. Failure to make such disclosure may result in a determination of non-responsibility and termination of this AGREEMENT. Furthermore, the CONTRACTOR agrees, if requested by OIG, to present evidence of its continuing legal authority to do business in New York State, its integrity, experience, ability, prior performance, and organizational and financial capacity.

OIG, in its sole discretion, reserves the right to suspend any or all activities under this AGREEMENT, at any time, when it discovers information that calls into question the responsibility of the CONTRACTOR. In the event of such suspension, the CONTRACTOR will be given written notice outlining the particulars of such suspension. Upon issuance of such notice, the CONTRACTOR must comply with the terms of the suspension order. Contract activity may resume at such time as OIG issues a written notice authorizing a resumption of performance under this AGREEMENT.

Upon written notice to the CONTRACTOR, and a reasonable opportunity to be heard by the appropriate OIG officials or staff, this AGREEMENT may be terminated by OIG at the CONTRACTOR's expense where the CONTRACTOR is determined by OIG to be non-responsible. In such event, OIG may complete contractual requirements in any manner it deems advisable and pursue available legal or equitable remedies for breach.

CONTRACTOR hereby acknowledges that State Finance Law Section 163(4)(g) imposes certain reporting requirements on the contractor doing business with the State. In furtherance of these reporting requirements, the CONTRACTOR agrees to complete and submit an initial planned employment data report and an annual employment report (Forms A and B respectively). Complete instructions and forms may also be accessed at: www.osc.state.ny.us/agencies/guide/MyWebHelp/Content/XI/18/C.htm.

REQUIREMENTS AND PROCEDURES FOR M/WBE PARTICIPATION

GENERAL PROVISIONS
OIG is required to implement the provisions of New York State Executive Law Article 15-A and 5 NYCRR Parts 140-145 (MWBE Regulations) for all State contracts as defined therein, with a value (1) in excess of $25,000 for labor, services, equipment, materials, or any combination of the foregoing or (2) in excess of $100,000 for real property renovations and construction.

The CONTRACTOR agrees, in addition to any other nondiscrimination provision of the

AGREEMENT and at no additional cost to OIG, to fully comply and cooperate with OIG in the implementation of New York State Executive Law Article 15-A and the regulations promulgated thereunder. These requirements include equal employment opportunities for minority group members and women (EEO) and contracting opportunities for certified minority- and women-owned business enterprises (MWBE). The CONTRACTOR's demonstration of "good faith efforts" pursuant to 5 NYCRR 142.8 shall be a part of these requirements. These provisions shall be deemed supplementary to, and not in lieu of, the nondiscrimination provisions required by New York State Executive Law Article 15 (Human Rights Law) or other applicable federal, state or local laws.

Failure to comply with all of the requirements herein may result in a finding of non-responsiveness, non-responsibility and/or a breach of contract, leading to the assessment of liquidated damages pursuant to this AGREEMENT and such other remedies are available to OIG pursuant to this AGREEMENT and applicable law.

CONTRACT GOALS

For purposes of this AGREEMENT, OIG hereby establishes an overall goal of 30% for MWBE participation, 15% for New York State-certified Minority-owned Business Enterprise (MBE) participation and 15% for New York State-certified Women-owned Business Enterprise (WBE) participation (collectively, "MWBE Contract Goals") based on the current availability of MBEs and WBEs.

For purposes of providing meaningful participation by MWBEs in this AGREEMENT and achieving the MWBE Contract Goals, the CONTRACTOR should reference the directory of New York State certified MWBEs found at the following internet address: https://ny.newnycontracts.com.

Additionally, the CONTRACTOR is encouraged to contact the Division of Minority and Women Business Development at (212) 803-2414 to discuss additional methods of maximizing participation by MWBEs on this AGREEMENT.

The CONTRACTOR understands that only sums paid to MWBEs for the performance of a commercially useful function, as that term is defined in 5 NYCRR § 140.1, may be applied towards the achievement of the applicable MWBE participation goal. The portion of a contract with an MWBE serving as a broker that shall be deemed to represent the commercially useful function performed by the MWBE shall be 25 percent of the total value of the contract.

The CONTRACTOR must document "good faith efforts", to provide meaningful participation by MWBEs as subcontractors or suppliers in the performance of the AGREEMENT. Such documentation shall include, but not necessarily be limited to:

- Evidence of outreach to MWBEs;
- Any responses by MWBEs to the CONTRACTOR's outreach;
- Copies of advertisements for participation by MWBEs in appropriate general circulation, trade, and minority or women-oriented publications;
- The dates of attendance at any pre-bid, pre-award, or other meetings, if any, scheduled by OIG with MWBEs; and,
- Information describing specific steps undertaken by the CONTRACTOR to reasonably structure the contract scope of work to maximize opportunities for MWBE participation.

EQUAL EMPLOYMENT OPPORTUNITY (EEO)
The CONTRACTOR agrees to be bound by the provisions of Article 15-A of the Executive Law and the rules and regulations promulgated thereunder pertaining to equal employment opportunities for minority group members and women shall apply to the AGREEMENT.

In performing the AGREEMENT, the CONTRACTOR shall:

Ensure that each CONTRACTOR and each subcontractor performing work on this AGREEMENT shall undertake or continue existing EEO programs to ensure that minority group members and women are afforded equal employment opportunities without discrimination because of race, creed, color, national origin, sex, age, disability or marital status. For these purposes, EEO shall apply in the areas of recruitment, employment, job assignment, promotion, upgrading, demotion, transfer, layoff, or termination and rates of pay or other forms of compensation.

The CONTRACTOR shall submit an EEO policy statement to OIG within seventy-two (72) hours after the date of the notice by OIG to award the AGREEMENT to the CONTRACTOR.

If the CONTRACTOR, or any of its subcontractors, does not have an existing EEO policy statement, OIG may require the CONTRACTOR or subcontractor to adopt a model statement (see Form 5.4 Equal Employment Opportunity Policy Statement).

The CONTRACTOR's EEO policy statement shall include the following language:

The CONTRACTOR will not discriminate against any employee or applicant for employment because of race, creed, color, national origin, sex, age, disability, or marital status, will undertake or continue existing EEO programs to ensure that minority group members and women are afforded equal employment opportunities without discrimination, and shall make and document its conscientious and active efforts to employ and utilize minority group members and women in its work force.

The CONTRACTOR shall state in all solicitations or advertisements for employees that, in the performance of the AGREEMENT, all qualified applicants will be afforded equal employment opportunities without discrimination because of race, creed, color, national origin, sex, age, disability or marital status.

The CONTRACTOR shall request each employment agency, labor union, or authorized representative of workers with which it has a collective bargaining or other agreement or understanding, to furnish a written statement that such employment agency, labor union, or representative will not discriminate on the basis of race, creed, color, national origin, sex age, disability or marital status and that such union or representative will affirmatively cooperate in the implementation of the CONTRACTOR's obligations herein.

The CONTRACTOR will include the provisions of Subdivisions (1) through
(3) of this Subsection D and Paragraph "5" of this Section C, which provides for relevant provisions of the Human Rights Law, in every subcontract in such a manner that the requirements of the subdivisions will be binding upon each subcontractor as to work in connection with the AGREEMENT.

STAFFING PLAN
To ensure compliance with this section, the CONTRACTOR shall submit a staffing plan to document the composition of the proposed workforce to be utilized in the performance of the

AGREEMENT by the specified categories listed, including ethnic background, gender, and Federal occupational categories. The CONTRACTOR shall complete the staffing plan form and submit it within a reasonable time, as directed by OIG.

WORKFORCE EMPLOYMENT UTILIZATION REPORT (WORKFORCE REPORT)
The CONTRACTOR shall submit a Workforce Report, and shall require each of its subcontractors to submit a Workforce Report, in such form as shall be required by OIG on a QUARTERLY basis during the term of the AGREEMENT.

Separate forms shall be completed by the CONTRACTOR and any subcontractors.

Pursuant to Executive Order #162, contractors and subcontractors are also required to report the gross wages paid to each of their employees for the work performed by such employees on the contract on a quarterly basis.

The CONTRACTOR shall comply with the provisions of the Human Rights Law, and all other State and Federal statutory and constitutional non-discrimination provisions. The CONTRACTOR and its subcontractors shall not discriminate against any employee or applicant for employment because of race, creed (religion), color, sex, national origin, sexual orientation, military status, age, disability, predisposing genetic characteristic, marital status or domestic violence victim status, and shall also follow the requirements of the Human Rights Law with regard to non- discrimination on the basis of prior criminal conviction and prior arrest.

MWBE UTILIZATION PLAN
The CONTRACTOR represents and warrants that the CONTRACTOR has submitted an MWBE Utilization Plan, through the New York State Contract System (NYSCS), which can be viewed at https://ny.newnycontracts.com, provided, however, that the CONTRACTOR may arrange to provide such evidence via a non- electronic method to OIG, either prior to, or at the time of, the execution of the AGREEMENT.

The CONTRACTOR agrees to use such MWBE Utilization Plan for the performance of MWBEs on this AGREEMENT pursuant to the prescribed MWBE goals set forth in Section XXV.B.1.

The CONTRACTOR further agrees that failure to submit and/or adhere to such MWBE Utilization Plan shall constitute a material breach of the terms of this AGREEMENT. Upon the occurrence of such a material breach, OIG shall be entitled to any remedy provided herein, including but not limited to, a finding that the CONTRACTOR is non-responsive.

WAIVERS
For waiver requests, the CONTRACTOR should use the NYSCS, provided, however, that CONTRACTOR may arrange to provide such evidence via a non- electronic method to OIG.

If the CONTRACTOR, after making good faith efforts, is unable to comply with MWBE goals, the CONTRACTOR may submit a Request for Waiver documenting good faith efforts by the CONTRACTOR to meet such goals. If the documentation included with the waiver request is complete, OIG shall evaluate the request and issue a written notice of approval or denial within twenty (20) business days of receipt.

If OIG, upon review of the MWBE Utilization Plan and updated QUARTERLY MWBE Contractor Compliance Reports determines that the CONTRACTOR is failing or refusing to comply with the MWBE Contract Goals and no waiver has been issued in regards to such non-compliance, OIG

may issue a notice of deficiency to the CONTRACTOR. The CONTRACTOR must respond to the notice of deficiency within seven (7) business days of receipt. Such response may include a request for partial or total waiver of MWBE Contract Goals.

QUARTERLY MWBE CONTRACTOR COMPLIANCE REPORT

The CONTRACTOR is required to submit a quarterly MWBE Contractor Compliance Report through the NYSCS, provided, however, that the CONTRACTOR may arrange to provide such report via a non-electronic method to OIG by the 10th day following the end of each quarter during the term of this AGREEMENT documenting the progress made towards achievement of the MWBE goals of this AGREEMENT.

LIQUIDATED DAMAGES – MWBE PARTICIPATION

Where OIG determines that the CONTRACTOR is not in compliance with the requirements of this AGREEMENT and the CONTRACTOR refuses to comply with such requirements, or if the CONTRACTOR is found to have willfully and intentionally failed to comply with the MWBE participation goals, the CONTRACTOR shall be obligated to pay to OIG liquidated damages.

Such liquidated damages shall be calculated as an amount equaling the difference between:

- All sums identified for payment to MWBEs had the CONTRACTOR achieved the contractual MWBE goals; and
- All sums actually paid to MWBEs for work performed or materials supplied under the AGREEMENT.

In the event a determination has been made which requires the payment of liquidated damages and such identified sums have not been withheld by OIG, the CONTRACTOR shall pay such liquidated damages to OIG within sixty (60) days after they are assessed. Provided, however, that if the CONTRACTOR has filed a complaint with the Director of the Division of Minority and Women's Business Development pursuant to 5 NYCRR § 142.12, liquidated damages shall be payable only in the event of a determination adverse to the CONTRACTOR following the complaint process.

PARTICIPATION OPPORTUNITIES FOR NEW YORK STATE CERTIFIED SERVICE-DISABLED VETERAN OWNED BUSINESSES:

A. GENERAL PROVISIONS

Article 3 of the New York State Veteran's Services Law provides for more meaningful participation in public procurement by certified Service-Disabled Veteran-Owned Businesses ("SDVOBs"), thereby further integrating such businesses into New York State's economy. The DIVISION recognizes the need to promote the employment of service-disabled veterans and to ensure that certified service-disabled veteran-owned businesses have opportunities for maximum feasible participation in the performance of DIVISION contracts.

In recognition of the service and sacrifices made by service-disabled veterans and in recognition of their economic activity in doing business in New York State, CONTRACTORS are strongly encouraged and expected to consider SDVOBs in the fulfillment of the requirements of the AGREEMENT. Such participation may be as subcontractors or suppliers, as protégés, or in other partnering or supporting roles.

B. CONTRACT GOALS

SDVOB participation goals shall be established in each SOW based on the current availability of qualified SDVOBs. For purposes of providing meaningful participation by SDVOBs, the CONTRACTOR should reference the directory of New York State Certified SDVOBs found at: https://sdves.ogs.ny.gov/business-search. Questions regarding compliance with SDVOB participation goals should be directed to OIG's Finance staff at Procurement@ig.ny.gov .

Additionally, CONTRACTOR is encouraged to contact the Office of General Services' Division of Service-Disabled Veterans' Business Development at 518-474-2015 or VeteransDevelopment@ogs.ny.gov to discuss methods of maximizing participation by SDVOBs on the AGREEMENT.

Where contract goals have been established in the SOW, the CONTRACTOR must document "good faith efforts" to provide meaningful participation by SDVOBs as subcontractors or suppliers in the performance of any SOW under the AGREEMENT (see Required Good Faith Efforts clause below).

SDVOB UTILIZATION PLAN

A. For each SOW where SDVOB contract goals have been established and in accordance with 9 NYCRR § 252.2(i), CONTRACTOR will be required to submit a completed SDVOB Utilization Plan on Form SDVOB 100.
B. The Utilization Plan shall list the SDVOBs that the CONTRACTOR intends to use to perform the services in the SOW, a description of the work that the CONTRACTOR intends the SDVOB to perform to meet the goals in the SOW, the estimated dollar amounts to be paid to an SDVOB, or, if not known, an estimate of the percentage of Contract work the SDVOB will perform. By signing the Utilization Plan, the CONTRACTOR acknowledges that making false representations or providing information that shows a lack of good faith as part of, or in conjunction with, the submission of a Utilization Plan is prohibited by law and may result in penalties including, but not limited to, termination of a contract for cause, loss of eligibility to submit future bids, and/or withholding of payments. Any modifications or changes to the agreed participation by SDVOBs for each SOW during the term of the AGREEMENT must be reported on a revised SDVOB Utilization Plan and submitted to the DIVISION.
C. The DIVISION will review the submitted SDVOB Utilization Plan and advise the CONTRACTOR of DIVISION acceptance or issue a notice of deficiency within 20 days of receipt.
D. If a notice of deficiency is issued, CONTRACTOR agrees that it shall respond to the notice of deficiency, within seven business days of receipt, by submitting to the DIVISION a written remedy in response to the notice of deficiency. If the written remedy that is submitted is not timely or is found by the DIVISION to be inadequate, the DIVISION shall notify the CONTRACTOR and direct the CONTRACTOR to submit, within five business days of notification by the DIVISION, a request for a partial or total waiver of SDVOB participation goals on Form SDVOB 200. Failure to file the waiver form in a timely manner may be grounds for disqualification of the bid or proposal.
E. For each SOW under the AGREEMENT, CONTRACTOR certifies that it will follow the submitted SDVOB Utilization Plan for the performance of SDVOBs on the SOW pursuant to the prescribed SDVOB contract goals set forth in the SOW.
F. CONTRACTOR further agrees that a failure to use SDVOBs as agreed in the Utilization Plan shall constitute a material breach of the terms of the AGREEMENT. Upon the occurrence of such a material breach, the DIVISION shall be entitled to any remedy provided herein, including but not limited to, a finding of CONTRACTOR nonresponsibility.

REQUEST FOR WAIVER

A. Prior to submission of a request for a partial or total waiver, the CONTRACTOR shall contact the Division's Contracts Office (contracts@budget.ny.gov) for guidance.

B. In accordance with 9 NYCRR § 252.2(m), a CONTRACTOR that is able to document good faith efforts to meet the goal requirements, as set forth in the Required Good Faith Efforts clause below, may submit a request for a partial or total waiver on Form SDVOB 200, accompanied by supporting documentation. A CONTRACTOR may submit the request for waiver at the same time it submits its SDVOB Utilization Plan. If a request for waiver is submitted with the SDVOB Utilization Plan and is not 56 accepted by the Division at that time, the provisions of Paragraphs (C), (D) & (E) of the SDVOB Utilization Plan clause will apply. If the documentation included with the CONTRACTOR's waiver request is complete, the Division shall evaluate the request and issue a written notice of acceptance or denial within 20 days of receipt.

C. CONTRACTOR shall attempt to utilize, in good faith, the SDVOBs identified within its SDVOB Utilization Plan, during the performance of the SOW. Requests for a partial or total waiver of established goal requirements made subsequent to Contract award may be made at any time during the term of the AGREEMENT to the DIVISION, but must be made no later than prior to the submission of a request for final payment on the AGREEMENT.

D. If the Division, upon review of the SDVOB Utilization Plan and Monthly SDVOB Compliance Report (SDVOB 101) determines that CONTRACTOR is failing or refusing to comply with the contract goals established in the SOW, and no waiver has been issued in regards to such non-compliance, the Division may issue a notice of deficiency to the CONTRACTOR. The CONTRACTOR must respond to the notice of deficiency within seven business days of receipt. Such response may include a request for partial or total waiver of SDVOB contract goals.

E. Waiver requests should be sent to the DIVISION.

REQURIED GOOD FAITH EFFORTS

In accordance with 9 NYCRR § 252.2(n), CONTRACTOR must document their good faith efforts toward utilizing SDVOBs on any SOW under the AGREEMENT. Evidence of required good faith efforts shall include, but not be limited to, the following:

1. Copies of solicitations to SDVOBs and any responses thereto.

2. Explanation of the specific reasons each SDVOB that responded to CONTRACTOR's solicitation was not selected.

3. Dates of any pre-bid, pre-award or other meetings attended by CONTRACTOR, if any, scheduled by the DIVISION with certified SDVOBs whom the DIVISION determined were capable of fulfilling the SDVOB goals set in the SOW under the AGREEMENT.

4. Information describing the specific steps undertaken to reasonably structure the SOW under the AGREEMENT for the purpose of subcontracting with, or obtaining supplies from, certified SDVOBs.

5. Other information deemed relevant to the waiver request.

MONTHLY SDVOB CONTRACTOR COMPLIANCE REPORT
In accordance with 9 NYCRR § 252.2(q), CONTRACTOR is required to report Monthly SDVOB Contractor Compliance to the DIVISION during the term of the AGREEMENT for the preceding month's activity, documenting progress made towards achieving the SDVOB goals established under each SOW. This information must be submitted using 57 form SDVOB 101 and should be completed by the CONTRACTOR and submitted to the DIVISION by the 10th day of the month during the term of the AGREEMENT for the preceding month's activity to the Division's Contracts Office at contracts@budget.ny.gov.

BREACH OF CONTRACT AND DAMAGES
In accordance with 9 NYCRR § 252.2(s), any CONTRACTOR found to have willfully and intentionally failed to comply with the SDVOB participation goals set forth in the SOW under the AGREEMENT, shall be found to have breached the AGREEMENT and CONTRACTOR shall pay damages as set forth therein.

WAIVER, MODIFICATION, EXECUTION, OR SEVERABILITY
No waiver or modification of the AGREEMENT or any covenant, condition, or limitation herein contained shall be valid unless in writing and executed by the PARTIES hereto, and no evidence of any waiver or modification shall be offered or received in evidence in any action between the PARTIES hereto arising out of or affecting the AGREEMENT, or the rights or obligations of any PARTY hereunder, unless such waiver of modification is in writing, duly executed as aforesaid, and the PARTIES further agree that the provisions of the paragraph may not be waived except as herein set forth.

In the event that any provision of the AGREEMENT shall be declared void, voidable, illegal or invalid for any reason, such provision shall be of no force and effect only to the extent that it is so declared void, voidable, illegal or invalid. All of the provisions of the AGREEMENT not specifically found to be so deficient shall remain in full force and effect.

CONDITIONS PRECEDENT
This AGREEMENT and any subsequent amendments to this AGREEMENT shall not be deemed executed, valid or binding unless and until approved in writing by the Offices of the Attorney General and State Comptroller.

USE BY OTHER STATE AGENCIES, PUBLIC AUTHORITIES OR ENTITIES
OIG shall have the option to extend the terms and conditions related to the scope of services covered by this AGREEMENT to any other State agency, public authority or entities in New York.

ADDITIONAL SERVICES
OIG may, at any time, by written notice, request changes or additions to work or services within the general scope of this AGREEMENT (not to include professional services requiring licenses or specialized expertise such as engineering, architectural, and environmental consulting, abatement, treatment, and testing work) for unanticipated needs. If any such change or addition causes an increase or decrease in the cost of, or in the time required for, performance of this AGREEMENT, an equitable adjustment shall be agreed upon by the PARTIES and made in the price using the billing rates set forth in the AGREEMENT, and the CONTRACTOR shall be notified in writing accordingly. A change to the scope of the AGREEMENT would be subject to the approval of the Office of the State Comptroller and Office of the Attorney General.

ENTIRE AGREEMENT
This AGREEMENT and the Appendices identified in this section (Appendices) constitute the

entire AGREEMENT between the PARTIES hereto and no statement, promise, condition, understanding, inducement or representation, oral or written, expressed or implied, which is not contained herein shall be binding or valid. This AGREEMENT shall not be changed, modified or altered in any manner except by an instrument in writing executed by the PARTIES hereto. The Appendices are hereby made a part of this AGREEMENT as if fully set forth at length herein. In the event of any discrepancy, disagreement or ambiguity among the following documents, they shall be given preference in the following order to interpret and to resolve such discrepancy, disagreement or ambiguity:

A. Appendix A – Standard Clauses for New York State Contracts dated June 2023,
B. This AGREEMENT as it appears prior to the signature page incorporated herein;
C. Appendix B – Request for Proposals dated March 3, 2025, including any amendments thereto; and
D. Appendix C – CONTRACTOR's Proposal in response to the RFP and any clarifications thereto.

EXECUTORY CLAUSE
This AGREEMENT shall be deemed executory only to the extent of moneys annually appropriated and available for this purpose, and no liability on account thereof shall be incurred by OIG beyond the amount appropriated. It is understood that neither this assignment nor any representation by any public employee or officer creates any legal or moral obligation to request to appropriate, or make available, moneys for the purpose of the AGREEMENT.

IN WITNESS WHEREOF, each of the PARTIES hereto has caused this AGREEMENT to be executed by its duly authorized officers on the day and year stated below.

Agency Certification
In addition to the acceptance of this AGREEMENT, I also certify that original copies of this signature page will be attached to all other exact copies of this contract.

Approved by:

		OFFICES OF THE NEW YORK STATE INSPECTOR GENERAL	
By:	_____	By:	_____
Name:	_____	Name:	_____
Title:	_____	Title:	_____
Date:	_____	Date:	_____

Attorney General: LETITIA JAMES		State Comptroller: THOMAS P. DINAPOLI	
By:	_____	By:	_____
Date:	_____	Date:	_____

CORPORATE ACKNOWLEDGMENT FORM

The acknowledgment must be fully and properly executed by an authorized person. By signing you certify your express authority to sign on behalf of yourself, your company, or other entity and that all information provided is complete, true and accurate.

INDIVIDUAL, CORPORATION, PARTNERSHIP, OR LLC ACKNOWLEDGMENT STATE OF □

: SS.:

COUNTY OF □

On the _____ day of ____ in the year 20 __ , before me personally appeared _____ , known to me to be the person who executed the foregoing instrument, who, being duly sworn by me did deposeand say that _he resides at

_____,

Town of _____ , County of ___ , State of _____ ; and further that:

[Check One]

(**If an individual):** _he executed the foregoing instrument in his/her name and on his/her own behalf.

(If a _he is the _____ of corporation):

_____ , OIG described in said instrument; that, by authority of the Board of Directors of said corporation, _he is authorized to execute the foregoing instrument on behalf of OIG for purposes set forth therein; and that, pursuant to that authority,

_he executed the foregoing instrument in the name of and on behalf of said corporation as the act and deed of said corporation.

(If a partnership): _he is the _____ of _____, the partnership described in said instrument; that, by the terms of said partnership, _he is authorized to execute the foregoing instrument on behalf of the partnership for purposes set forth therein; and that, pursuant to that authority, _he executed the foregoing instrument in the name of and on behalf of said partnership as the act and deed of said partnership.

(**If a limited liability company):** _he is a duly authorized member of ____, LLC, the limited liability company described in said instrument; that _he is authorized to execute the foregoing instrument on behalf of the limited liability company for purposes set forth therein; and that, pursuant to that authority, _he executed the foregoing instrument in the name of and on behalf of said limited liability company as the act and deed of said limited liability company.

_____

Notary Public

Registration No._____ State of:_____

POST AWARD FORMS

CONTRACTOR DISCLOSURE FORMS SALES TAX CERTIFICATION INSTRUCTIONS COMPLIANCE WITH NYS WORKERS' COMPENSATION LAW CONTRACTOR DISCLOSURE FORMS

Chapter 10 of the Laws of 2006 amended the Civil Service Law and the State Finance Law, relative to maintaining certain information concerning contract employees working under State agency service and consulting contracts. State agency consultant contracts are defined as "contracts entered into by a state agency for analysis, evaluation, research, training, data processing, computer programming, engineering, environmental health and mental health services, accounting, auditing, paralegal, legal, or similar services" (covered consultant contract" or "covered consultant services). The amendments also require that certain contract employee information be provided to the state agency awarding such contracts, the Office of the State Comptroller (OSC), Division of the Budget and the Department of Civil Service (CS).

To meet these new requirements, the selected Firm agrees to complete:

Form A – Contractor's Planned Employment Form. The successful Contractor must complete this form upon notification of **selection by OIG**.

Form B – Contractor's Annual Employment Report. Throughout the term of the Contract by May 15th of each year the Contractor agrees to report the following information to OIG. For each covered consultant contract in effect at any time between the preceding April 1st through March 31st fiscal year or for the period of time such contract was in effect during such prior State fiscal year Contractor reports the:

Total number of employees employed to provide the consultant services, by employment category.
Total number of hours worked by such employees.
Total compensation paid to all employees that performed consultant services under such Contract.*

*NOTE: The information to be reported is applicable only to those employees who are directly providing services or directly performing covered consultant services. However, such information shall also be provided relative to employees of Subcontractors who perform any part of the service contract or any part of the covered consultant contract. This information does not have to be collected and reported in circumstances where there is ancillary involvement of an employee in a clerical, support, organizational or other administrative capacity.

Contractor agrees to simultaneously report such information to the Department of Civil Service and the Office of the State Comptroller as designated below:

Department of Civil Service Empire State Plaza Albany, NY 12239

Office of the State Comptroller Bureau of Contracts
110 State St., 11th Floor Albany, New York
Attn: Consultant Reporting

Contractor is advised herein and understands that this information is available for public inspection and copying pursuant to §87 of the New York State Public Officers Law (Freedom of Information Law). In the event individual employee names or social security numbers are set forth on a document, the State agency making such disclosure is obligated to redact both the name and

social security number prior to disclosure.

Further information regarding the Contractor Consultant Law requirements and report Forms A and B is available in the Office of the State Comptroller's Guide to Finance Operations, Chapter XI, Section 18.C: **www.osc.state.ny.us/agencies/guide/MyWebHelp.**

SALES TAX CERTIFICATION INSTRUCTIONS

The Tax Law was amended to require contractors with State agencies to certify to the Department of Taxation and Finance (DTF) that they, their affiliates, their subcontractors and the affiliates of their subcontractors have a valid certificate of authority to collect New York State and local sales and compensating use taxes. Tax Law Section 5-a applies to all contracts in excess of **$100,000** for the purchase by a covered agency of commodities or services, awarded pursuant to Article XI of the State Finance Law.

The successful Contractor must complete Contractor Certification Form ST-220-CA upon notification of selection by OIG. This certification to the procuring agency, also made under penalty of perjury, states that the requisite (ST-220-TD) certification has been made to DTF and, to the best of the Contractor's knowledge, that the requisite (ST-220-TD) certification is correct and complete.

If Contractor has any questions regarding either forms, ST-220-CA or ST-220-TD, the New York State Comptroller's Guide to Financial Operations will provide background information and the forms (http://www.osc.state.ny.us/agencies/guide/MyWebHelp/#XI/18/D.htm?Highlight=st-220).

Contractors can refer to the Department of Taxation and Finance website, or the NYS Tax Law, Section 5- a, *Contractor Affiliate, Subcontractor, and Subcontractor Affiliate Sales and Compensating Use Tax Registration* for additional information and guidance.

COMPLIANCE WITH NYS WORKERS' COMPENSATION LAW

Sections 57 and 220 of the New York State Workers' Compensation Law (WCL) provide that the Inspector General shall not enter into any contract unless proof of workers' compensation and disability benefits insurance coverage is produced. Prior to entering into a contract with OIG, successful Firms will be required to verify, on forms authorized by the New York State Workers' Compensation Board, that they are properly insured or are otherwise in compliance with the insurance provisions of the WCL. The forms used to demonstrate compliance with the WCL are indicated below.

Please Note: The insurance provider of the successful contractor must submit this insurance verification information upon notification of selection by OIG. Any questions relating to either workers' compensation or disability benefits coverage should be directed to the State of New York Workers' Compensation Board, Bureau of Compliance at (518) 486-6307. Failure to comply with the requirements of this appendix will be grounds for disqualification of an otherwise successful bid.

Workers' Compensation Requirements under WCL § 57:
To comply with coverage provisions of the WCL, Contractor must:
Be legally exempt from obtaining workers' compensation insurance coverage; OR
Obtain such coverage from insurance carriers; OR
Be a Board-approved self-insured employee or participate in an authorized group self-insurance plan.

To verify compliance with the above, OIG must receive one of the following properly executed Workers' Compensation Board forms from the Contractor, the Contractor's insurance carrier or the Workers' Compensation Board, depending on which form is appropriate:
CE-200, Certificate of Attestation of Exemption from NYS Workers' Compensation and/or Disability Benefits Coverage. This form is completed electronically on the Board's website and printed out, http://www.wcb.ny.gov/content/ebiz/wc_db_exemptions/requestExemptionOverview.jsp; OR
C-105.2 – Certificate of Workers' Compensation Insurance. The Contractor's insurance carrier sends this form to OIG. PLEASE NOTE: The State Insurance Fund provides its own version of this form, the U-26.3; OR
SI-12 – Certificate of Workers' Compensation Self-Insurance. The Contractor contacts the Board's Self- Insurance Office at 518-402-0247 to obtain this form; OR
GSI-105.2 – Certificate of Participation in Worker's Compensation Group Self-Insurance. Contractor's Group Self-Insurance Administrator sends this form to OIG.

Disability Benefits Requirements under WCL § 220(8):
To comply with the coverage provisions of the WCL regarding disability benefits, Contractor may:
Be legally exempt from obtaining disability benefits insurance coverage; OR
Obtain such coverage from insurance carriers; OR
Be a Board-approved self-insured employer.

To verify compliance with the above, OIG must receive one of the following properly executed Workers' Compensation Board forms from the Contractor, the Contractor's insurance carrier or the Workers' Compensation Board, depending on which form is appropriate:
CE-200, Certificate of Attestation of Exemption from NYS Workers' Compensation and/or Disability Benefits Coverage. This form is completed electronically on the Board's website and printed out, http://www.wcb.ny.gov/content/ebiz/wc_db_exemptions/requestExemptionOverview.jsp; **OR**
DB-120.1 – Certificate of Disability Benefits Insurance. The business's insurance carrier sends this form to OIG; **OR**
DB-155 – Certificate of Disability Benefits Self-Insurance. The Contractor contacts the Board's Self- Insurance Office at 518-402-0247 to obtain this form.

APPENDIX C: PROPOSAL CHECKLIST RFP

Firm Name_____ Date_____

Technical Proposal

1. Did the firm submit individual files for each proposal section (Technical, Cost, Administrative) in accordance with the submission guidelines? Yes No
2. Did the Firm provide an electronic searchable Adobe PDF version of the Technical Proposal? Yes No
3. Does the proposal contain all components of the Technical Proposal, as stated below?

Yes No

A. Title Page Yes No
B. Table of Contents Yes No
C. Executive Summary Yes No
D. Documentation of Proposers Eligibility Requirements Yes No
   - Eligibility Requirement Statement Yes No

E. Proposers Experience and Qualifications Yes No

   Firm Experience and Qualifications
   - Summary of technical expertise and capabilities Yes No
   - Direct prior experience Yes No

   Staff Experience and Qualifications
   - Project organizational chart Yes No
   - Qualifications and experience of staff assigned Yes No
   - Staff resumes Yes No
   - Staff Availability Statement Yes No

F. Proposers Self Score of System Qualifications Yes No
   - Appendix I (MS Excel XLSX Version) Yes No

G. Technical Proposal Yes No
   - Functional / Non-Functional Requirements Yes No
   - Implementation Plan Yes No
   - Data Repository Yes No
   - Workflow Process Management Yes No
   - Joint Development and Quality Assurance Yes No
   - Legacy System Migration Yes No
   - Training Yes No
   - Solution Performance Metrics and Reporting Yes No
   - Project Management Yes No
   - Staffing Yes No
   - Information Technology Yes No
   - Security Yes No
   - Solution Implementation and Acceptance Yes No
   - End of Service Transition

4. Does the proposal include screenshots or other visual representations demonstrating each item in this section alongside their proposal? Yes No
5. Excluding table of contents, and staff resumes, is the Technical Proposal 75 pages or fewer? Yes No

Cost Proposal

1. Did the firm submit an electronic version of the Cost Proposal? Yes No

2. Did the Firm complete and sign Form 1: Cost Proposal Form? Yes No
    A. Deliverable Pricing Yes No
    B. Annual Hosting and Licensing Pricing Yes No
    C. Training Pricing Yes No
    D. Solution Enhancement and Change Request Pricing Yes No

Administrative Proposal

1. Did the firm submit an electronic version of the Administrative Proposal Yes No
2. Did the Firm submit signed copies of:
    - Form 2: Proposer Information and Attestation Yes No
    - Form 3: Non-Collusive Bidding Certification Yes No
    - Form 4: Firm Assurances of No Conflict of Interest or Detrimental Effect Yes No
    - Forms 5-5.5: MWBE and EEO Requirements Yes No
    - Form 6: MWBE Diversity Practices Questionnaire, Forms 6.1, and 6.2 Yes No
    - Form 7: Vendor Responsibility Questionnaire (hard copy or submitted electronically in the State's VendRep system) for the Firm and any subcontractor anticipated to receive a subcontract in excess of $100,000 Yes No
    - Form 8: Procurement Lobbying Form Yes No
    - Form 9: Disclosure of Pending or Prior Lawsuits, Conflicts of Interest, or Investigations or Disciplinary Actions Yes No
    - Form 10: Freedom of Information Law Redaction Request Yes No
    - Form 11: Executive Order No. 177 Certification Yes No
    - Form 12: Sexual Harassment Prevention Certificate Yes No
    - Form 13: Certification Under Executive Order No. 16 Yes No

APPENDIX D: SUMMARY OF OIG JURISDICTION

The Offices of the New York State Inspector General are comprised of three entities: the Office of the New York State Inspector General, the Office of the New York State Welfare Inspector General and the Office of the New York State Workers' Compensation Fraud Inspector General. The mission of these entities is to identify and investigate allegations of corruption, fraud, criminal activity, conflicts of interest, or abuse within their respective areas of jurisdiction and to implement best practices, provide oversight, and conduct training.

The Office of the New York State Inspector General
Under New York State Executive Law Article 4-A, the Office of the New York State Inspector General (NYSIG) has jurisdiction over all executive branch agencies, departments, divisions, officers, boards and commissions, public authorities, and public benefit corporations (the heads of which are appointed by the governor). NYSIG's functions and responsibilities include receiving and investigating complaints concerning allegations of corruption, fraud, criminal activity, conflicts of interest or abuse in any entity under NYSIG's jurisdiction. This includes any entities, such as vendors and contractors, doing business with the State. Additionally, NYSIG conducts investigations of public forensic and toxicology laboratories within the State. NYSIG's purview also includes audits and systemic reviews of State agency programs and procedures.

At the conclusion of its investigations and audits, recommendations are routinely made for agencies to undertake corrective action and revise applicable procedures. NYSIG identifies vulnerabilities, reduces opportunities for malfeasance, and assists in the implementation of best practices which improve state operations and safeguard taxpayer-funded resources

To further this objective, NYSIG also conducts training programs for entities under its jurisdiction upon request, or when determined to be warranted based upon identified deficiencies.

The Office of the New York State Welfare Inspector General
The Office of the New York State Welfare Inspector General (OWIG), as established by Executive Law section 74, is tasked with maintaining the integrity of New York State's public assistance programs. Specifically, OWIG is responsible for conducting investigations of fraud, abuse or illegal acts perpetrated within all 58 local social services districts and by beneficiaries of public assistance services. Additionally, OWIG is charged with recommending policies relating to the prevention and detection of fraud and abuse, and monitoring implementation of such recommendations.

Through its efforts, OWIG raises awareness of public assistance fraud, provides education, and generates increased detection and reporting of fraud. OWIG participates in several public assistance fraud task forces, whose members include social services and law enforcement personnel, as well as corporate entities. Additionally, OWIG frequently provides public training to stakeholders regarding investigative techniques and ethical considerations in public assistance fraud investigations.

The Office of the New York State Workers' Compensation Fraud Inspector General
The Office of the New York State Workers' Compensation Fraud Inspector General (WCFIG), as established by Workers' Compensation Law section 136, is responsible for investigating violations of the laws and regulations pertaining to the operation of the workers' compensation system. Through its investigations and audits, WCFIG identifies, investigates, and prevents workers' compensation fraud, thereby reducing costs to the workers' compensation system.

WCFIG operates a specific Triage Unit, which addresses the ever-growing number of workers' compensation complaints being received. These complaints are uniquely labor intensive, often including the review of medical documentation and billing codes, therefore requiring a dedicated and specially trained team. WCFIG conducts extensive training, partnering with other State agencies, insurance carriers and law enforcement groups to increase visibility of workers' compensation fraud.

FORM 1*:* COST PROPOSAL

The Cost Proposal is an integral component of a Proposer's three-part submission. Proposers should take particular care to ensure the Cost Proposal is completed fully and in accordance with the instructions. **Cost Proposals must be submitted electronically.**

Proposers are advised to submit questions about or requests for clarification of the Cost Proposal by March 24, 2025, the due date for submission of inquiries.

Please note, if the information requested on Form 1 is not complete, OIG may not be able to calculate a cost score, and the proposal may be rejected as non-responsive.

The Cost Proposal Form must be signed by an individual authorized to bind Proposer contractually.

Firm Name

Firm Name	

Solution Deliverable Pricing
Provide one (1) bid price for each deliverable listed in the table below. Such price must be an all-inclusive cost related to furnishing all of the said services, including but not limited to any costs to configure or customize as well as travel, labor, materials, equipment, overhead, meetings, reporting, analysis, and any other costs required to complete the services detailed in Section 5.0, Scope of Work to the satisfaction of OIG.

RFP Section Reference	Deliverable Name	Deliverable Price including any customization/configuration
Section 5.2.1	**Implementation Plan**	
Section 5.1 and 5.2.2	**SaaS Solution Development**	
Section 5.2.3	**Legacy System Migration**	

Data hosting and Licensing Fee Schedule
The Proposer must provide annual pricing for the comprehensive SaaS cloud data hosting and licensing service for the entire duration of the contract, which includes the following:

G. Secure and scalable cloud infrastructure capable of supporting the organization's current and future data storage needs.
H. High availability and uptime.
I. Strong data security measures, including encryption, access controls, and regular security updates.
J. Compliance with relevant data protection and privacy regulations.
K. Robust disaster recovery and backup solutions with defined recovery time objectives.
L. Ongoing technical support, monitoring, and maintenance services.

This includes infrastructure capable of supporting OIG's current and future data storage needs, named and concurrent user licenses for up to approximately 250 active users; and ongoing technical support, monitoring, and maintenance services.

Contract Year	Proposed Hosting and Licensing Fee
Contract Year 1-2	
Contract Year 3-4	
Contract Year 5-6*	
Contract Year 7-8*	
Contract Year 9-10*	

*** Note:** Year 6 through10 are contingent upon the contract being extended.

Hourly Rates for Services

The Proposer must provide a single bid rate for the following services:

- An all-inclusive hourly rate for Training, such rate must include all costs related to furnishing all of the said services, including but not limited to any costs to configure or customize as well as travel, materials, equipment, overhead, meetings, reporting, analysis.
- An all-inclusive hourly rate for any and all staff working on Solution Enhancements and/or Change Requests. Such rate must include all costs related to furnishing all of the said services, including but not limited to travel, materials, equipment, overhead, meetings, reporting, analysis.

RFP Section Reference	Service Name	Proposed Hourly Rate
Section 5.3	**Training Hourly Rate:**	
Section 5.7.6	**Solution Enhancements/ Change Request Hourly Rate**	

Name (print or type)	**Authorized Signatory for the Firm**
Title	**Date**

FORM 2: PROPOSER INFORMATION AND ATTESTATION

PLEASE SUBMIT WITH ADMINISTRATIVE PROPOSAL

RFP Name: Software Development and Implementation Services Proposal Date:April 28, 2025 @ 12:00 PM ET				
1	Information Regarding the Firm:	Name: _____ Address: _____ City, State, Zip Code:_____ Telephone Number:_____ Taxpayer ID: _____ NYS Vendor ID: _____		
2	Primary Contact Concerning this Proposal:	Name: Title: Address:_____ City, State, Zip Code:__ Telephone Number:_____ Email address:_____		
3	Irrevocable Offer:	The rates quoted are an irrevocable offer that is good through the execution of a contract.	☐ Yes	☐ No
4	Willingness to Perform All Services:	The Firm is willing to, and capable of performing all of the deliverables and services described in this RFP.	☐ Yes	☐ No
5	Firm Guarantees:	The Firm certifies it can and will provide and make available, at a minimum, all services set forth in the RFP.	☐ Yes	☐ No
6	Firm Warranties:	Firm warrants that it is willing and able to comply with New York laws with respect to foreign (non-New York) corporations. Firm warrants that it is willing and able to obtain an errors and omissions insurance policy providing a prudent amount of coverage for the willful or negligent acts, or omissions of any officers, employees or agents thereof. Firm warrants that it will not delegate or subcontract its responsibilities under an agreement without the written permission of OIG. Firm warrants that all information provided by it in connection with this proposal is true and accurate.	☐ Yes	☐ No
7	RFP and Contractual Requirements:	The Firm agrees to be bound by the Scope of Work found in Section 5 of the RFP. The Firm has read Section 13.2, Reservation of Rights, and agrees that the rights and prerogatives as detailed in that Section are retained by OIG. The Proposer has read, understands, and accepts the provisions of Appendix A, Standard Clauses for NYS Contracts, and Appendix B, Sample Contract, without change or amendment.	☐ Yes	☐ No

Please Note: A "No" response to questions three through seven (3-7) may be grounds for disqualification from this procurement.

By my signature on this Firm Information and Attestation, I certify that I am authorized to bind the Firm Contractually and that the above information is true and accurate.

_____

Typed or Printed Name of Authorized Representative

_____

Title/Position of Authorized Representative

_____

Signature

_____

Date

FORM 3: NON-COLLUSIVE BIDDING CERTIFICATION

In accordance with New York State Finance Law, § 139-d, by submitting its bid, each Firm and each person signing on behalf of any other Firm certifies, and in the case of a joint bid, each party thereto certifies as to its own organization, under penalty of perjury, that to the best of his or her knowledge and belief:

1. The prices of this bid have been arrived at independently, without collusion, consultation, communication, or agreement, for the purposes of restricting competition, as to any matter relating to such prices with any other Firm or with any competitor;

2. Unless otherwise required by law, the prices which have been quoted in this bid have not been knowingly disclosed by the Firm and will not knowingly be disclosed by the Firm prior to opening, directly or indirectly, to any other Firm or to any competitor; and

3. No attempt has been made or will be made by the Firm to induce any other person, partnership or corporation to submit or not to submit a bid for the purpose of restricting competition.

Name: _____ Title: _____

Signature: _____

Joint or combined bids by Companies or Firms must be certified on behalf of each participant.

_____	_____
Legal name of Person, Firm or Corporation	Legal name of Person, Firm or Corporation
Name: _____	Name: _____
Title: _____	Title: _____

FORM 4: FIRM ASSURANCES OF NO CONFLICT OF INTEREST OR DETRIMENTAL EFFECT

The Firm offering to provide services pursuant to this RFP, as a contractor, joint venture contractor, or subcontractor, or consultant, attests that its performance of the services outlined in this RFP does not and will not create a conflict of interest with nor position the Firm to breach any other contract currently in force with the State of New York.

Furthermore, the Firm attests that it will not act in any manner that is detrimental to any State project on which the Firm is rendering services. Specifically, the Firm attests that:

a. The fulfillment of obligations by the Firm, as proposed in the response, does not violate any existing contracts or agreements between the Firm and the State;
b. The fulfillment of obligations by the Firm, as proposed in the response, does not and will not create any conflict of interest, or perception thereof, with any current role or responsibility that the Firm has with regard to any existing contracts or agreements between the Firm and the State;
c. The fulfillment of obligations by the Firm, as proposed in the response, does not and will not compromise the Firm's ability to carry out its obligations under any existing contracts between the Firm and the State;
d. The fulfillment of any other contractual obligations that the Firm has with the State will not affect or influence its ability to perform under any contract with the State resulting from this RFP;
e. During the negotiation and execution of any contract resulting from this RFP, the Firm will not knowingly take any action or make any decision which creates a potential for conflict of interest or might cause a detrimental impact to the State as a whole including, but not limited to, any action or decision to divert resources from one State project to another;
f. In fulfilling obligations under each of its State contracts, including any contract which results from this RFP, the Firm will act in accordance with the terms of each of its State contracts and will not knowingly take any action or make any decision which might cause a detrimental impact to the State as a whole including, but not limited to, any action or decision to divert resources from one State project to another;
g. No former officer or employee of the State who is now employed by the Firm, nor any former officer or employee of the Firm who is now employed by the State, has played a role with regard to the administration of this contract procurement in a manner that may violate section 73(8)(a) of the State Ethics Law; and
h. The Firm has not and shall not offer to any employee, member or director of the State any gift, whether in the form of money, service, loan, travel, entertainment, hospitality, thing or promise, or in any other form, under circumstances in which it could reasonably be inferred that the gift was intended to influence said employee, member or director, or could reasonably be expected to influence said employee, member or director, in the performance of the official duty of said employee, member or director or was intended as a reward for any official action on the part of said employee, member or director.
i. Firms responding to this Request for Proposals should note that OIG recognizes that conflicts may occur in the future because a Firm may have existing or new relationships. OIG will review the nature of any such new relationship and reserves the right to terminate the contract for cause if, in its judgment, a real or potential conflict of interest cannot be cured.

Firm Name:_____

Name, Title:_____

Signature: _____ Date: _____

FORM 5: MWBE AND EQUAL EMPLOYMENT OPPORTUNITIES REQUIREMENTS

CONTRACTOR REQUIREMENTS AND PROCEDURES FOR PARTICIPATION BY NEW YORK STATE EXECUTIVE LAW, ARTICLE 15-A (PARTICIPATION BY MINORITY GROUP MEMBERS AND WOMEN WITH RESPECT TO STATE CONTRACTS)

By submitting a bid or proposal, a Firm will be required to submit the following documents and information as evidence of compliance with the requirements and procedures established in Section 9 of this RFP:

A. Firm agrees to submit with the bid a Workforce Composition Plan (Form 5.1) identifying the anticipated work force to be utilized on the Contract and if awarded a Contract, will, upon request, submit to OIG, a workforce utilization report identifying the workforce actually utilized on the Contract if known.
B. Firms are required to submit an MWBE Utilization Plan (Form 5.2) and Notice of Intent to Participate (Form 5.3) with their bid or proposal. Any modifications or changes to the MWBE Utilization Plan after the Contract award and during the term of the Contract must be reported on a revised MWBE Utilization Plan and submitted to OIG.
C. OIG will review the submitted MWBE Utilization Plan and advise the Firm of OIG's acceptance or issue a notice of deficiency within 30 days of receipt.
D. If a notice of deficiency is issued, Firm agrees that it shall respond to the notice of deficiency within seven (7) business days of receipt by submitting to OIG, a written remedy in response to the notice of deficiency. If the written remedy that is submitted is not timely or is found by OIG to be inadequate, OIG shall notify the Firm and direct the Firm to submit, within five (5) business days, a request for a partial or total waiver of MWBE participation goals on the Request for Waiver form. Failure to file the waiver form in a timely manner may be grounds for disqualification of the bid or proposal.
E. OIG may disqualify a Firm as being non-responsive under the following circumstances:
    a. If a Firm fails to submit a MWBE Utilization Plan;
    b. If a Firm fails to submit a written remedy to a notice of deficiency;
    c. If a Firm fails to submit a request for waiver; or
    d. If Division determines that the Firm has failed to document good faith efforts.
F. Firms are required to submit a Minority- and Women-owned Business Enterprise and Equal Employment Opportunity Policy Statement, Form 5.4, to OIG with its bid or proposal. If Firm, or any of its subcontractors, does not have an EEO Policy, OIG may require the Contractor or subcontractor to adopt the attached model statement.

Please Note: Failure to comply with the requirements may result in a finding of non-responsiveness, non-responsibility and/or a breach of the Contract, leading to the withholding of funds, suspension or termination of the Contract or such other actions of enforcement proceedings as allowed by the Contract.

Attachments:

- Form 5.1 – Workforce Composition Form
- Form 5.2 – Firm's intended Utilization Plan for MWBE subcontractor participation. The successful Firm will be required to formally submit the Utilization Plan within three days of notification of selection.
- Form 5.3 – Notice of Intent to Participate
- Form 5.4 –Equal Employment Opportunity Policy Statement - If Firm, or any of its subcontractors, does not have an existing EEO policy statement, OIG may require the Firm or subcontractor to adopt the attached model statement.
- Form 5.5 – Request for Waiver Form

FORM 5.1: WORKFORCE COMPOSITION FORM

INSTRUCTIONS: All Firms submitting responses to this procurement must complete and submit this Workforce Composition Form as part of their proposal. Firms should include only the staff that will provide services under this procurement.

Firm Name:	**Federal Identification No.:**
Address:	**Procurement No.:**
City, State, Zip Code:	
Description of Work:	

Enter the total number of incumbents by race, sex, and ethnic group status in each of the EEO – Job Categories identified.
See below for information regarding race/ethnicity identification and protected class group members.

EEO – JOB CATEGORY	TOTAL	MALE (M)	FEMALE (F)	WHITE		BLACK		HISPANIC		ASIAN		NATIVE AMERICAN		DISABLED		VETERAN	
				M	F	M	F	M	F	M	F	M	F	M	F	M	F
Officials/Administrators																	
Professionals																	
Technicians																	
Sales Workers																	
Office/Clerical																	
Craft Workers																	
Laborers																	
Service Workers																	

PREPARED BY (Signature)		**Date**
PRINTED OR TYPED NAME AND TITLE OF PREPARER	**TELEPHONE NO.**	**EMAIL ADDRESS**

CLASS DEFINITIONS

Hispanic – All persons of Mexican, Puerto Rican, Cuban, Central or South American, or other Spanish culture or origin, regardless of race.

Black (Not of Hispanic origin) – All persons having origins in any of the Black racial groups of Africa.

American Indian or Alaskan Native – All persons having origins in any of the original peoples of North America, and who maintain cultural identification through tribal affiliation or community recognition.

Asian or Pacific Islander – All persons having origins in any of the original peoples of the Far East, Southeast Asia, the Indian Subcontinent, or the Pacific Islands. This area includes, for example, China, India, Japan, Korea, the Philippine Islands, and Samoa.

Vietnam Era Veteran – A veteran who served at any time between and including January 1, 1963 and May 7, 1975.

Disabled Individual – Any person having a physical or mental impairment that substantially limits one or more major life activity, has a record of such an impairment; or is regarded as having such an impairment.

FORM 5.2: MWBE UTILIZATION PLAN

INSTRUCTIONS: All Firms submitting responses to this procurement must complete this MWBE Utilization Plan and submit it as part of their proposal. The Plan must contain a detailed description of the services to be provided by each Minority and/or Woman-Owned Business Enterprise (MWBE) identified by the Firm.

Firm Name:	**Federal Identification No.:**
Address:	**Procurement No.:**
City, State, Zip Code:	**MWBE Goals: MBE: 15% WBE: 15%**

1. MWBE Subcontractors/Suppliers Name, Address, Email Address, Telephone No.	2. Classification	3. Federal ID No.	4. Detailed Description of Work (Attach additional sheets, if necessary.)	5. Dollar Value of Subcontracts/Supplies
A.	NYS ESD Certified MBE WBE			
B.	NYS ESD Certified MBE WBE			

6. WAIVER REQUESTED: MBE: YES NO If YES, submit Attachment A-5.5. WBE: YES NO If YES, submit Attachment A-5.5.

PREPARED BY (Signature): **NAME AND TITLE OF PREPARER (Print or Type):_____** **DATE: __Firm's Certification Status: MBE WBE**	**TELEPHONE NO.:**	**EMAIL ADDRESS:**

	**********************FOR DOB USE ONLY**********************
	REVIEWED BY: / **DATE:**
SUBMISSION OF THIS FORM CONSTITUTES THE FIRM'S ACKNOWLEDGEMENT AND AGREEMENT TO COMPLY WITH THE MWBE REQUIREMENTS SET FORTH UNDER NYS EXECUTIVE LAW, ARTICLE 15-A. FAILURE TO SUBMIT COMPLETE AND ACCURATE INFORMATION MAY RESULT IN NONCOMPLIANCE AND/OR PROPOSAL DISQUALIFICATION.	**UTILIZATION PLAN APPROVED: YES NO Date:____** **MBE CERTIFIED: YES NO WBE CERTIFIED: YES NO** **WAIVER GRANTED: YES NO** **Total Waiver Partial Waiver** **NOTICE OF DEFICIENCY ISSUED: YES NO** **Date: _____**

FORM 5.3: MWBE SUBCONTRACTORS AND SUPPLIERS NOTICE OF INTENT TO PARTICIPATE

INSTRUCTIONS: A separate Notice of Intent to Participate must be completed by each MWBE identified on the MWBE Utilization Plan (Form 4.3). Parts A & C must be completed by the Firm and Part B must be completed by MBE and/or WBE subcontractors/suppliers. Signed and completed form(s) must be returned as part of your proposal.

PART A

Firm Name: **Federal Identification No.:**

Address: **Telephone No.:**

City, State, Zip Code: **Email Address:**

PART B

THE UNDERSIGNED INTENDS TO PROVIDE SERVICES OR SUPPLIES IN CONNECTION WITH THE ABOVE PROCUREMENT:

Name of MWBE: **Federal Identification No.:**

Address: **Telephone No.:**

City, State, Zip Code: **Email Address:**

DESCRIPTION OF SERVICES OR SUPPLIES:
DESIGNATION: MBE Subcontractor WBE Subcontractor MBE Supplier WBE Supplier

PART C

WAIVER Requested: MBE: YES NO If YES, submit Attachment A-5.5. WBE: YES NO If YES, submit Attachment A-5.5.

THE QUALIFICATION OF THE UNDERSIGNED AS A MBE AND/OR WBE IS CONFIRMED (CHECK ONE):

The undersigned is a certified MWBE by the New York State Division of Minority and Woman-Owned Business Development (MWBD) (copy of certifying letter attached).

The undersigned has applied to New York State's Division of Minority and Woman-Owned Business Development (MWBD) for MWBE certification.

THE UNDERSIGNED IS PREPARED TO PROVIDE SERVICES OR SUPPLIES AS DESCRIBED ABOVE AND WILL ENTER INTO A FORMAL AGREEMENT WITH THE FIRM CONDITIONED UPON THE FIRM'S EXECUTION OF A CONTRACT WITH THE DIVISION OF THE BUDGET.

The estimated dollar amount of the agreement is: $

Signature of Authorized Representative of MWBE Firm

Date:

Printed or Typed Name and Title of Authorized Representative of MWBE Firm

FORM 5.4: MINORITY AND WOMEN-OWNED BUSINESS ENTERPRISES – EQUAL EMPLOYMENT OPPORTUNITY POLICY STATEMENT

M/WBE AND EEO POLICY STATEMENT

I, _____, the (awardee/contractor)_____ agree to adopt the following policies with respect to the project being developed or services rendered at

_____

M/WBE

This organization will and will cause its contractors and subcontractors to take good faith actions to achieve the M/WBE contract participations goals set by the State for that area in which the State-funded project is located, by taking the following steps:

(1) Actively and affirmatively solicit bids for contracts and subcontracts from qualified State certified MBEs or WBEs, including solicitations to M/WBE contractor associations.

(2) Request a list of State-certified M/WBEs from AGENCY and solicit bids from them directly.

(3) Ensure that plans, specifications, request for proposals and other documents used to secure bids will be made available in sufficient time for review by prospective M/WBEs.

(4) Where feasible, divide the work into smaller portions to enhanced participations by M/WBEs and encourage the formation of joint venture and other partnerships among M/WBE contractors to enhance their participation.

(5) Document and maintain records of bid solicitation, including those to M/WBEs and the results thereof. The Contractor will also maintain records of actions that its subcontractors have taken toward meeting M/WBE contract participation goals.

(6) Ensure that progress payments to M/WBEs are made on a timely basis so that undue financial hardship is avoided, and that bonding and other credit requirements are waived or appropriate alternatives developed to encourage M/WBE participation.

EEO

(a) This organization will not discriminate against any employee or applicant for employment because of race, creed, color, national origin, sex, age, disability or marital status, will undertake or continue existing programs of affirmative action to ensure that minority group members are afforded equal employment opportunities without discrimination, and shall make and document its conscientious and active efforts to employ and utilize minority group members and women in its work force on state contracts.

(b) This organization shall state in all solicitation or advertisements for employees that in the performance of the State contract all qualified applicants will be afforded equal employment opportunities without discrimination because of race, creed, color, national origin, sex disability or marital status.

(c) At the request of the contracting agency, this organization shall request each employment agency, labor union, or authorized representative will not discriminate on the basis of race, creed, color, national origin, sex, age, disability or marital status and that such union or representative will affirmatively cooperate in the implementation of this organization's obligations herein.

(d) The Contractor shall comply with the provisions of the Human Rights Law, all other State and Federal statutory and constitutional non-discrimination provisions. The Contractor and subcontractors shall not discriminate against any employee or applicant for employment because of race, creed (religion), color, sex, national origin, sexual orientation, military status, age, disability, predisposing genetic characteristic, marital status or domestic violence victim status, and shall also follow the requirements of the Human Rights Law with regard to non-discrimination on the basis of prior criminal conviction and prior arrest.

(e) This organization will include the provisions of sections (a) through (d) of this agreement in every subcontract in such a manner that the requirements of the subdivisions will be binding upon each subcontractor as to work in connection with the State contract.

Agreed to this __day of _____, 202___-_____

By: _____

Print: _____Title:_____

(Name of Designated Liaison)

_____is designated as the Minority Business Enterprise Liaison responsible for administering the Minority and Women-Owned Business Enterprises- Equal Employment Opportunity (M/WBE-EEO) program.

M/WBE Contract Goals

_____percent Minority and Women's Business Enterprise Participation

_____percent Minority Business Enterprise Participation

_____percent Women's Business Enterprise Participation

_____

(Authorized Representative)

Title: _____

Date: _____

FORM 5.5: REQUEST FOR WAIVER FORM

<table>
<tr><td colspan="3">INSTRUCTIONS: SEE PAGE 2 OF THIS ATTACHMENT FOR REQUIREMENTS AND DOCUMENT SUBMISSION INSTRUCTIONS.</td></tr>
<tr><td>Firm Name:</td><td colspan="2">Federal Identification No.:</td></tr>
<tr><td>Address:</td><td colspan="2">Procurement No.:</td></tr>
<tr><td>City, State, Zip Code:</td><td colspan="2">MWBE Subcontract Goals: MBE: 15% WBE: 15%</td></tr>
<tr><td colspan="3">By submitting this form and the required information, the company certifies that every Good Faith Effort has been taken to promote MWBE participation pursuant to the MWBE requirements set forth under this procurement.</td></tr>
<tr><td colspan="3">Firm is requesting a: Total Partial Certification Conditional

1. ☐ MBE Waiver – A waiver of the MBE Goal for this procurement is requested.

2. ☐ WBE Waiver – A waiver of the WBE Goal for this procurement is requested.

3. ☐ ESD Certification Waiver – A waiver of the requirement that the MBE/WBE be certified by Empire State Development (ESD). (Check here if MBE/WBE is NOT ESD certified.)

4. ☐ Conditional Waiver – (Attach separate sheet outlining special conditions or extenuating circumstances.)</td></tr>
<tr><td>Prepared By (Signature)</td><td colspan="2">Date</td></tr>
<tr><td>Printed or Typed Name and Title of Preparer</td><td>Telephone Number</td><td>Email Address</td></tr>
<tr><td rowspan="4">SUBMISSION OF THIS FORM CONSTITUTES THE FIRM'S ACKNOWLEDGEMENT AND AGREEMENT TO COMPLY WITH THE MWBE REQUIREMENTS SET FORTH UNDER NYS EXECUTIVE LAW, ARTICLE 15-A. FAILURE TO SUBMIT COMPLETE AND ACCURATE INFORMATION MAY RESULT IN NONCOMPLIANCE AND/OR PROPOSAL DISQUALIFICATION.</td><td colspan="2">********** FOR DIVISION USE ONLY **********</td></tr>
<tr><td>REVIEWED BY:</td><td>DATE:</td></tr>
<tr><td colspan="2">MWBE Certified: MWBE Not Certified:</td></tr>
<tr><td colspan="2">Waiver Granted: YES NO
Total Waiver Partial Waiver ESD Certification Waiver *Conditional Notice of Deficiency
*Comments:</td></tr>
</table>

MWBE REQUIREMENTS AND WAIVER SUBMISSION

When completing the Request for Waiver Form please check all boxes that apply. To be considered, the Request for Waiver Form must be accompanied by documentation for items 1 – 10, as listed below. Copies of the following information and all relevant supporting documentation must be submitted along with the request:

1. A statement setting forth your basis for requesting a partial or total waiver.

2. The names of general circulation, trade association, and MWBE-oriented publications in which you solicited MWBEs for the purposes of complying with your participation goals.

3. A list identifying the date(s) that all solicitations for MWBE participation were published in any of the above publications.

4. A list of all MWBEs appearing in the NYS Directory of Certified Firms that were solicited for purposes of complying with your MWBE participation levels.

5. Copies of notices, dates of contact, letters, and other correspondence as proof that solicitations were made in writing and copies of such solicitations, or a sample copy of the solicitation if an identical solicitation was made to all MWBEs.

6. Provide copies of responses made by MWBEs to your solicitations.

7. Provide a description of any contract documents, plans, or specifications made available to MWBEs for purposes of soliciting their bids and the date and manner in which these documents were made available.

8. Provide documentation of any negotiations between you, the Contractor, and the MWBEs undertaken for purposes of complying with your MWBE participation goals.

9. Provide any other information you deem relevant which may help us in evaluating your request for a waiver.

10. Provide the name, title, address, telephone number, and email address of contractor's representative authorized to discuss this waiver request.

Note: Unless a Total Waiver has been granted, Firms will be required to submit all reports and documents pursuant to the provisions set forth in the procurement and/or contract, as deemed appropriate by the Division, to determine MWBE compliance. In cases where the Division grants a full or partial waiver of MWBE participation goals, the waiver request will be posted to the Division's website.

FORM 6: MWBE DIVERSITY PRACTICES

Pursuant to New York State Executive Law §313-a, and 5 NYCRR §142.3, all agencies and authorities must evaluate the diversity practices of Firms to best value procurements expected to exceed $250,000, whenever practical, feasible and appropriate. Evaluating diversity practices of Firms as part of the procurement process provides contractors with an incentive to develop mutually beneficial relationships with New York State certified MWBEs outside of the context of state contracting. These relationships help to build the capacity of MWBEs, and enhance their ability to perform ever increasing roles in state contracting.

Diversity practices are intended to be applied on procurements in which agency personnel exercise their subjective judgment in selecting one or more successful contractors on the basis of best value, not on procurements that are awarded based on lowest price.

For this procurement, the Division has determined, pursuant to New York State Executive Law Article 15-A, that the assessment of the diversity practices of Firms to this solicitation is practical, feasible and appropriate.

Accordingly, Firms are required to submit responses, including documentation, to the Diversity Practices Questionnaire, Form 6.1, to the Division as part of its Administrative Proposal. The questionnaire consists of eight (8) questions for Firms to answer. Please note that some questions request supporting documentation to support certain answers. A scoring rubric for the Diversity Practices Questionnaire can be found in Form 6.2

Attachments:

- Form 6.1 – Diversity Practices Questionnaire
- Form 6.2 – Diversity Practices Scoring Matrix

FORM 6.1: DIVERSITY PRACTICES QUESTIONNAIRE

I, _____, as _____ (title) of _____firm or company (hereafter referred to as the company), swear and/or affirm under penalty of perjury that the answers submitted to the following questions are complete and accurate to the best of my knowledge:

1. Does your company have a Chief Diversity Officer or other individual who is tasked with supplier diversity initiatives? Yes or No

   If Yes, provide the name, title, description of duties, and evidence of initiatives performed by this individual or individuals. No points will be awarded if the response simply identifies an individual or individuals.

2. What percentage of your company's gross revenues (from your prior fiscal year) was paid to New York State certified minority and/or women-owned business enterprises as subcontractors, suppliers, joint-venturers, partners or other similar arrangement for the provision of goods or services to your company's clients or customers?

3. What percentage of your company's overhead (i.e., those expenditures that are not directly related to the provision of goods or services to your company's clients or customers) or non-contract-related expenses (from your prior fiscal year) was paid to New York State certified minority- and women- owned business enterprises as suppliers/contractors?

4. Does your company provide technical training to minority- and women-owned business enterprises? Yes or No[2]

   If Yes, provide a description of such training which should include, but not be limited to, the date the program was initiated, the names and the number of minority- and women-owned business enterprises participating in such training, the number of years such training has been offered and the number of hours per year for which such training occurs.

5. Is your company participating in a government approved minority- and women-owned business enterprise mentor-protégé program?

   If Yes, identify the governmental mentoring program in which your company participates and provide government-generated evidence, such as an agreement or acceptance letter, demonstrating the extent of your company's commitment to the governmental mentoring program. Government- generated documentation supporting your company's participation in a mentoring program must be provided to receive points.

6. Does your company include specific quantitative goals for the utilization of minority- and women- owned business enterprises in its non-government procurements? Yes or No

   If Yes, provide a description of such non-government procurements (including time period, goal, scope and dollar amount) and indicate the percentage of the goals that were attained.

7. Does your company have a formal minority- and women-owned business enterprise supplier diversity program? Yes or No

   If Yes, provide documentation of program activities and a copy of policy or program materials.

8. Does your company plan to enter into partnering or subcontracting agreements with New York State certified minority and women-owned business enterprises if selected as the successful respondent? Yes or No

   If Yes, complete the attached Utilization Plan

   All information provided in connection with the questionnaire is subject to audit and any fraudulent statements are subject to criminal prosecution and debarment.

Signature of
Owner/Official _____

Printed Name of Signatory _____

Title _____

Name of Business _____

Address _____

City, State, Zip _____

STATE OF _____
COUNTY OF _____) ss:

On the _ day of _, 20__, before me, the undersigned, a Notary Public in and for the State of _____, personally appeared _____, personally known to me or proved to me on the basis of satisfactory evidence to be the individual whose name is subscribed to this certification and said person executed this instrument.

_____

Notary Public

FORM 6.2: DIVERSITY PRACTICES SCORING MATRIX

Question #1 **CDO or other person tasked with function**					Yes	No	Total
					5 pts	0 pts	
Question #2 **Percentage of prior yr. revenues that involved M/WBEs as subs or JVs/partners**	20%+	15-19%	10-14%	5-9%	1-4%	0%	
	20 pts	14 pts	10 pts	6 pts	2 pts	0pts	
Question #3 **Percentage of overhead expenses paid to M/WBEs**	20%+	15-19%	10-14%	5-9%	1-4%	0%	
	16 pts	10 pts	7 pts	4 pts	1 pts	0pts	
Question 4 M/WBE Training			Robust	Moderate	Minimum	None	
			16 pts	8 pts	4 pts	0 pts	
Question #5 M/WBE Mentoring			Robust	Moderate	Minimum	None	
			12 pts	8 pts	4 pts	0 pts	
Question #6 **Written M/WBE goals included in the Company's procurements**			Robust	Moderate	Minimum	No	
			20 pts	12 pts	6 pts	0 pts	
Question #7 **Formal Supplier Diversity Program**			Robust	Moderate	Minimum	No	
			6 pts	4 pts	2 pts	0 pts	
Question #8 Utilization Plan			Robust	Moderate	Minimum	No	
			5 pts	3 pts	1 pts	0 pts	
				Total Diversity Score (Max 100 pts)			
				Weighted Score (Max 5 pts.)			

FORM 7: VENDOR RESPONSIBILITY QUESTIONNAIRE INSTRUCTIONS

A contracting agency is required to conduct a review of a prospective contractor (and each subcontractor whose anticipated fees for the project are estimated to be over $100,000) to provide reasonable assurances that the vendor is responsible. OIG recommends that vendors file the required Vendor Responsibility Questionnaire online via the New York State VendRep System. To enroll in and use the New York State VendRep System, see the VendRep System Instructions available at http://www.osc.state.ny.us/vendrep/index.htm.

Vendors must provide their New York State Vendor Identification Number when enrolling. To request assignment of a Vendor ID or for VendRep System assistance, contact the Office of the State Comptroller's Help Desk at 866-370-4672 or 518-408-4672 or by email at ITServiceDesk@osc.state.ny.us.

Vendors opting to complete and submit a paper questionnaire can obtain the appropriate questionnaire from the VendRep website http://www.osc.state.ny.us/vendrep/ or may contact OIG or the Office of the State Comptroller's Help Desk for a copy of the paper form.

This questionnaire is designed to provide information to assist a contracting agency in assessing a vendor's responsibility prior to entering into a contract with the vendor. Vendor responsibility is determined by a review of each Firm or Firm's authorization to do business in New York, business integrity, financial and organizational capacity, and performance history.

Contractors (and subcontractors) must answer every question in the questionnaire and where appropriate additional information may be required for the questionnaire to be complete and accurate. The completed questionnaire and responses will become part of the procurement record.

It is imperative that the person completing the vendor responsibility questionnaire be knowledgeable about the proposing contractor's business and operations as the questionnaire information must be attested to by an owner or officer of the vendor.

Vendor Responsibility Questionnaire Requirement:

The Firm has (Please check the appropriate box):
_____ Certified and filed the Vendor Responsibility Questionnaire on-line via the New York State VendRep System; **OR**

_____ Included a properly executed paper copy of the Vendor Responsibility Questionnaire with the Administrative Proposal.

FORM 8: PROCUREMENT LOBBYING RESTRICTIONS

Pursuant to State Finance Law §§139-j and 139-k, certain restrictions are placed on contact with state agencies during the procurement process. The term "Contact" is defined by statute and refers to those oral, written or electronic communications that a reasonable person would infer are attempts to influence the governmental procurement. In addition to obtaining the required identifying information, the state agency must inquire and record whether the person or organization that made the contact was the Offerer or was retained, employed or designated on behalf of the Offerer to appear before or contact the Governmental Entity.

The "Restricted Period" is the period of time commencing with the earliest date of written notice, advertisement or solicitation of a request for proposal, invitation for bids, or solicitation of proposals, or any other method for soliciting a response from Offerers intending to result in a Procurement Contract with a State agency and, ending with the final contract award and approval by, where applicable, the Office of the State Comptroller.

New York State employees are also required to obtain certain information when contacted during the restricted period and make a determination of the responsibility of the Offerer pursuant to these two statutes. Certain findings of non-responsibility can result in rejection for contract award and in the event of two findings within a 4 year period; the Offerer is debarred from obtaining governmental procurement contracts. Further information about these requirements can be found at: https://ogs.ny.gov/acpl.

Any Firm responding to the solicitation must complete the form found below and submit it to the State agency.

Questions regarding this form may be directed to the Designated Contacts for this solicitation:

- Director of Finance: Peter Amorosa
- Deputy Director of Finance: Justin Spencer

PROCUREMENT LOBBYING FORM

1. Offerer/ Firm certifies that it understands and agrees to comply with the procedures of the Offices of the Inspector General relative to permissible contacts as required by State Finance Law Section 139-j (3) and Section 139-j (6) (b).

2. CONTRACTOR DISCLOSURE OF PRIOR NON-RESPONSIBILITY DETERMINATIONS
Pursuant to Procurement Lobbying Law (SFL §139-j)

(a) Has any Governmental Entity made a finding of non-responsibility regarding the individual or entity seeking to enter into the Procurement Contract in the previous four years?
Yes ☐ No ☐

If yes, please answer the following question:

(b) Was the basis for the finding of non-responsibility due to a violation of State Finance Law §139-j?
Yes ☐ No ☐

If "Yes" was the basis for the finding of non-responsibility due to the intentional provision of false or incomplete information to a governmental entity?
Yes ☐ No ☐

If "Yes", please provide details regarding the finding of non-responsibility:

Governmental
Entity:_____
Date of Finding of Non-Responsibility: _____
Basis of Finding of Non-Responsibility (attach additional sheets as necessary)

_____
_____

3. Has any governmental entity terminated or withheld a procurement contract with the above-named individual or entity due to the intentional provision of false or incomplete information?
Yes ☐ No ☐

If yes, provide details:
Governmental
Entity: _____
Date of Termination or Withholding of Contract: _____
Basis of Termination or Withholding: (add additional pages if necessary)

_____
_____

4. Offerer/ Firm certifies that all information provided to the Inspector General, with respect to State Finance Law Section 139-k is complete, true and accurate.

Name of Offerer's Firm/Company: _____

Offerer's Business Address: _____

Offerer's signature: _____ Date: _____
I understand that my signature represents that I am signing and responding to all certifications listed above.

Print Name: _____

Title of Person signing this form: _____

FORM 9: DISCLOSURE OF PENDING OR PRIOR LAWSUITS, CONFLICTS OF INTEREST, OR INVESTIGATIONS OR DISCIPLINARY ACTIONS

Disclosure of Pending or Prior Lawsuits, Conflicts of Interest, or Investigations or Disciplinary Actions must be documented and submitted with the Administrative Proposal. Please include the following information:

A. Firms must provide a list of any legal proceedings or investigations concerning the Firm over the last five (5) years, if any, including the nature and outcome of any lawsuit if litigation is complete. Firms must also specifically note any prior or pending lawsuit(s) or litigation between the Firm and any New York State department, agency, board, or commission, if any. The nature of the lawsuit and its outcome, if litigation is complete, should be described briefly below.

Does the Firm have any information pertaining to the above that must be disclosed? If Yes, the Firm must disclose the requisite information as part of the Firm's Administrative Proposal.

Yes _____ No _____

B. Disclose any existing or contemplated relationship with any other person or entity, including relationships with any member, shareholders of 5% or more, parent, subsidiary, or affiliated firm, which would constitute an actual or potential conflict of interest or appearance of impropriety, relating to other clients/customers of the Firm or former officers and employees of the Agencies and their Affiliates, in connection with your rendering services enumerated in this RFP. If a conflict does or might exist, please describe how your Firm would eliminate or prevent it. Indicate what procedures will be followed to detect, notify the Agencies of, and resolve any such conflicts.

Does the Firm have any information pertaining to the above that must be disclosed? If Yes, the Firm must disclose the requisite information as part of the Firm's Administrative Proposal.

Yes _____ No _____

C. The Firm must disclose whether it, or any of its members, shareholders of 5% or more, parents, affiliates, or subsidiaries, have been the subject of any investigation or disciplinary action by the New York State Commission on Public Integrity or its predecessor State entities (collectively, "Commission"), and if so, a brief description must be included indicating how any matter before the Commission was resolved or whether it remains unresolved.

Does the Firm have any information pertaining to the above that must be disclosed? If Yes, the Firm must disclose the requisite information as part of the Firm's Administrative Proposal.

Yes _____ No _____

Firm Name: _____

Name, Title: _____

Signature: _____ Date: _____

FORM 10: FREEDOM OF INFORMATION LAW REDACTION REQUEST

The Firm should indicate below if there is specific information in a Firm's proposal that a Firm claims to be proprietary and/or trade secret information that meets the definition set forth in Section 87(2)(d), the Firm should provide a letter in its Administrative Proposal outlining any specific concerns regarding disclosure under the New York State Freedom of Information Law (Article 6 of the Public Officers Law).

Is the Firm submitting a Freedom of Information Law Redaction request? If Yes, Firm should include the specific details of its request as part of the Firm's Administrative Proposal.

Yes _____ No _____

Firm Name: _____

Name, Title: _____

Signature: _____ Date: _____

FORM 11: EXECUTIVE ORDER NO. 177 CERTIFICATION

The New York State Human Rights Law, Article 15 of the Executive Law, prohibits discrimination and harassment based on age, race, creed, color, national origin, sex, pregnancy or pregnancy-related conditions, sexual orientation, gender identity, disability, marital status, familial status, domestic violence victim status, prior arrest or conviction record, military status or predisposing genetic characteristics.

The Human Rights Law may also require reasonable accommodation for persons with disabilities and pregnancy-related conditions. A reasonable accommodation is an adjustment to a job or work environment that enables a person with a disability to perform the essential functions of a job in a reasonable manner. The Human Rights Law may also require reasonable accommodation in employment on the basis of Sabbath observance or religious practices.

Generally, the Human Rights Law applies to:

- employers of four or more people, employment agencies, labor organizations and apprenticeship training programs in all instances of discrimination or harassment;
- employers with fewer than four employees in all cases involving sexual harassment; and,
- any employer of domestic workers in cases involving sexual harassment or harassment based on gender, race, religion or national origin.

In accordance with Executive Order No. 177, the Firm hereby certifies that it does not have institutional policies or practices that fail to address the harassment and discrimination of individuals on the basis of their age, race, creed, color, national origin, sex, sexual orientation, gender identity, disability, marital status, military status, or other protected status under the Human Rights Law.

Executive Order No. 177 and this certification do not affect institutional policies or practices that are protected by existing law, including but not limited to the First Amendment of the United States Constitution, Article 1, Section 3 of the New York State Constitution, and Section 296(11) of the New York State Human Rights Law.

Firm Name: _____

Name, Title: _____

Signature: _____ Date: _____

FORM 12: SEXUAL HARASSMENT PREVENTION CERTIFICATION

State Finance Law §139-l requires firms on state procurements to certify that they have a written policy addressing sexual harassment prevention in the workplace and provide annual sexual harassment training to all its employees.

By submission of this bid, each firm and each person signing on behalf of any firm certifies, and in the case of a joint bid each party thereto certifies its own organization, under penalty of perjury, that the firm has and has implemented a written policy addressing sexual harassment prevention in the workplace and provides annual sexual harassment prevention training to all of its employees. Such policy shall, at a minimum, meet the requirements of section two hundred one-g of the labor law.

The Firm's signature below certifies its compliance with State Finance Law §139-l.

Firm Name: _____

Name, Title: _____

Signature: _____ Date: _____

FORM 13: CERTIFICATION UNDER EXECUTIVE ORDER NO. 16 PROHIBITING STATE AGENCIES AND AUTHORITIES FROM CONTRACTING WITH BUSINESSES CONDUCTING BUSINESS IN RUSSIA

Executive Order No. 16 provides that "all Affected State Entities are directed to refrain from entering into any new contract or renewing any existing contract with an entity conducting business operations in Russia."

The Executive Order remains in effect while sanctions imposed by the federal government are in effect. Accordingly, Firms who may be excluded from award because of current business operations in Russia are nevertheless encouraged to respond to solicitations to preserve their contracting opportunities in case the sanctions are lifted during a solicitation or even after award in the case of some solicitations.

As defined in Executive Order No. 16, an "entity conducting business operations in Russia" means an institution or company, wherever located, conducting any commercial activity in Russia or transacting business with the Russian Government or with commercial entities headquartered in Russia or with their principal place of business in Russia in the form of contracting, sales, purchasing, investment, or any business partnership.

Is Firm an entity conducting business operations in Russia, as defined above? Please answer by checking one of the following boxes:

☐ No, Vendor does not conduct business operations in Russia within the meaning of Executive Order No. 16.

☐ 2.a. Yes, Vendor conducts business operations in Russia within the meaning of Executive Order No. 16 but has taken steps to wind down business operations in Russia or is in the process of winding down business operations in Russia. (Please provide a detailed description of the wind down process and a schedule for completion.)

☐ 2.b. Yes, Vendor conducts business operations in Russia within the meaning of Executive Order No. 16 but only to the extent necessary to provide vital health and safety services within Russia or to comply with federal law, regulations, executive orders, or directives. (Please provide a detailed description of the services being provided or the relevant laws, regulations, etc.)

☐ 3. Yes, Vendor conducts business operations in Russia within the meaning of Executive Order No. 16

The undersigned certifies under penalties of perjury that they are knowledgeable about the Firm's business and operations and that the answer provided herein is true to the best of their knowledge and belief.

Firm Name: _____

Name, Title: _____

Signature: _____ Date: _____